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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

MARCH 25, 2025

>> MAYOR A. ISHII: OKAY. FOLKS, I THINK WE ARE GOING TO CALL THIS MEETING TO ORDER. ALL RIGHT. OKAY. SO I'M GOING TO CALL TO ORDER THE BERKELEY CITY COUNCIL MEETING. TODAY IS TUESDAY, MARCH 25, 2025. IT IS NOW 6:50 P.M. THANK YOU ALL SO MUCH FOR YOUR PATIENCE. I APPRECIATE YOU LETTING US GET A BITE IN BETWEEN. CAN WE START WITH THE ROLL, PLEASE?

>> CITY CLERK: CALL THE ROLL. COUNCILMEMBER KESARWANI. CURRENTLY ABSENT.

>> T. TAPLIN: PRESENT.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: PRESENT.

>> CITY CLERK: TREGUB.

>> I. TREGUB: HERE.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: PRESENT.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: HERE. THANK YOU SO MUCH. SO WE HAVE SOME --

>> CITY CLERK: COUNCILMEMBER KESARWANI IS PRESENT.

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>> MAYOR A. ISHII: THANK YOU. YES. WE HAVE SOME CEREMONIAL ITEMS THIS EVENING. SORRY, FOLKS. I KNOW YOU ARE IN THERE, BUT IF YOU CAN PLEASE KEEP IT DOWN. VERY EXCITING. WE ARE SALIVATING NATIONAL LIBRARY WEEK. IT'S A LITTLE EARLY, BUT I'M GOING TO READ THIS POLLINATION HERE. WHEREAS THE BERKELEY PUBLIC LIBRARY -- ACTUALLY, THE FOLKS WANT TO COME UP? I WANT TO INVITE YOU UP SO YOU CAN. THANK YOU SO MUCH FOR BEING HERE AND THANK YOU FOR WAITING. I KNOW YOU'VE BEEN HERE A LONG TIME. OKAY. WHEREAS THE BERKELEY PUBLIC LIBRARY HAS SERVED THE COMMUNITY SINCE 1893 AND WHEREAS 157,190 PEOPLE ARE REGISTERED BERKELEY LIBRARY USERS WITH 8252 CHILDREN BORROWERS AND WHEREAS BERKELEY PUBLIC LIBRARY EMPOWERS AND INSPIRES AND ELIMINATES BARRIERS WITH RESOURCES AND EXPERIENCES AND EVOLVES AND RESPONDS TO THE CHANGING NEEDS OF THE COMMUNITY. AND WHEREAS THE FOUR BRANCHES AND ONE CENTRAL LIBRARY SERVES AS VIBRANT COMMUNITY HUBS, CONNECTING PEOPLE WITH KNOWLEDGE AND RESOURCES WHILE FOSTERING CIVIC ENGAGEMENT, CRITICAL THINKING, AND LIFELONG LEARNING. AND WHEREAS THE COLLECTIONS PROVIDE FREE AND EQUITABLE ACCESS TO BOOKS, DIGITAL TOOLS, AND INNOVATIVE PROGRAMMING ENSURING THAT ALL INDIVIDUALS REGARDLESS OF BACKGROUND HAVE THE SUPPORT THEY NEED TO LEARN, CONNECT, AND THRIVE. AND WHEREAS OVER 1.4 PHYSICAL -- I'M GUESSING 1.4 MILLION. AND WHEREAS LIBRARY STAFF PARTNER WITH SCHOOLS, BUSINESSES, AND ORGANIZATIONS MAKING CONNECTIONS TO

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MAXIMIZE RESOURCES, INCREASE EFFICIENCY, AND EXPAND ACCESS TO ESSENTIAL SERVICES STRENGTHENING THE ENTIRE COMMUNITY. AND WHEREAS LIBRARIES EMPOWER JOBSEEKERS, ENTRE NOUS ERRORS, AND LIFELONG LEARNERS BY PROVIDING ACCESS TO TRAINING AND OPPORTUNITIES THAT SUPPORT TECH LITERACY, CAREER GROWTH, AND ECONOMIC SUCCESS. AND WHEREAS LIBRARIES NURTURE YOUNG MINDS THREE-STORY TIMES, INNOVATIVE PROGRAMMING, AND LITERACY INITIATIVES FOSTERING CURIOSITY AND A LOVE OF LEARNING THAT LAST LIFETIME. WHEREAS THE BERKELEY PUBLIC LIBRARY OFFERS OVER 100 ENGAGING PROGRAMS FOR PATRONS EACH MONTH OF THE YEAR AND WHEREAS LIBRARIES PROTECT THE RIGHT TO READ, THINK, AND EXPLORE WITHOUT CENSORSHIP, STANDING AS CHAMPIONS OF INTELLECTUAL FREEDOM AND FREE EXPRESSION AND WHEREAS BERKELEY PUBLIC LIBRARY STAFF SERVED AS DISASTER WORKERS AND RETURNED TO BUILDINGS WITHIN TWO MONTHS OF THE INITIAL COVID CLOSURE IN 2022 RESUME SERVICE TO THE CITY OF BERKELEY. REINTRODUCING SUNDAY HOURS IN SEPTEMBER 2024 THUS PROVIDING SEVEN DAYS A WEEK OF PUBLIC SERVICE AND WHEREAS BERKELEY PUBLIC LIBRARY HAS LAUNCHED A NEW FIVE-YEAR STRATEGIC PLAN TO MEET THE TECHNOLOGY NEEDS AND BE OF SERVICE TO THE BERKELEY COMMUNITY. AND WHEREAS LIBRARIES, LIBRARIANS, AND LIBRARY WORKERS ACROSS THE COUNTRY ARE JOINING TOGETHER TO CELEBRATE NATIONAL LIBRARY WEEK UNDER THE THEME DRAWN TO THE LIBRARY. AND NOW THEREFORE IT BE RESOLVED THAT THE COUNCIL OF

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THE CITY OF BERKELEY PROCLAIM APRIL 6-12, 2025, AS NATIONAL LIBRARY WEEK. DURING THIS WEEK WE ENCOURAGE ALL RESIDENTS TO VISIT THEIR LIBRARY, EXPLORE ITS RESOURCES, AND CELEBRATE ALL THE WAYS THE LIBRARY JOINS US TOGETHER AS A LIBRARY.

>> CONGRATULATIONS.

>> THANK YOU.

>> MAYOR A. ISHII: THANK YOU SO MUCH. [APPLAUSE] AND I HEAR YOU HAVE A PRESENTATION FOR US AS WELL.

>> WE DO. WE WILL DIFFERENTLY TRY TO KEEP IT BRIEF.

>> MAYOR A. ISHII: THANK YOU.

>> MY NAME IS BEVERLY BRIEF AND I'M ON THE BOARD OF LIBRARY TRUSTEES. ON BEHALF OF MYSELF AND VICE PRESIDENT, TRUSTEES AMY ROTH, AND OUR NEWEST TRUSTEE SHOSHANNA O'KEEFE, WE WOULD LIKE TO THANK YOU FOR THE OPPORTUNITY TO SHARE WITH YOU THINGS THAT YOU SEE AND DON'T SEE. WE WANT TO THANK THE COMMUNITY FOR AN INCREDIBLE AMOUNT OF SUPPORT, WHICH WAS TRULY CRYSTALLIZED AT THE END OF THE LAST YEAR AND WE ALSO WANT TO THANK OUR RIDE OR DIE SUPPORTERS, I WANT THEM TO STAND UP. THE FRIENDS OF THE BERKELEY PUBLIC LIBRARY. THE BERKELEY PUBLIC LIBRARY FOUNDATION AND THE WHOLE OF THE BERKELEY COMMUNITY. [APPLAUSE] THANK YOU. AND WITH THAT, WE WILL TURN IT OVER TO THE DIRECTOR OF LIBRARY SERVICES, TESS MEYER, FOR AN UPDATE.

>> THANK YOU, MADAM MAYOR AND COUNCIL MEMBERS FOR YOUR TIME. AS

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BEVERLY STATED, I AM TESS MEYER, THE DIRECTOR OF LIBRARY SERVICES. WE APPRECIATE THE PROCLAMATION RECOGNIZING NATIONAL LIBRARY WEEK. THIS IS A TIMELY DEVELOPMENT. WE ARE GRATEFUL FOR THE OVERWHELMING COMMUNITY SUPPORT OF OUR LIBRARY SYSTEM THIS PAST FALL WITH THE PASSAGE OF MEASURE X, BUT WE ALSO KNOW THAT MARCH 14 AN EXECUTIVE ORDER WAS ISSUED THAT WILL SIGNIFICANTLY REDUCE FUNDING FOR THE INSTITUTE OF MUSEUM AND LIBRARY SERVICES, WHICH IS AN INDEPENDENT FEDERAL AGENCY. THIS IS PRIMARILY GOING TO IMPACT SMALL, RURAL, AND TRIBAL LIBRARIES. THE STATE OF CALIFORNIA RECEIVED ALMOST $16 MILLION IN LMS FUNDING LAST FISCAL YEAR. WE ALSO KNOW THAT CENSORSHIP AND BOOK BURNING HAVE BEEN ON THE RISE IN THIS COUNTRY OVER THE PAST SEVERAL YEARS. IN THE PAST YEAR ALONE IT INCREASED BY 65%. THIS INCLUDES BOTH SCHOOL AND PUBLIC LIBRARIES. AND I THINK YOU CAN SEE FROM THE GRAPHIC THAT ACTUALLY CALIFORNIA IS PART OF THIS TREND AS WELL. WE CERTAINLY ARE NOT IMMUNE TO THIS. LIBRARIES AT THE SAME TIME ARE CRITICAL FOR ACCESS AND DIGITAL LITERACY SUPPORT. THE LAPTOPS AND THE HOTSPOTS THAT WE CIRCULATE ARE STILL ONE OF THE MOST POPULAR CIRCULATING ITEMS AND THE TECHNOLOGY WORKSHOPS THAT WE OFFER IN EVERY LOCATION ARE VERY WELL ATTENDED. OUR SERVICES, WE JUST WANT TO SAY A LITTLE BIT ABOUT WHAT WE OFFER. WE DO HAVE OVER 400,000 BOOKS AND WE ALSO HAVE OVER 700,000 E-BOOKS. A LOT OF PEOPLE ARE NOT AWARE OF THE E-BOOKS. GOT TO PUT IN A PLUG. WE

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ALSO CIRCULATE MANY DIFFERENT MATERIALS, INCLUDING THE TOOLS YOU CAN FIND AT OUR TOOL LENDING LIBRARY. WE OFFER OVER 150 CULTURAL AND EDUCATIONAL PROGRAMS A MONTH OUT OF EACH OF OUR FIVE LOCATIONS. AND OUR LIBRARY STAFF, I'M SORRY, WANT TO BACKUP A LITTLE BIT AND GO TO THE CIRCULATION SLIDE. SO EVEN THOUGH BERKELEY IS A SMALLER SYSTEM COMPARED TO THE ONES THAT YOU SEE IN THE CHART, WE ARE ACTUALLY IN THE 20 HIGHEST CIRCULATING LIBRARY SYSTEMS IN THE STATE, WHICH I THINK IS A HUGE ACHIEVEMENT. THANKS TO THE PUBLIC FOR USING THE SERVICE AND THANKS TO THE STAFF WHO WORK SO HARD TO DO THAT. I DO WANT TO MENTION THAT DURING THE PANDEMIC LIBRARY STAFF HAD RETURNED TO BUILDINGS TO PROVIDE EXTENSIVE OUTDOOR PICKUP SERVICE BY JUNE 2020 IN THE FINAL STAGE OF OUR REOPENING PROCESS WAS THE RESTORATION OF SEVEN DAY A WEEK SURFACE, WHICH WE OFFER FOR FULL SERVICE DAYS AT TWO LOCATIONS, WHICH IS A SIGNIFICANT INCREASE OVER WHAT WE HAD BEFORE. WE ARE PROUD TO HAVE LAUNCHED A STRATEGIC PLAN THAT FOCUSES ON PATRONS EXPERIENCE EQUITABLE ACCESS, COLLABORATING WITH THE COMMUNITY, AND ALSO BUILDING OUR CAPACITY TO BE A RESPONSIVE ORGANIZATION. AND AS MAYOR ISHII MENTIONED, WE HAVE LAUNCHED A NEW TECHNOLOGY ROADMAP, WHICH IS REALLY IMPORTANT. WHEN WE ARE TALKING ABOUT INFRASTRUCTURE AND THE NEED FOR FURTHER DEVELOPMENT LIBRARY IS CERTAINLY PART OF THIS AND THERE ARE A NUMBER OF INFRASTRUCTURE -- INCLUDING

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IMPROVEMENTS TO OUR ONLINE SERVICES AS WELL AS OUR MATERIALS HANDLING SYSTEM, WHICH ARE A BIT OUTDATED AND WE ARE CIRCULATING A LOT OF MATERIAL. BUILDING STAFF CAPACITY OVER ALL HAS BEEN A HUGE PRIORITY FOR THE LIBRARY SYSTEM OVER THE PAST SEVERAL YEARS WITH STAFF IN ALL CLASSIFICATIONS HAVING OPPORTUNITIES TO ATTEND NATIONAL CONFERENCES AS WELL AS LOCAL TRAININGS. THIS SUMMER WE ARE REALLY EXCITED TO BE LAUNCHING A COMPREHENSIVE SAFETY AND WORKPLACE VIOLENCE PREVENTION TRAINING, A MULTI-DAY TRAINING FOR EVERY SINGLE LIBRARY STAFF MEMBER. SO TO CONCLUDE, WE JUST WANT TO INVITE YOU TO ALL GET INVOLVED. ESPECIALLY THIS WEEK OR NEXT WEEK, BUT ALWAYS. SO PLEASE FEEL FREE TO ATTEND PROGRAMS, JOIN OUR EMAIL LIST, FOLLOW US ON SOCIAL, AND PLEASE DO LET US KNOW IF YOU HAVE ANY QUESTIONS.

>> MAYOR A. ISHII: THANK YOU. THANK YOU SO MUCH. [APPLAUSE] OKAY. I'M GOING TO WALK OVER AND GIVE THIS TO YOU IN A SECOND, BUT I WANT TO SAY THANK YOU FOR YOUR PRESENTATION AND ALL THE WORK THAT YOU DO IN THE COMMUNITY. I GOT A GREAT TOUR OF THE LIBRARY, SO IF YOU HAVEN'T BEEN ON AN OFFICIAL TOUR, PLEASE CHECK IT OUT. THANK YOU SO MUCH FOR BEING BENEFICIAL TO OUR COMMUNITY. [APPLAUSE]

>> MAYOR A. ISHII: THANK YOU. THANKS, EVERYONE. WE ALSO HAVE AN ADJOURNMENT AND MEMORY, AND I'M GOING TO LET COUNCILMEMBER TREGUB INTRODUCE THIS.

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>> I. TREGUB: THANK YOU SO MUCH, ADAM MAYOR. ALTHOUGH WE PREVIOUSLY ADJOURNED IN MEMORY OF MARTY SCHIFFENBAUR, I HAVE AN IN-MEMORY STATEMENT TO READ THIS EVENING. BEFORE I READ IT, I WANT TO NOTE THAT MY STAFF AND I HAVE BEEN IN VERY CLOSE COMMUNICATION WITH MARTY'S WIDOWER. WHILE SHE'S NOT HERE THIS EVENING, SHE ASKED US TO PROCEED WITH -- SHE ALSO ASKED US TO SHARE A RECORDING OF THIS MEETING WITH HER, WHICH MY STAFF WILL DO AS SOON AS IT'S AVAILABLE. TODAY, WE REMEMBER AND HONOR THE LIFE OF MARTY SCHIFFENBAUR, A BELOVED MEMBER OF OUR BERKELEY COMMUNITY WHO PASSED AWAY ON FEBRUARY 6, 2025, AT THE AGE OF 86. MARTY'S LEGACY WILL FOREVER BE ETCHED IN THE HISTORY OF OUR CITY AND HIS CONTRIBUTIONS CONTINUE TO IMPACT THE LIVES OF ALL WHO CALL BERKELEY HOME. MARTY WAS A TIRELESS ACTIVIST, DEDICATING TO MAKING BERKELEY A MORE EQUITABLE AND COMPASSIONATE PLACE FOR ALL. HIS WORK AS A CO-AUTHOR OF BERKELEY SPRINT CONTROL LEGISLATION STANDS AS ONE OF HIS SIGNIFICANT ACCOMPLISHMENTS ENSURING THAT THE CITY REMAINED ACCESSIBLE AND AFFORDABLE TO ITS DIVERSE POPULATION. HIS EFFORTS WERE INSTRUMENTAL IN PRESERVING THE VERY OF OUR COMMUNITY ALLOWING PEOPLE FROM ALL WALKS OF LIFE TO LIVE AND THRIVE IN OUR CITY. AND LET ME JUST BE AGAIN VERY CLEAR AND PUT A FINER POINT ON THIS. WITHOUT MARTY'S EFFORTS, VERY LIKELY NOT BE AN ELECTED BERKELEY WEB BOARD, LET ALONE ONE OF THE STRONGEST IF NOT THE STRONGEST FORMS OF JUST CAUSE

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EVICTION AND RENT CONTROL ORDINANCES IN THE NATION. MARTY WAS, IN ADDITION TO HIS WORK ON RENT CONTROL, MARTY PLAYED A CRUCIAL ROLE IN DRAFTING A CHARTER AMENDMENT THAT SHIFTED OUR MUNICIPAL ELECTION DATE TO COINCIDE WITH THE GENERAL ELECTION. THIS CHANGE LED TO A MORE INCLUSIVE VOTER TURNOUT, EMPOWERING STUDENTS, TENANTS, AND LOW-INCOME VOTERS AND USHERING IN A NEW ERA OF PROGRESSIVE POLICIES IN BERKELEY. IN FACT, AT ONE POINT THANKS TO HIS EFFORT WE HAD AN ALL-FEMALE CITY COUNCIL. MARTY'S CONTRIBUTION -- YEAH. MARTY'S CONTRIBUTIONS TO THE CITY WERE NOT LIMITED TO POLITICS. HIS PASSION FOR SOCIAL JUSTICE AND HIS DEEP KNOWLEDGE OF ECONOMICS HELPED TO SHAPE OUR ECONOMIC COLLECTIVIST THROUGH HIS WORK INCLUDING HIS ACTIVISM FOR HOME PRICE CAPS AND HIS INVOLVEMENT IN THE COUNTERCULTURE MOVEMENT IN THE 1960'S. MARTY MADE A LASTING IMPACT ON NOT ONLY BERKELEY, BUT THE BROADER MOVEMENT FOR SOCIAL EQUITY ACROSS THE COUNTRY AND WORLD. MARTY'S WARMTH, GENEROSITY TOUCHED EVERYONE HE MET. HE LIVED A LIFE OF JOY FILLED WITH SPONTANEITY AND LAUGHTER AND WAS ALWAYS READY TO LEND A HAND AND OFFER SUPPORT TO HIS FRIENDS AND COMMUNITY. HIS COMMITMENT TO KINDNESS, EMPATHY, ACTIVISM, AND HIS DEVILISH SENSE OF HUMOR WAS A SHINING EXAMPLE FOR US ALL. LET US REMEMBER MARTY SCHIFFENBAUR, NOT ONLY FOR HIS REMARKABLE CONTRIBUTIONS TO OUR CITY, BUT ALSO FOR THE INCREDIBLE PERSON HE WAS, A MAN WHO THROUGH HIS ACTIONS AND THROUGH WHO HE WAS MADE

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THE WORLD A BETTER PLACE. MAY HIS MEMORY CONTINUE TO INSPIRE US IN THE WORK WE DO FOR THE PEOPLE OF BERKELEY AND BEYOND. REST IN POWER, MARTY. YOU HAVE BEEN AND WILL ALWAYS BE AN INSPIRATION TO OUR BELOVED COMMUNITY. [APPLAUSE]

>> MAYOR A. ISHII: THANK YOU SO MUCH, COUNCILMEMBER. I APPRECIATE YOU ADJOURNING IN HIS HONOR AND ALSO WORKING WITH HIS FAMILY TO MAKE SURE THEY WERE ABLE TO SEE THAT. I BELIEVE THAT IS THE END OF OUR CEREMONIAL ITEMS. SO I WILL NOW GO OVER TO CITY MANAGER COMMENTS IF THERE ARE ANY.

>> ITEM 12 ON YOUR AGENDA TONIGHT IS THE DECISION FOR THE LANDMARKS COMMITTEE DESIGNATION OF THE CITY LANDMARK AND THAT ACTION HAS BEEN APPEALED. WE WILL SCHEDULE A PUBLIC MEETING AT A LATER MEETING.

>> MAYOR A. ISHII: I DON'T KNOW IF OUR CITY AUDITOR IS HERE SHE HAS ANY COMMENTS. SHE ONLINE?

>> SHE DOESN'T HAVE HER HAND RAISED IF SHE IS. I DON'T SEE HER.

>> MAYOR A. ISHII: OKAY. WE CAN COME BACK TO HER LATER IF SHE DOES HAVE COMMENTS. SO NOW WE ARE GOING TO BE MOVING ON TO PUBLIC COMMENT ON NON-AGENDA MATTERS. THANK YOU. STOP

>> CITY CLERK: THE FIVE IN PERSON SPEAKERS ARE ROBERT HOLCOMB, JERMAINE DAWDEL, STEVE TRACY, CHRISTIAN JAZENSKI, AND JANICE JANE. COME UP IN ANY ORDER. JUST COME UP AND LINEUP ALONG HERE. WHOEVER IS READY CAN SPEAK FIRST.

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>> MAYOR A. ISHII: JUST SO FOLKS KNOW THIS PUBLIC COMMENT ON NON-AGENDA MATTERS. GO AHEAD WHEN YOU'RE READY.

>> PUBLIC SPEAKER: GOOD EVENING, MAYOR ISHII, AND COUNCIL. THANK YOU SO MUCH FOR GIVING ME THIS OPPORTUNITY. I AM ASKING YOU ALL TO SERIOUSLY CONSIDER RAISING THE HOUSING MITIGATION FEE. IN THE CURRENT POLITICAL CLIMATE, IS HIGHLY UNLIKELY WE'RE GOING TO GET STATE AND FEDERAL FUNDS DELIVERED AGAINST OUR AFFORDABLE HOUSING TRUST FUND AND THE FACT THAT EVERY DEVELOPER OPTS AT LEAST IN PART TO PAY THE IN LIEU FEE INSTEAD OF PAYING THE 20% BELOW MARKET RATE UNITS IN OUR PROJECTS MEANS THAT OUR FEE IS TOO LOW. I'M SURE YOU WILL ALL TALK TONIGHT ABOUT HOW MUCH WE NEED HOUSING, BUT PLEASE KEEP IN MIND THAT EVERY CYCLE BERKELEY FOLLOWS FAR SHORT OF OUR LOW-INCOME HOUSING GOALS WHILE GREATLY EXCEEDING OUR MARKET RATE GOALS. IT'S TIME TO SIGNIFICANTLY RAISE THE FEED TO INCENTIVIZE PUTTING UNITS INTO EVERY BUILDING. THIS IS SOMETHING YOU HAVE THE POWER TO CHANGE AND I HOPE YOU'LL DO IT RIGHT AWAY. THANK YOU.

>> MAYOR A. ISHII: THANK YOU FOR YOUR COMMENT. NEXT.

>> PUBLIC SPEAKER: GOOD EVENING, MAYOR, AND COUNCIL MEMBERS. NAME IS JERMAINE DAWDEL, I'M A CARPENTER FOR 713. I WANT TO SPEAK ABOUT THE IMPORTANCE OF A LIVABLE WAGE, HEALTH BENEFITS, HIRING LOCALLY, AND THE PARTNERSHIP PROGRAMS. IS A COMFORTER THAT HAS COMPLETED THE IF MENTORSHIP PROGRAM, I UNDERSTAND THE

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TRAINING AND BENEFITS OF UNION AND UNION JOBS. THEY HAVE PROVIDED ME AND MY FAMILY WITH THE OPPORTUNITY TO HAVE A HOME, HEALTHCARE, AND SUCCESSFUL FUTURE. ALSO WHILE IN MY CAREER I HAVE BEEN FORTUNATE TO WORK IN THE COMMUNITIES I WORK IN, WHICH IS WHY I SUPPORT HIRING LOCALLY. I BELIEVE IT GIVES AN INDIVIDUAL A SENSE OF PRIDE IN THEIR COMMUNITY AND ECONOMIC ENVIRONMENT AS WELL. SO THE NEXT YOUNG PERSON GROWING UP CAN SEE A PRODUCTIVE MEMBER OF SOCIETY WITH A BRIGHTER CAREER AND FUTURE. THEY CAN PROVIDE FOR THEIR FAMILY AS WELL. TO CLOSE, WHEN THERE IS A PROJECT, PLEASE HAVE A RESPONSIBLE CONTRACTOR AND DEVELOPER WHEN BUILDING IN BERKELEY. THANK YOU VERY MUCH.

>> MAYOR A. ISHII: THANK YOU. THANKS FOR YOUR COMMENTS. [APPLAUSE] NEXT PERSON.

>> PUBLIC SPEAKER: HELLO, MAYOR AND COUNCIL MEMBERS, VICE MAYOR BARTLETT. MY NAME IS ROBERT HOLCOMB. I'M A MAYOR OF DISTRICT 3 AND I'M HERE TONIGHT TO SHARE THE EXCRUCIATINGLY HARD EXPENSIVE CHANGING THE WINDOWS IN MY HOUSE. IT WAS DECEMBER 2024 WHEN I APPLIED FOR A PERMIT TO CHANGE THE TWO FRONT WINDOWS ON MY HOUSE AND I WAS TOLD BECAUSE MY HOUSE IS A FEW FEET TO CLOSE TO THE STREET THAN ZONING ALLOWS FOR MY $10,000 PROJECT THE WINDOWS AND INSTALLATION I WAS GOING TO HAVE TO PAY $5000 IN PERMITTING COSTS AND GO THROUGH THE SIX-MONTH ADMINISTRATIVE USE PROCESS. I WAS TOLD THERE WAS NO RECOURSE. THANKFULLY, I REACHED OUT TO

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COUNCILMEMBER BARTLETT, WHO WAS ABLE TO CONNECT ME WITH THE PLANNING DEPARTMENT AND TOGETHER WE WORKED AND THEY AGREED TO WAIVE THE FEES. HOWEVER, A MONTH LATER I STILL CONTINUE TO STRUGGLE WITH THE PAPERWORK AND I'M TOLD AS OF TODAY THAT AND STILL A MONTH OUT TO GET MY PERMIT.

>> MAYOR A. ISHII: THANK YOU SO MUCH FOR YOUR COMMENTS. I APPRECIATE --

>> CITY CLERK: REFER THIS TO THE CITY MANAGER.

>> MAYOR A. ISHII: THANK YOU. WAS THERE ANOTHER CARD FOR IN PERSON COMMENT?

>> CITY CLERK: WE HAVE STEVE TRACY AND CHRISTIAN JAZENSKI.

>> PUBLIC SPEAKER: HELLO, CITY COUNCIL. I AM ROBERT HOLCOMB'S HUSBAND AND I CAN JUST ATTEST TO THE FRUSTRATION OF THE PROCESS OF GOING THROUGH CHANGING OUR WINDOWS WITH THE CITY. ONE DAY I ALMOST WAS IN TEARS. IT WAS JUST SO FRUSTRATING. ANYTHING YOU CAN DO TO SIMPLIFY THAT PROCESS. I APPRECIATE THAT. THANK YOU.

>> MAYOR A. ISHII: THANK YOU FOR YOUR COMMENT. [APPLAUSE] I LOVE HOW SUPPORTIVE OUR AUDIENCE IS TODAY. THANK YOU. GOOD ENERGY. ARE THERE FOLKS ONLINE?

>> CITY CLERK: YES. FIRST COMMENTER, AGAIN, THIS IS NON-AGENDA PUBLIC COMMENT. THIS IS MARC HEDLUND.

>> PUBLIC SPEAKER: THANK YOU. THIS IS MARC HEDLUND AND I'M A RESIDENT OF DISTRICT 8. I JUST WANTED TO SAY THANK YOU TO THE

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TRANSPORTATION AND PUBLIC WORKS STAFF FOR THE HUGE IMPROVEMENTS LAST WEEK AND ASHBY, WHICH IS A BIKE BOULEVARD CROSSING IN MY NEIGHBORHOOD. THIS INTERSECTION HAS BEEN ROUGH FOR PEDESTRIANS AND BICYCLISTS FOR MANY YEARS AND STAFF DID AN INCREDIBLE JOB. THE LIGHT TIMING IS BETTER, THE SIGNS EXPLAINING THE LIGHT TO DRIVERS ARE BETTER, AND AUTOMATIC BIKE DETECTION IS WORLDS BETTER. IT IS A WHOLESALE IMPROVEMENT AND I APPRECIATE IT A TON. IN YEARS PAST STAFF HAS BEEN BEATEN UP A LOT OVER TRANSPORTATION PROJECTS AND I JUST WANTED TO MAKE SURE TO ACKNOWLEDGE THEIR WORK IN FRONT OF THE FULL COUNCIL. THEY DO GREAT THINGS FOR BERKELEY AND DESERVE SUPPORT. THANK YOU.

>> MAYOR A. ISHII: THANKS SO MUCH, MARK. WE DON'T GET TO HEAR THOSE KINDS OF COMMENTS OFTEN, SO THANK YOU VERY MUCH. WE DO HAVE EXCELLENT STAFF.

>> CITY CLERK: OKAY. NEXT IS ROB. ROB, YOU SHOULD BE ABLE TO UNMUTE. LAST CALL FOR ROB. OKAY. WE'LL MOVE ON TO THE NEXT PERSON. NEXT SPEAKER NON-AGENDA IS HEALTHY BLACK.

>> PUBLIC SPEAKER: THIS IS AYANA DAVIS. I AM HERE REPRESENTING MYSELF THIS EVENING. I JUST WANTED TO BRING IT TO THE COUNCIL'S ATTENTION THAT TODAY IS THE INTERNATIONAL DAY OF REMEMBRANCE OF THE VICTIMS OF SLAVERY AND THE TRANSATLANTIC SLAVE TRADE. I WANT TO HONOR THOSE ANCESTORS THAT WERE ENSLAVED IN THIS AREA WHO HAVE BEEN WRITTEN OUT OF HISTORY AND THE 60 MILLION DOCUMENTED

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BY W.E.B. DUBOIS AND ENCOURAGED TO BRING THIS DAY ON THE CALENDAR SO WE CAN HAVE REMEMBRANCE OF OUR ANCESTORS WHO PERISHED BY THE GENOCIDE AND WHO WITHIN AND THOSE WHO SURVIVED AND UNDERWENT 400 YEARS OF CHATTEL SLAVERY AND CONTRIBUTED TO THE WEALTH OF THIS COUNTRY.

>> MAYOR A. ISHII: THANK YOU. YOUR TIME IS UP, BUT I REALLY APPRECIATE YOU BRINGING THAT TO US TODAY.

>> CITY CLERK: OKAY. WE CAN TRY ROB ONE MORE TIME. ROB, YOU SHOULD BE ABLE TO UNMUTE. OKAY. DANIEL BROWNSON.

>> PUBLIC SPEAKER: HI, CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> PUBLIC SPEAKER: OKAY. SO I'M SURE EVERYONE IS AWARE THAT THE ADMINISTRATION IS USING I.C.E., BASICALLY, AS THEY ARE JUST GESTAPO AND HAS DISAPPEARED -- AND ARE NOW SEEKING TO DEPORT A KOREAN AMERICAN YUNSIO CHO FOR HER WORK IN RETALIATION EXERCISING HER RIGHT TO FREE SPEECH. I WOULD CALL ON THE COUNCIL TO PASS A RESOLUTION CONDEMNING THE USE OF I.C.E. TO DISAPPEAR PEOPLE FOR SPEAKING OUT ABOUT THEIR PRINCIPLES. THANK YOU.

>> CITY CLERK: THANK YOU.

>> MAYOR A. ISHII: THANKS SO MUCH. I THINK THAT THAT'S IT FOR ONLINE, BUT IF THERE ARE OTHER FOLKS THAT ARE HERE THEY WOULD LIKE TO SPEAK ON NON-AGENDA ITEMS, WE GOT TWO MORE SPEAKERS. SPOTS. OKAY. I SEE NO MOVEMENT. IS ANYONE ELSE INTERESTED? I

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THINK THAT THIS --

>> CITY CLERK: YES, COME FORWARD, PLEASE.

>> MAYOR A. ISHII: IF YOU'RE INTERESTED IN GIVING A COMMENT --

>> CITY CLERK: THAT'S WHY WE DON'T HAVE PEOPLE STANDING ALONG THE WALLS SO WE CAN SEE WHO IS INTERESTED IN GIVING A COMMENT AND WHO IS NOT. THANK YOU.

>> PUBLIC SPEAKER: CONGRATULATIONS, NEW MAYOR.

>> MAYOR A. ISHII: GO AHEAD AND PULL THE MIC DOWN SO WE CAN HEAR YOU BETTER. THANK YOU.

>> PUBLIC SPEAKER: I'M A SHORTY. ANYWAY, I'VE LIVED IN BERKELEY SINCE THE EARLY 70S. EXCUSE ME. THIS IS MY DOG, BELLA. SHE'S A LITTLE -- SHE JUST LOST HER SIGNIFICANT OTHER, SO SHE'S A LITTLE HYPERACTIVE. SORRY. I HAVE THREE QUICK ITEMS JUST TO BRING UP. THAT ARE VERY ALARMING TO ME IN MY EXPERIENCE BEING IN BERKELEY. IN THE LAST FEW YEARS ONE OF THEM IS HUMAN TRAFFICKING. HUMAN SEX TRAFFICKING. I WAS ALMOST A VICTIM OF IT. ABOUT TWO MONTHS AGO AT COLE'S COFFEE ON COLLEGE AVENUE ACROSS FROM SAFEWAY. IT SEEMS TO BE A SPOT WHERE IT'S HAPPENING BECAUSE ABOUT -- DOES THAT MEAN MY TIME IS UP?

>> MAYOR A. ISHII: I'M SORRY, YOUR TIME IS UP.

>> PUBLIC SPEAKER: I HAVE TWO OTHER QUICKIES.

>> MAYOR A. ISHII: SORRY, HOLD ON ONE SECOND.

>> PUBLIC SPEAKER: OKAY, THANK YOU.

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>> MAYOR A. ISHII: CAROL IS GIVING YOU A MINUTE. GO ON.

>> PUBLIC SPEAKER: THE FOR-PROFIT EMERGENCY VEHICLES NOW ARE SHACKLING WOMEN IN BERKELEY AND OAKLAND. IT HAPPENED TO A GIRLFRIEND OF MINE, SO I THOUGHT YOU MIGHT WANT TO KNOW ABOUT THAT. THE POLICE DEPARTMENT IN CONJUNCTION WITH THE EMC AND FOR-PROFIT EMC TRUCKS ARE SHACKLING WOMEN. I DON'T KNOW ABOUT MEN. BUT THAT'S PRETTY EXTREME. AND THEN THE OTHER ONE IS CALIFORNIA STATE REDWOOD TREES ARE BEING CUT DOWN WITH IMPUNITY ILLEGALLY ALL OVER BERKELEY. I CAN SEE THE REMNANTS OF THAT HAPPENING AND I'M WORKING TO TRY AND PREVENT THAT IN MY NEIGHBORHOOD. BUT I GET NO SUPPORT FROM PARKS AND REC ABOUT THAT ISSUE OF. THAT'S ALL I HAVE TO SAY. THANK YOU.

>> MAYOR A. ISHII: THANK YOU FOR YOUR COMMENTS. I APPRECIATE IT. DO WE HAVE ANOTHER SPEAKER HERE?

>> CITY CLERK: THAT WAS 10.

>> MAYOR A. ISHII: THAT WAS 10? I'M SO SORRY, WE MISCOUNTED. I MISCOUNTED. WE WILL BE MOVING ON TO THE NEXT THING. OKAY. SO WE ARE NOW MOVING ON TO THE CONSENT CALENDAR. COMMENTS FROM COUNCIL? ON CONSENT? AND IF NOT, I WOULD LIKE TO MOVE -- DID YOU -- I'M SORRY. GO AHEAD, COUNCILMEMBER TREGUB. YOU CAN GO FIRST.

>> I. TREGUB: CERTAINLY. THANK YOU, MADAM MAYOR. YEAH, I'M HAPPY TO EITHER MOVE OR SECOND A MOTION TO I THINK I'M GOING TO ASK IF WE COULD MOVE ITEM 10B TO THE CONSENT CALENDAR. AND THEN AND --

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SORRY, 10B, THE STAFF RECOMMENDATION, WHICH IS THE COMPANION REPORT ALLOCATING $2,294,774 OVER TWO YEARS FY 2026 AND FY 2027 TO REDUCE CONSUMPTION AND HEALTH IMPACTS OF SUGAR SWEETENED BEVERAGES. I HAVE -- I WANTED TO THANK MY OFFICE HAS HAD MEETINGS WITH CURRENT AND FORMER MEMBERS OF THAT COMMISSION AND WE HAVE ALSO BEEN IN COMMUNICATION WITH STAFF AND I REALLY WANT TO PASS ALONG MY APPRECIATION FOR ALL OF THE WORK THAT HAS BEEN DONE TO COME TOGETHER TOWARDS A RECOMMENDATION AND THE COMMITMENT OF STAFF TO WORK WITH ENHANCED TRANSPARENCY WITH THE COMMISSION. THIS IS A MUCH MORE COLLABORATIVE PROCESS THAN WHAT MY UNDERSTANDING HAS BEEN OF PAST PROCESSES. SO I REALLY WANT TO COMMEND EVERYONE INVOLVED AND THANKED THEM. I ALSO WANTED TO STATE MY SUPPORT FOR THIS IS THE SECOND READING ON PROPOSED AMENDMENTS TO THE BUILDING EMISSIONS SAVINGS ORDINANCE, WHICH IS ITEM NUMBER ONE. EVEN THOUGH THE ORDINANCE IS NOT AS STRONG AS I WOULD'VE LIKED FOR IT TO BE. I DO THINK IT IS IMPORTANT THAT WE STRIKE A BALANCE BETWEEN BEING UNDERSTANDING AND COMMITTED TO COMBATING THE IMPACTS OF CLIMATE CHANGE AND DEALING WITH THE CONTINUED HOUSING AFFORDABILITY CRISIS INCLUDING THE HOUSING OWNERSHIP AN AFFORDABILITY CRISIS IN OUR CITY, AND I DO THINK THESE AMENDMENTS ARE A FIRST STEP TOWARDS THAT. I SUPPORT BOTH ITEMS AND WOULD LIKE TO MOVE THE CONSENT CALENDAR.

>> MAYOR A. ISHII: DID YOU HAVE A COMMENT, VICE MAYOR BARTLETT?

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>> B. BARTLETT: YES, YES. THANK YOU, MADAM MAYOR. I JUST WANTED TO CALL ATTENTION TO ITEM NUMBER TWO ON THE CALENDAR. THIS IS ADOPT AN ORDINANCE TO BRAVE IT THE SALE AND USE OF PRICING ALGORITHMS TO SET RENTS AND MANAGE OCCUPANCY LEVELS FOR RESIDENTIAL DWELLING UNITS. IT'S VERY IMPORTANT. I THINK THIS SERVES AS A FIRST STEP TO MANY MORE EFFORTS TO ACHIEVE ETHICAL ALIGNMENT WITH EMERGING TECHNOLOGY. VERY BIG STUFF. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. ANY OTHER COMMENTS? COUNCILMEMBER BLACKABY.

>> B. BLACKABY: THANKS, MADAM MAYOR. ALSO WANTED TO COMMENT ON ITEM NUMBER ONE AND APPRECIATE THE WORK FROM CITY OF CURRENT ATTORNEY AND PLANNING DIRECTOR ON IMPLEMENT IN THE REFERRAL THAT WE HAD MADE TO AFFECT THE 50/50 SPLIT BETWEEN BUYER AND SELLER. APPRECIATE THE QUICK AND GOOD WORK TO BE RESPONSIVE TO THAT DISCUSSION WE HAD AND WAS A PLEASURE TO WORK WITH COUNCILMEMBER LUNAPARRA AND APPRECIATE THE INDULGENCE ON WE MADE A SLIGHT CLARIFICATION ON THE DEFINITION OF COORDINATED PRICING ALGORITHM, WHICH IS A MORE ACCURATE DESCRIPTION I THINK OF WHAT WE WERE TRYING TO STOP. AGAIN, THANKS TO THE CITY ATTORNEY AND OUR TEAM FOR COLLABORATING ON THAT. OTHERWISE, I SUPPORT THE CONSENT CALENDAR'S. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: I DID WANT TO THANK THE CITY ATTORNEY'S OFFICE

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FOR THEIR WILLINGNESS TO WORK WITH US TO DEVELOP THOSE AMENDMENTS TO THE B.E.S.O. ORDINANCE. I ALSO WANT TO APPRECIATE THERE IS AN ITEM HERE, IT'S PROCEDURAL RELATED TO AN E.I.R., BUT IT SO WE CAN HAVE PUBLIC RESTROOMS AT THE TOM BATES REGIONAL SPORTSCENTER, WHICH I KNOW IS SO IMPORTANT FOR US FOR RECREATIONAL USERS, SO I WANTED TO NOTE THAT AS WELL AND APPRECIATE THAT PROCESS MOVING FORWARD. YOU SO MUCH.

>> MAYOR A. ISHII: THANK YOU. OTHER COMMENTS FROM COUNCIL? SINCE FORMER MAYOR TOM BATES IS IN THE AUDIENCE, I DO HOPE HE WILL HAVE COMMENTS FOR US. I JUST WANT TO MAKE SURE THERE'S NO OPPOSITION MOVING 10B TO CONSENT. OKAY. GREAT. I WILL OPEN IT UP THEN FOR COMMENT ON CONSENT CALENDAR.

>> CITY CLERK: WHO WAS THE SECOND?

>> MAYOR A. ISHII: I HEARD COUNCILMEMBER HUMBERT, IS THAT CORRECT?

>> CITY CLERK: ALL RIGHT.

>> PUBLIC SPEAKER: MADAM MAYOR AND MEMBERS OF THE COUNCIL, THANK YOU FOR THE OPPORTUNITY TO SPEAK BRIEFLY ABOUT THE SPORTS FIELD. FIRST OF ALL -- EXCUSE ME. I HAVE TO SAY I WAS INVOLVED WITH IT FOR OVER 18 YEARS AND DURING THAT TIME THERE WERE NUMEROUS PEOPLE INVOLVED. NOT THE LEAST OF WHICH WERE PEOPLE HERE AND THE CITY OF BERKELEY WHO FOUGHT FOR US TO MAKE THIS SPORTS FIELD. IT WASN'T SUPPOSED TO BE THAT WAY. IT WAS ORIGINALLY PEOPLE WHO

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OWNED THE PROPERTY WANTED IT TO BE A SHOPPING CENTER ON WHAT IS NOW THE MEADOW. BERKELEY CITIZENS VOTED THAT DOWN. THEN THEY SAID WE WANT TO HAVE A HIGH-RISE APARTMENT THERE. THREE HIGH-RISES AT THE TIME THEY WERE GOING TO BE TALLER THAN CERTAIN TOWER. SO IT WAS INCREDIBLY BAD. THEN WE WENT TO THE CITY OF EMERYVILLE AND SAID WE ARE GOING TO BUILD A HIGH-RISE ON EMERYVILLE. WE STOPPED THAT AT B.C.D.C.. IT WAS A LONG BATTLE. TWO BONDS PAST THE STATE BONDS. THE EAST MAY REGIONAL PARKS, THANK GOD FOR THE SPAY REGIONAL PARKS BECAUSE IT TURNS OUT, I DIDN'T KNOW THIS AT THE TIME, BUT IT TURNS OUT THE STATE PARKS DO NOT HAVE ACTIVE RECREATION AT ANY OF THE STATE PARKS. SO WE HAD TO BRING THE EAST BAY REGIONAL PARKS IN IN ORDER FOR US TO HAVE ACTIVE ACTIVITY. SO THEN WE ALSO WENT BACK TO THE EAST BAY REGIONAL PARKS AND SAID YOU GOT TO PUT UP A BOND TO HELP PAY FOR THIS. SO WE GOT $15 MILLION FROM THE EAST BAY REGIONAL PARK, TWO OTHER BONDS, AND THEN IT WAS CALLED CATULLUS, WHICH THE RAILROAD MERGED TO CALL CATULLUS, AND THEN TO GET TO AND THEY SAID WE ARE NOT SELLING. WE DON'T CARE. SO I THEN PUT IN LEGISLATION, WHICH PUT THE EAST BAY REGIONAL PARK DISTRICT IN CHARGE OF MAKING THE --

>> MAYOR A. ISHII: DOES SOMEONE HAVE ANOTHER MINUTE TO GIVE HIM? A MINUTE OVER HERE FOR YOU. GO AHEAD.

>> PUBLIC SPEAKER: IT'S A LONG HISTORY.

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>> MAYOR A. ISHII: GO AHEAD.

>> PUBLIC SPEAKER: WE GOT EAST BAY REGIONAL PARKS IN TO NOT ONLY BE AN ACTIVE PARTICIPANT IN PURCHASING, BUT ALSO TO BE ABLE TO CONDEMN THE PROPERTY. SO THEN WE HAD SOME CLOUT, BUT THE STATE WOULD NON-CONDEMN PROPERTY, WHICH THEY STILL DON'T. WE ENDED UP GETTING THEM. THE LAST STRAW WAS WE WENT TO THE CITIZENS OF BERKELEY AND EMERYVILLE AND ALBANY AND PUT ON THE BALLOT TO MAKE IT A PARK. SO THEY DID. THE VOTERS ALL VOTED TO MAKE IT A PARK. SO CATALYSIS AT A PIECE OF PROPERTY THAT WAS WORTH NOTHING IN TERMS OF WHAT THEY HAD IN MIND. IT WAS A LONG STRUGGLE. SCOTT FERRIS PLAYED A BIG PART IN THIS. SORRY THAT SCOTT IS NOT HERE. HE ASKED ME TO COME DOWN AND SPEAK ABOUT IT. THERE'S GOING TO BE PICKLE BALL COURTS AND CHAMPIONSHIP. I DON'T PLAY PICKLE BALL, BUT MAYBE I CAN LEARN. PICKLE BALL COURTS. THE BEST PART IS THEY ARE GOING TO HAVE A SMALLER SOCCER FIELD FOR KIDS EIGHT AND UNDER. SO IT'S GOING TO BE GREAT. SO THANK YOU.

>> MAYOR A. ISHII: THANK YOU. THANK YOU SO MUCH TO FORMER MAYOR TOM BATES. VERY EXCITING UPDATE.

>> PUBLIC SPEAKER: I WANT TO SPEAK IN FAVOR OF ITEM 2. I UNDERSTOOD THE DIFFICULTIES WITH ENFORCEMENT ARGUMENT, BUT THAT ISN'T A REASON TO NOT PASS SOMETHING AND DECLARE SOMETHING AS A LEGAL AND TAKE THE POSITION, TAKE THE STAND FOR SOMETHING THAT IS SO IMPORTANT. I HAVE CONCERNS ABOUT THE REMEDIES AND

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ENFORCEMENT. IT'S VERY SIMILAR TO THE SOURCE OF INCOME DISCRIMINATION ORDINANCE WHERE WE HAVE AN ORDINANCE ON THE BOOKS SINCE 2017, BUT THERE ARE ENFORCEMENT ISSUES. HERE WE HAVE THE EXACT SAME REMEDIES FOR THE CITY ATTORNEY TO DO SOMETHING, WHICH IS COMPLETELY UNREALISTIC TO EXPECT OUR CITY ATTORNEY TO TAKE ON THESE CASES IT WAS ALREADY OVERBURDENED. SECOND, THERE IS THE PRIVATE RIGHT OF ACTION, BUT WHERE ARE THE ATTORNEYS THAT ARE GOING TO TAKE ON CASES LIKE THIS? I DON'T KNOW IF IT'S POSSIBLE WHEN WE CONTRACT WITH OUR LEGAL C.B.O.S TO ARRANGE FOR THEM OR GET AGREEMENT FROM THEM TO TAKE THESE KIND OF CASES ON AND TAKE SOURCE OF INCOME DISCRIMINATION CASES. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. ANY OTHER COMMENTS ON CONSENT ITEMS OR INFORMATION ITEMS ONLY? IN THE ONLINE?

>> CITY CLERK: ONE ONLINE COMMENTER, DANIEL BROWNSON ON THE CONSENT CALENDAR.

>> PUBLIC SPEAKER: HELLO. I WOULD LIKE TO VOICE MY SUPPORT FOR ITEM 2. BANNING THE USE OF ALGORITHMIC PRICE FIXING. VACANCY SETTING. THIS IS A GOOD MEASURE TO PREVENT YOU KNOW, DESPITE THE ISSUES WITH DIFFICULTY ENFORCEMENT, IT'S A GOOD MEASURE TO PREVENT ALREADY UNAFFORDABLE HOUSING FROM BECOMING EVEN MORE UNAFFORDABLE AND UNITS BEING VACANT TO CREATE ARTIFICIAL SCARCITY. FURTHERMORE, IN NEW CONSTRUCTION THERE SHOULDN'T BE A FEE THAT DEVELOPERS CAN PAY TO MAKE AFFORDABLE HOUSING. THEY

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SHOULD JUST HAVE TO DO IT.

>> MAYOR A. ISHII: OKAY. THANKS FOR YOUR COMMENT. ANYMORE ONLINE? OKAY. THANK YOU SO MUCH. COMING BACK TO COUNCIL, IS THERE A MOTION TO APPROVE THE CONSENT CALENDAR?

>> I. TREGUB: SECOND.

>> MAYOR A. ISHII: SECOND BY COUNCILMEMBER HUMBERT. CAN WE APPROVE THIS UNANIMOUSLY? OKAY. THE CONSENT CALENDAR IS APPROVED UNANIMOUSLY. THANKS, EVERYBODY. JUST FOR FOLKS IN CASE YOU WERE HERE FOR ANY OF THE ITEMS 10, THEY ARE BOTH BASICALLY REMOVED FROM OUR ACTION CALENDAR, JUST SO FOLKS KNOW. I PROBABLY SHOULD'VE SAID THIS EARLIER, BUT I JUST WANT TO SAY THAT OUR COMMISSION HAS AGREED TO THE REPORT FROM OUR STAFF. JUST WANTED TO MAKE SURE THAT WAS CLEAR. WE ARE GOING TO MOVE ON TO THAT ACTION CALENDAR, WHICH STARTS ON ITEM 8, ESTABLISHMENT OF THE ZONING DISTRICT ASSOCIATED GENERAL PLAN AND WEST BERKELEY PLANS ENVIRONMENTAL IMPACT REPORT.

>> SORRY.

>> DO YOU HAVE A ZOOM LINK?

>> MAYOR A. ISHII: I'M SO SORRY, WE'VE ACTUALLY MOVED FORWARD ALREADY ON THIS ITEM. I'M REALLY SORRY -- I'M REALLY -- I'M SO SORRY, BUT IT'S BEEN, WE'VE ALREADY MOVED ON IT. WE'VE ALREADY VOTED. MY APOLOGIES. AND I WAS ALSO JUST TOLD BY A COUNCILMEMBER THAT I WAS MISTAKEN. IT'S POSSIBLE THAT NOT ALL COMMISSIONERS

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WERE SUPPORTIVE, BUT I DO KNOW OUR COMMISSION CHAIR WAS, SO. PLEASE GO AHEAD.

>> THANK YOU. GOOD EVENING, MADAME MAYOR, COUNCIL MEMBERS. I'M DIRECTOR OF -- I'M GOING TO GIVE THE INTRODUCTION WHILE SHE DOES THAT. I AM JOINED AT THE STAFF TABLE BY ELEANOR HOLLANDER, MANAGER OF ECONOMIC DEVELOPER, ASHLEY JAMES, SENIOR MANAGER AND OR POLICY DIVISION, AND -- WITH LSA, WHICH IS A FIRM THAT HAS ASSISTED US WITH ENVIRONMENTAL REVIEW. WE ALSO HAVE TERESA WALLACE AND LAUREN PEACHTREE IN THE AUDIENCE AND I WANT TO RECOGNIZE ANNE HIRSCH AND -- WHO SERVED AS THE SUPERVISING PLANNER, THE SUPERVISING PRINCIPAL FOR THIS PROJECT. SO WE ARE STILL -- SO THRILLED TO BE HERE THIS EVENING TO RECOMMEND AN ORDINANCE THAT WILL CREATE A NEW ZONING DISTRICT IN WEST BERKELEY, THE MANUFACTURING, RESEARCH DISTRICT ASSOCIATED AMENDMENTS TO, AND ALSO A RESOLUTION ADOPTING ASSOCIATED AMENDMENTS TO THE GENERAL PLAN, THE WEST BERKELEY PLAN, AND RECOMMENDING CERTIFICATION OF THE ASSOCIATED E.I.R.. OF THIS PROJECT IS THE CULMINATION OF SEVERAL YEARS OF WORK THAT WE RECEIVE IN PARTNERSHIP WITH OFFICE OF ECONOMIC DEVELOPMENT AND CITY'S ATTORNEY OFFICE AND OTHER CITY DEPARTMENTS. I THINK IT PRESENTS AN OPPORTUNITY TO REACTIVATE AND REVITALIZE AN IMPORTANT SITE IN WEST BERKELEY IN ACCORDANCE WITH COUNCIL DIRECTION. WITH THAT INTRODUCTION, WE HAVE THE SLIDE DECK UP AND

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I WILL TURN IT OVER TO ASHLEY.

>> ALL RIGHT. GOOD EVENING, COUNSELORS.

>> MAYOR A. ISHII: I THINK YOUR MIC MIGHT BE OFF. MOVIE CLOSER TO YOU.

>> IS THIS BETTER?

>> MAYOR A. ISHII: AS CLOSE AS YOU CAN GET SO FOLKS CAN HEAR YOU ONLINE.

>> GOOD EVENING, COUNCILMEMBER'S. MY NAME IS ASHLEY WITH THE PLANNING DIVISION. THIS ITEM IS FOR COUNCIL TO CONSIDER ZONING ORDINANCE IN WEST BERKELEY AND GENERAL PLAN AMENDMENTS TO ESTABLISH NEW DISTRICT CALLED MANUFACTURING, RESEARCH, AND DEVELOPMENT IN THE VICINITY OF THE FORMER PACIFIC STEEL CASTING SITE. TONIGHT, WE'LL BE GIVING YOU A PRESENTATION ON THE RESPONSE TO THE COUNCIL REFERRAL, INCLUDING THE AMENDMENTS AND ENVIRONMENT IMPACT REPORT FOLLOWED BY THE STAFF RECOMMENDATION AND DISCUSSION AND ACTION BY THE COUNCIL. FIRST UP IS A DESCRIPTION OF THE ZONING AND PLANNED AMENDMENTS PROPOSED FOR YOUR CONSIDERATION AND ACTION THIS EVENING. I WILL START WITH SOME BACKGROUND AND HOW THIS PROJECT BEGAN IN THE PROCESS WE'VE GONE THROUGH TO BRING THIS AMENDMENT TO YOU FOR CONSIDERATION TONIGHT. THE PROPOSED M-RD DISTRICT OUTLINED IN RED IN THIS MAP IS ON THE FAR NORTHWEST CORNER OF BERKELEY, WHICH IS AN ENTRANCE CORRIDOR FROM INTERSTATE 80. THIS IS AN INDUSTRIAL AREA WITH A

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MIX OF MANUFACTURING, WAREHOUSE, OFFICE, AND COMMERCIAL SPACES NEARBY AND IS DESCRIBED ON PAGE 2 OF YOUR REPORT. THE CITY RECEIVED A ZONING MAP APPLICATION TO REZONE THAT AREA OUTLINED IN BLUE ON THIS MAP, WHICH INCLUDED A CONCEPTUAL PLAN FOR THE POTENTIAL BERKELEY FORGE DEVELOPMENT PROJECT, WHICH WAS EVALUATED IN THE ENVIRONMENTAL IMPACT REPORT. SO AS WAS REFERENCED AT THE BEGINNING OF THIS PRESENTATION, THE PROPOSED AMENDMENTS ADDRESS A COUNSELOR REFERRAL FROM 2021, WHICH CAN BE FOUND IN ATTACHMENT THREE. THIS REFERRAL REQUEST THAT STAFF REVISIT THE SITE, THE FORMER PACIFIC STEEL CASTING COMPANY TO ADDRESS A NUMBER OF KNOWN ISSUES, INCLUDING ENVIRONMENTAL CONTAMINATION, BLIGHTED CONDITIONS, AND DELAYED PENSION PAYMENT TO THE COMPANY'S EMPLOYEES. WHEN THIS REFERRAL WAS PRESENTED, THE SITE HAD BEEN ON THE MARKET FOR SOME TIME AS THE CURRENT MANUFACTURING ZONING DISTRICT LIMITS USES TO HEAVY MANUFACTURING WHILE INTEREST FROM THE DEVELOPMENT COMMUNITY HAD BEEN FOR BIOTECHNOLOGY LABS, WAREHOUSE AND COMMERCIAL OR OFFICE SPACE HERE. THIS SLIDE ILLUSTRATES THE PROCESS FROM WHEN THE REFERRAL WAS ADOPTED THROUGH TONIGHT. PRESENTING THE DRAFT AMENDMENTS FOR ADOPTION AND FINAL E.I.R. FOR CERTIFICATION. WE HAVE HELD FIVE PUBLIC MEETINGS BETWEEN THE PLANNING COMMISSION IN LANDMARKS PRESERVATION COMMISSION. THE DRAFT E.I.R. WERE PRESENTED TO THE PLANNING COMMISSION IN NOVEMBER AND THE COMMISSION VOTED

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UNANIMOUSLY TO RECOMMEND THE PROPOSAL TO COUNCIL FOR ADOPTION. IN ORDER TO CREATE THE NEW M-RD DISTRICT, STAFF ARE PROPOSING AMENDMENTS TO THE MAP, WEST BERKELEY PLAN, AND GENERAL PLAN TO ADD MENTION OF THE DISTRICT. REGARDING THE PROPOSED LAND USES IN THE M-RD DISTRICT, YOU CAN REFER TO PAGE 4 OF YOUR REPORT TABLE 1 FOR MORE DETAIL. THIS SLIDE SHOWS THE USES ALLOWED IN THE M-RD WOULD GENERALLY MATCH THOSE OF THE NEWLY COUNSELOR REFERRAL WITH DIFFERENCES MEANT -- THIS TABLE SHOWS SAID WE ARE ENCOURAGING WHERE THEY CURRENTLY -- RETAIL, LARGE SALES -- BECAUSE THEY SUPPORT EMPLOYMENT OPPORTUNITIES AND AMENITIES FROM EMPLOYEES AND CUSTOMERS. THIS TABLE SHOWS A FEW MORE USES WE ARE ENCOURAGING BY EITHER ALLOWING WHERE THEY ARE PROHIBITED IN THE MU-LI OR BY REDUCING THE PERMIT LEVEL. THESE USES SUPPORT HIGH DENSITY INDUSTRIAL EMPLOYMENT IN OUR LABS, OR INDIE, AND SEMI CONDUCTOR MANUFACTURING. THIS TABLE LISTS THE FEW USES ALLOWED IN THE M OR TRINITY DISTRICTS THAT DO NOT ALIGN WITH THE PURPOSES, SO THEY WOULD NOT BE ALLOWED. THE FIRST STARTED WITH ALCOHOL AND BEVERAGE RETAIL SALES DON'T ALIGN WITH THE GOAL TO INCLUDE INDUSTRIAL EMPLOYMENT OPPORTUNITIES AND THE SECOND SET OF USES STARTING WITH COMMERCIAL EXCAVATION DON'T ALIGN WITH THE GOALS TO SUPPORT ENVIRONMENTAL CLEANUP EFFORTS OR HIGH-DENSITY INDUSTRIAL PLANNING. HERE ARE THE PROPOSED ZONING REQUIREMENTS TO CONSTRUCT EITHER IN ADDITION OR BUILDING. TO ENCOURAGE A

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CAMPUS LIKE ENVIRONMENT AND TO BRING A MORE COST-EFFECTIVE PROCESS TO THE DISTRICT ENCOURAGING FLEXIBLE BUSINESS GROWTH OVER TIME. FOR EXAMPLE, IN THE M-RD, UP TO 60,000 FT.^{2} OF FLOOR AREA CAN BE PERMITTED WITH THE ZONING DISTRICT WHEREAS IN THE MU-LI THE MAXIMUM IS 10,000. ALL OF THE PROPOSED DEVELOPMENT STANDARDS ARE LISTED ON PAGE 7, TABLE 3 OF YOUR REPORT AND OVERALL THEY ARE THE SAME AS THE EXISTING MANUFACTURING DISTRICTS WITH SOME DIFFERENCES BOLDED HERE. USABLE OPEN SPACE WOULD BE REQUIRED ON-SITE REPRESENTING AT LEAST 2% OF THE GROSS FLOOR AREA OF A BUILDING TO ENCOURAGE MORE PEDESTRIAN FRIENDLY DESIGNS WITH LANDSCAPE AREAS AND BUILDING SETBACKS FROM THE PROPERTY LINE. THE MAXIMUM HEIGHT WOULD BE 55 FEET, WHICH IS CONSISTENT WITH THE GOALS OF THE WEST BERKELEY PLAN TO ALLOW THREE-STORY BUILDINGS. THIS HEIGHT COULD BE INCREASED TO 105 FEET WITH A PERMIT, WHICH I WILL EXPLAIN LATER IN THE PRESENTATION. LOT COVERAGE WOULD BE CAPPED AT 80% TO ALLOW FOR OPEN SPACE AND AMENITIES FOR EMPLOYEES, WHICH ALIGNS WITH THE DISTRICT PURPOSES, AND ON-SITE LOADING REQUIREMENTS WOULD BE REDUCED ONLY FOR ARE IN THE USES TO BETTER SUPPORT THE UNIQUE BUILDING NEEDS OF THIS USE COMPARED TO OTHER INDUSTRIAL USES. THIS PROPOSAL REFLECTS MORE MODERN STANDARDS THAT WE ARE SEEING IN MODERN DEVELOPMENT STANDARDS. FINALLY, SOME USES IN THE MU-LI ARE PROTECTED -- CHANGE TO A NONPROTECTED USE. THIS REQUIREMENT

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WOULD NOT APPLY IN THE M-RD IN ORDER TO FACILITATE DEVELOPMENT IN THE AREA PER THE COUNCIL REFERRAL. STAFF ARE ALSO PROPOSING FLEXIBILITY THROUGH A PROCESS CALLED MODIFICATIONS TO DEVELOPMENT STANDARDS ON LARGE SITES. CURRENTLY, THE PROPERTY IN THE WEST BERKELEY PLAN AREA CAN ATTAIN A PERMIT TO MODIFY DEVELOPMENT STANDARDS IF THE PROJECT MEETS CERTAIN ELIGIBILITY CRITERIA. TYPICALLY, PROJECTS THAT REDEVELOP LARGE SITES, UTILIZE A DEVELOPMENT AGREEMENT OF THIS SECTION WOULD BE INCLUDED IN THE DISTRICT REGULATIONS TO HELP STREAMLINE THE PROCESS. THIS PROCESS WOULD ONLY APPLY IN THE M-RD, ON SITES THAT ARE AT LEAST 9 ACRES WITH HIGH QUALITY SITE PLANNING AND AMENITIES AND ADDRESS ENVIRONMENTAL CONTAMINATION AND PLANT ISSUES THAT ARE SPECIFIC TO THIS AREA. WITH APPROVAL OF THIS PERMIT, BUILDING CAN BE CONSTRUCTED UP TO 105 FEET INSTEAD OF 55 FEET AND FLOOR AREA RATIO AND LOT COVERAGE STANDARDS COULD BE MET ON A PROJECT WIDE BASIS. ON ANY ONE PARCEL, THESE TWO STANDARDS COULD BE INCREASED BY UP TO 20%. OVERALL, THE PROJECT WOULD NEED TO COMPLY WITH A MAXIMUM OF 2.0 AND 80%. THE INTENT OF THIS FLEXIBILITY IS TO PROVIDE MORE VISUAL INTEREST AND ALLOW FOR MORE OPEN SPACE AND MAINTAIN VIEWS. SO IN ORDER TO ADD THIS DISTRICT TO THE MUNICIPAL CODE, THE WEST BERKELEY PLAN WOULD NEED TO BE AMENDED TO DESCRIBE THE NEW DISTRICT AND UPDATE THE LAND USE MAP. NO OTHER CHANGES ARE PROPOSED TO THIS PLAN.

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SIMILARLY, THE GENERAL PLAN MANUFACTURING LAND USE DESIGNATION WOULD BE AMENDED TO REFERENCE THE DISTRICT AS SHOWN HERE AND NO OTHER CHANGES ARE PROPOSED AT THIS POINT. WE ARE NOW GOING TO TRANSITION TO DISCUSSING THE ENVIRONMENTAL REPORT REVIEW OR C.E.Q.A. PROCESS FOR THIS PROJECT. I'D LIKE TO INTRODUCE FLORENTINE, PROJECT MANAGER FOR THAT.

>> HELLO, EVERYBODY. LIKE C.E.Q.A. -- LIKE ASHLEY MENTIONED, I WILL GIVE A BRIEF OVERVIEW OF THE C.E.Q.A. PROCESS FOR THE PROJECT. BEFORE WE DIVE IN, I WANT TO REMIND EVERYBODY THE PURPOSE OF UNDERTAKING C.E.Q.A. REVIEW IS TO PROVIDE INFORMATION ABOUT POTENTIAL ENVIRONMENTAL IMPACTS. C.E.Q.A. DOES NOT ADVOCATE FOR OR AGAINST A PROJECT. IN C.E.Q.A., WE FIRST TRIED TO PREVENT ANY IMPACTS AND IF IMPACTS OCCUR WE IDENTIFY MITIGATION MEASURES AND DISCLOSE SAID IMPACTS. IN ADDITION, C.E.Q.A. MUST BE DONE AND CONSIDERED PRIOR TO PROJECT APPROVAL. GILMAN GATEWAY E.I.R. RELEASE FOR REVIEW IN 2024 ANALYZES THE PROPOSED REZONING AND ENVIRONMENTAL IMPACTS THAT WILL RESULT FROM FUTURE PROJECTS. PLEASE NOTE THAT A FORMAL APPLICATION FOR ANY DEVELOPMENT PROJECT INCLUDING THE BERKELEY FORGE PROJECT HAS NOT BEEN RECEIVED BY THE CITY. ONCE A FORMAL APPLICATION IS RECEIVED, IT WILL BE EVALUATED BY STAFF TO DETERMINE COMPLIANCE WITH DISTRICT REGULATIONS AND WHETHER OR NOT IT REQUIRES ANY ADDITIONAL ENVIRONMENTAL REVIEW. C.E.Q.A. REQUIRES THAT WE

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EVALUATE 20 TOPIC AREAS AS LISTED ON THIS SLIDE. EACH TOPIC AREA HAS A LIST OF QUESTIONS WE ARE REQUIRED TO CONSIDER. FOR THE SAKE OF BREVITY, I WILL FOCUS ON THE IMPACTS THAT WERE FOUND TO BE SIGNIFICANT AND UNAVOIDABLE. A SUMMARY OF ALL THE IMPACTS AND PROPOSED MITIGATION MEASURES IS INCLUDED IN CHAPTER 2 EXECUTIVE SUMMARY OF THE DRAFT E.I.R.. THE PROPOSED PROJECT WAS FOUND TO HAVE EITHER NO IMPACT, A LESS THAN SIGNIFICANT IMPACT, OR IMPACTS THAT WOULD BE REDUCED TO LESS THAN SIGNIFICANT IMPLEMENTATION MEASURES FOR THE TOPIC AREAS THAT ARE IN BLACK. WE IDENTIFIED SIGNIFICANT AND UNAVOIDABLE IMPACTS UNDER THE TOPIC AREAS THAT ARE IN BLUE AND THAT INCLUDES AIR QUALITY, CULTURAL RESOURCES, AND GREENHOUSE GAS EMISSIONS. FUTURE DEVELOPMENTAL ON THE PROJECT SITE COULD RESULT IN THE DEMOLITION OF THE STRUCTURE LOCATED AT 1306 THIRD STREET, WHICH THE HISTORIC RESEARCH FOR THE PURPOSES OF C.E.Q.A.. AS SUCH, THIS PRODUCT IMPACT WILL REMAIN SIGNIFICANT AND UNAVOIDABLE EVEN WITH IMPLEMENTATION MITIGATION MEASURES DUE TO THE LOSS OF THE RESOURCE. AS A REMINDER, THE CITY IS NOT REPOSING TO DEMOLISH THE BUILDING NOR HAS IT RECEIVED THE PROJECT APPLICATION THAT PROPOSES TO DEMOLISH THE STRUCTURE. WE ARE MERELY EVALUATING THE POTENTIAL FOR DEMOLITION SHOULD -- POTENTIAL FOR DEMOLITION IF IT'S GOING TO HAPPEN AS PART OF THE REDEVELOPMENT. THE AIR QUALITY IMPACTS THAT REMAIN SIGNIFICANT AND UNAVOIDABLE ARE DUE

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TO THE LACK OF SPECIFIC DEVELOPMENTAL PROPOSAL DETAILS. AS SUCH, MITIGATION MEASURES REQUIRE THAT ANY FUTURE PROJECT WILL NEED TO SUBMIT A PROJECT SPECIFIC HEALTH RISK ASSESSMENT THAT STAFF WOULD EVALUATE AS WELL AS COMPLIANCE WITH THE AIR DISTRICT CONSTRUCTION REQUIREMENTS AND TEMPORARY RELOCATION OF ANY SENSITIVE RESIDENCE AT 1306 THIRD STREET IF ANY IMPACTS WOULD OCCUR. LASTLY, THE GREENHOUSE GAS EMISSIONS SIGNIFICANT AND UNAVOIDABLE IMPACTS RELATE TO A POLICY CONFLICT WITH THE AIR DISTRICT RECOMMENDATION THAT REQUIRE NO NEW NATURAL GAS CONNECTIONS BE ALLOWED TO. THIS IS TO MEET THE STATE'S GREENHOUSE GAS EMISSION TARGETS. AS YOU MAY KNOW, THE CITY IS NO LONGER ABLE TO ENFORCE THE NATURAL GAS BAN. THEREFORE, SHOULD A FUTURE PROJECT INCLUDE NATURAL GAS USES, IT WOULD RESULT IN A SIGNIFICANT IMPACT. LASTLY, C.E.Q.A. REQUIRES THAT A E.I.R. DESCRIBE A RANGE OF REASONABLE ALTERNATIVES TO THE PROJECT THAT WOULD OBTAIN MOST OF THE PROJECT OBJECTIVES AND WOULD AVOID OR SUBSTANTIALLY REDUCE THE PROJECTS SIGNIFICANT IMPACTS. AS SHOWN ON THE SLIDE, THE E.I.R. CONSIDERED THREE ALTERNATIVES. NO ACTION THAT WOULD INCLUDE ABSOLUTELY NO CHANGES TO THE PROJECT SITE AND NO CONSTRUCTION. A GENERAL PLAN COMPLIANT THAT LOOKED AT WHAT PROJECT OF ELEMENT WOULD LOOK LIKE UNDER THE EXISTING GENERAL PLAN AND ZONING, AND THE REDUCED DEVELOPMENTAL ALTERNATIVE THAT REDUCE THE SCOPE WHICH WOULD REDUCE, BUT NOT

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AVOID THE POTENTIAL IMPACTS. THE FULL DISCUSSION OF ALTERNATIVES IS FOUND IN CHAPTER 5 OF THE DRAFT E.I.R.. WITH THAT, I'M GOING TO TURN IT BACK TO ASHLEY.

>> THANK YOU FOR THE PRESENTATION. WITH THAT, LET'S MOVE TO CLOSE THE STAFF PRESENTATION WITH RECOMMENDATION. STAFF IS MOVING THAT YOU CONDUCT A PUBLIC HEARING, ADOPT THE PROPOSED ORDINANCE AND RESOLUTION AND CERTIFY THE ENVIRONMENTAL IMPACT REPORT. THANK YOU VERY MUCH AND WE ARE AVAILABLE FOR ANY QUESTIONS.

>> MAYOR A. ISHII: THANK YOU. THANKS SO MUCH FOR THE REPORT. ARE THERE ANY CLARIFYING QUESTIONS FROM THE COUNCIL? OKAY. LET'S OPEN THIS TO PUBLIC COMMENT FOR THE ESTABLISHMENT OF M-RD ZONING DISTRICT. JUST TO CLARIFY IF THERE ANY COMMENTS ON THIS ITEM.

>> PUBLIC SPEAKER: THANK YOU, MADAM MAYOR AND COUNCIL. I THINK ONE OF THE QUESTIONS THAT THE MIDDLE-CLASS WORKERS OF BERKELEY AND THE RESIDENCE HERE WOULD LIKE TO KNOW IS THE APPLICABILITY TO THIS IN REGARDS TO HARDHATS IN THAT DEVELOPMENT, IF ANY OF THE PROJECTS THAT ARE DISCUSSED OR PROPOSE HERE THAT ARE GOING TO BE OVER 50,000 FT.^{2} IF THOSE ARE GOING TO HAVE THE HEALTHCARE AND APPRENTICESHIP TRAINING STANDARDS THE CITY PASSED THAT CAME INTO EFFECT JANUARY 1 OF THIS YEAR. I'M NOT SURE IF THAT'S BEEN DISCUSSED OR DETERMINED YET OR NOT. THAT IS SOMETHING THAT OBVIOUSLY THE MIDDLE-CLASS WORKERS THAT LIVE HERE AND WANT TO

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BUILD HERE WANT TO KNOW. THANK YOU.

>> PUBLIC SPEAKER: GOOD AFTERNOON. MY NAME IS IVAN NAREZ AND I'M A RESIDENT OF 1306 THIRD STREET AND I HAVE A LETTER TO DELIVER TO ASHLEY JAMES AND CREW. I'M JUST GOING TO READ THE CONCLUSION FOR NOW BECAUSE IT'S QUITE LONG. BUT HERE WE GO. THE FINAL E.I.R. FAILS TO RESPOND OR ADDRESS THE EXTENSIVE COMMENTS MADE BY THE OWNERS OF 1306 THIRD STREET, THE FINAL E.I.R. FAILS TO ADDRESS IMPACTS ON 1306 THIRD STREET. THE PROJECT LEVEL SHOULD BE STRICKEN. IT WILL INEVITABLY LEAD TO ADDITIONAL ISSUES AS THIS PROCESS MOVES FORWARD. SPECIFICALLY DEVELOPERS WILL ATTEMPT TO USE THIS FINAL E.I.R. IN ORDER TO GAIN APPROVAL SPECIFIC PROJECTS WITHOUT ADDRESSING ENVIRONMENT WILL IMPACTS. PLEASE BE ADVISED THAT THE OWNERS OF 1306 THIRD STREET NEIGHBORS AND HOMEOWNERS WILL STRONGLY OBJECT WHEN THIS OCCURS. THE AMBIGUITY AROUND THE FINAL E.I.R., WHICH IS CONCERNING AND CONTINUALLY REFER TO CONCEPTUAL DEVELOPMENT PLAN THAT WILL HAVE SIGNIFICANT IMPACTS ON THE 1306 THIRD STREET BUILDING AND TO CONSISTENTLY DISREGARD THESE WITH LANGUAGE THAT INCLUDES THE NOTE THAT THIS BUILDING MAY BE SIMPLY DEMOLISHED IS IMPROPER, DISRESPECTFUL TO THE OWNERS, OCCUPANTS OF THE BUILDING, AND DISREGARDS THE USUAL PUBLIC COMMENT PROCESS. THE OWNERS OF 1306 THIRD STREET SUPPORT REDEVELOPMENT INCLUDING MYSELF. HOWEVER, THEY REMAIN CONCERNED ABOUT THE CITIES CONTINUED DISREGARD OF THEIR COMMENTS AND

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CITIES LACK OF RESPONSE TO THE SPECIFIC ISSUES THAT WE HAVE BROUGHT UP TO THE STAFF AT MULTIPLE TIMES ALONG THIS PROCESS. ARE COMMENTARY AND FEEDBACK HAVE NOT BEEN RESPONDED TO OUR ADDRESS. WE HAVE MADE REASONABLE RECOMMENDATIONS, WHICH HAVE NOT BEEN EVALUATED INTO THE E.I.R.. THE CITY SEEMS TO LACK CONSIDERATION TO THE FAMILIES. THAT'S ALL. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. ARE THERE OTHER COMMENTS ON THIS ITEM? ONLINE?

>> CITY CLERK: THERE'S ONE ONLINE COMMENT. TWO ONLINE COMMENTERS. FIRST IS CHRISTY SHIRILLA. YOU HAVE TWO MINUTES.

>> MAYOR A. ISHII: AND JUST A REMINDER FOR FOLKS WHO ARE ONLINE, THIS IS ON ITEM NUMBER EIGHT, THE ESTABLISHMENT OF THE M-RD ZONING DISTRICT.

>> PUBLIC SPEAKER: GOOD EVENING. MY NAME IS CHRISTY SHIRILLA AND I AM THE POLICY MANAGER IN THE BAY AREA FOR BIO COM CALIFORNIA. BIO COM IS ONE OF THE LARGEST LIFE SCIENCE TRADES IN THE COUNTRY AND OUR MEMBERS ARE DEDICATED TO ADVANCING BREAKTHROUGHS IN THE LIFE SCIENCE INDUSTRY. MANY OF OUR COMPANIES ARE HEADQUARTERED OR OPERATING IN BERKELEY. WE THINK THAT CREATING A NEW DESIGNATED M-RD ZONING DISTRICT IN BERKELEY WILL PROVIDE THE INFO STRUCTURE AND REGULATORY FRAMEWORK NECESSARY TO SUPPORT THIS FAST-GROWING AND HIGH-IMPACT INDUSTRY. IT WILL CREATE A MORE PRODUCTIVE STREAMLINED DEVELOPING FOR BUSINESSES TO

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DEVELOP, AND WE HEAR THAT A LOT FROM OUR MEMBERS. THEY NEED PREDICTIBILITY WHEN DECIDING WHERE TO LOCATE AND GROW. WE STRONGLY ENCOURAGE THE BERKELEY CITY COUNCIL TO APPROVE THIS LEGISLATION. THANK YOU.

>> MAYOR A. ISHII: THANK YOU.

>> CITY CLERK: OKAY. NEXT IS DANIEL BROWNSON.

>> PUBLIC SPEAKER: JUST A QUESTION. WITH THIS IN ANY WAY ENDANGER THE 924 GILMAN?

>> CITY CLERK: YOU CAN MAKE YOUR COMMENTS. WE DON'T DO A BACK-AND-FORTH DISCUSSION DURING PUBLIC COMMENTS.

>> MAYOR A. ISHII: PERHAPS THAT WAS HIS COMMENT.

>> CITY CLERK: THAT'S YOUR ONLY COMMENT? OKAY.

>> PUBLIC SPEAKER: IT SAYS COMMENTS AND DISCUSSION. IT'S A QUESTION.

>> MAYOR A. ISHII: OKAY. THANKS. THANK YOU FOR YOUR QUESTION. ARE THERE ANY OTHER COMMENTS? OKAY. NO HANDS RAISED. PERHAPS YOU MIGHT ADDRESS HIS QUESTION, ACTUALLY. AND ALSO IF YOU WOULD ALSO ADDRESS THE HARDHATS AS WELL QUESTION.

>> YEAH. I CAN START WITH THE HARDHATS QUESTION, WHICH IS THAT PRIMARILY THE PROJECT IS A REZONING INITIATIVE. THERE'S NO SPECIFIC DEVELOPMENT PROJECT BEING PROPOSED OR CONSIDERED FRACTION TONIGHT. SO ANY FUTURE PROJECT WOULD HAVE TO COMPLY WITH ALL THE PROVISIONS OF THE MUNICIPAL CODE INCLUDING

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HARDHATS. SO I BELIEVE THE MINIMUM THRESHOLD FOR THAT IS 50,000.

AND SO AGAIN, IF ANY DEVELOPMENT PROJECT CAME FORWARD MEETING

THE REQUIREMENTS FOR HARDHATS, THAT WOULD BE IMPLEMENTED.

>> MAYOR A. ISHII: THANK YOU.

>> AS TO 924 GILMAN, I BELIEVE THAT THE CONCERT VENUE NEARBY AND

--

>> IT'S PROBABLY SIX BLOCKS AWAY.

>> YEAH, SO THAT IS OUTSIDE OF THE PROJECT AREA.

>> MAYOR A. ISHII: OKAY. THANK YOU VERY MUCH. APPRECIATE IT.

COMMENTS FROM THE COUNCIL? OKAY, SO -- YEAH. I'M GOING TO CLOSE

THE PUBLIC HEARING. I CAN DO THAT. I DON'T NEED A MOTION.

>> YEAH, YOU DO.

>> MAYOR A. ISHII: ALL RIGHT. I WILL ENTERTAIN A MOTION.

>> SO MOVED.

>> MAYOR A. ISHII: THANK YOU. SECOND. THANK YOU VERY MUCH.

COUNCILMEMBER TREGUB.

>> IS THERE UNANIMOUS CONSENT ON THE MOTION?

>> MAYOR A. ISHII: OH, YES. THERE IS UNANIMOUS CONSENT.

>> THANK YOU.

>> MAYOR A. ISHII: COUNCILMEMBER TREGUB.

>> I. TREGUB: I DO HAVE A QUESTION FOR STAFF. THANK YOU. ON THE

ITEM AROUND SIGNIFICANT UNAVOIDABLE IMPACTS RELATED TO

GREENHOUSE GAS EMISSIONS, I UNDERSTAND THAT RIGHT NOW BECAUSE

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THE GAS BAN THAT WE HAVE HAS BEEN OVERRIDDEN BY A COURT OPINION THAT WOULD NOT APPLY. I JUST WANTED TO ASK DOES APPROVING THIS E.I.R. IN ANY WAY PRECLUDE US FROM PASSING GREENHOUSE GAS EMISSION AND/OR EFFICIENCY STANDARDS IN THE FUTURE THAT WOULD PROSPECTIVELY APPLY TO ANYTHING THAT COULD BE ZONED FOLLOWING SUCH APPROVAL?

>> NO, IT WOULD NOT PRECLUDE THE CITY COUNCIL FROM DOING SO.

>> I. TREGUB: THANK YOU.

>> MAYOR ISHII: I'M GOING TO GO TO COUNCILMEMBER KESARWANI.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. THANK YOU, DIRECTOR KLEIN, STAFF. DIRECTOR HOLLANDER FOR GETTING US TO THIS POINT. I HAVE TO REMINISCE WE INTRODUCED THIS IN APRIL 2021, IT'S ALMOST APRIL 2025 AND IN THAT WORK, IN THAT TIME, A LOT OF WORK HAS GONE INTO THE PRESENTATION THAT WE RECEIVED TONIGHT. IT WAS NOT JUST THE ZONING ORDINANCE, BUT OBVIOUSLY WHEN YOU DO AN ENVIRONMENTAL IMPACT REPORT, IT IS AN EXHAUSTIVE PROCESS. SO I JUST WANT TO APPRECIATE THAT. BIG PICTURE, WHEN PEOPLE GET ON OR OFF THE FREEWAY YOU SEE A 10 ACRE BLIGHTED SITE RIGHT NOW. THIS HAS THE ABILITY TO BE SO MUCH MORE. WHAT IT IS CONTEMPLATING IS A LARGE LIFE SCIENCES AND RESEARCH AND DEVELOPMENT CAMPUS. AND WHAT THAT WILL DO, NOT JUST REVITALIZING THE GILMAN DISTRICT. LOOKING FOR REVENUE. WE ARE ALWAYS LOOKING FOR REVENUE. ONE COST EFFECTIVE WAY TO RAISE REVENUE FOR OUR

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CITY IS LOOKING AT LAND USE. HOW CAN WE BE MORE PRODUCTIVE IN OUR LAND USE AND THE OLD M STONING SERVED ITS PURPOSE? WE ARE MODERNIZING. WE ARE TRYING TO ALIGN OUR ZONING ORDINANCE WITH THE TYPES OF JOBS AND INDUSTRIES THAT ARE GROWING AND WE ARE TRYING TO ATTRACT IN OUR CITY. I'M REALLY PLEASED BY THIS. I ALSO WANT TO NOTE, WHEN WE DID THAT REFERRAL IN APRIL 2021 TO REQUEST THIS REZONING, WE HAD WORKERS FROM THE OLD PACIFIC STEEL CASTING SITE. THAT WAS THE USE FOR A LONG TIME. THEY ABRUPTLY DECLARED BANKRUPTCY AND THOSE WORKERS WERE OWED THEIR PENSION BENEFITS. IT WAS A RESULT, I WOULD LIKE TO BELIEVE IT WAS THE RESULT OF THIS REFERRAL. THAT ENTICED A DEVELOPER TO PURCHASE THIS HUGE PARCEL. THAT IS WHAT MADE THE WORKERS WHOLE. SO THEY HAVE BEEN MADE WHOLE WITH THEIR PENSION BENEFITS. WE HOPE TO SEE A TRANSFORMATION OF THIS AREA. AND SO I'M JUST REALLY THRILLED THAT WE ARE AT THIS POINT. I DO WANT TO EMPHASIZE THAT THESE TYPES OF PROJECTS, THEY TRADITIONALLY USE A PROJECT LABOR AGREEMENT AND WE HAVE THE HARD HATS ORDINANCE AS WELL. THE CREATION OF THIS SITE WILL CREATE GOOD-PAYING JOBS. ONCE ITS DEVELOPED WE HOPE TO HAVE GOOD SOLID MIDDLE CLASS JOBS FOR OUR COMMUNITY OR PEOPLE ALL OVER. PEOPLE CAN TAKE THE B.A.R.T., THEY CAN TAKE THE FERRY. ALL SORTS OF OPPORTUNITIES. THEY CAN DRIVE IF THEY HAVE TO. ALL SORTS OF OPPORTUNITIES TO COME TO THIS INCREDIBLE DEVELOPMENT WE HOPE TO SEE IN THE FUTURE. ALL A

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RESULT OF THIS ZONING CHANGE. SO THANK YOU AGAIN. THANKS TO EVERYONE WHO HAD A PART IN THIS. AND LOOK FORWARD TO TAKING THE VOTE. MAYBE JUST FOR PURPOSES OF GETTING THIS ROLLING, I WILL MAKE A MOTION.

>> T. TAPLIN: SECOND. [LAUGHTER]

>> R. KESARWANI: ADOPT FIRST READING OF ORDINANCE AMENDING TITLE 23 OF THE BERKELEY MUNICIPAL CODE AND ZONING MAP TO ESTABLISH THE MANUFACTURING RESEARCH AND DEVELOPMENT ZONING DISTRICT TO ENCOURAGE, ADOPT A RESOLUTION APPROVING AND ADOPTING. I'M JUST READING THIS.

>> MAYOR ISHII: JUST THE REST OF IT.

>> R. KESARWANI: THE REST OF WHAT IT SAYS, WEST BERKELEY PLAN AND GENERAL PLAN AMENDMENTS TO BE CONSISTENT WITH THE ASSOCIATED ORDINANCE AMENDMENTS.

>> MAYOR ISHII: AND SECOND FROM COUNCILMEMBER TAPLIN. DO YOU HAVE COMMENTS?

>> T. TAPLIN: YES, THANK YOU TO THE TEAM AND COUNCILMEMBER KESARWANI. WHEN I FIRST CAME TO SERVE I WORKED WITH WEST BERKELEY PLANNING. I KNOW THIS ISN'T AN EASY THING TO TOUCH HERE. I REALLY APPRECIATE THE CARE YOU HAVE GIVEN IT. THE ACTION GIVEN ISN'T LOST ON ME. ONE OF MY NEIGHBORS WAS A WORKER AT THE ORIGINAL SITE AND I GOT TO MEET HIM THIS PAST FALL SO TONIGHT IS MEANINGFUL. I LOOK FORWARD TO MIDDLE CLASS JOB AND REMEDIATED

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SITE AND MODERN USES AND ALL THESE THINGS. BECAUSE WE REALLY, WEST BERKELEY REALLY IS THE JOB SEAT OF THE CITY. IT'S IMPORTANT FOR US TO KEEP THESE PARCELS BUT FOR THEM TO BE USABLE AND HEALTHY FOR THE COMMUNITY AND FOR THE ECONOMY AS WELL. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: YES, THANK YOU MADAM MAYOR. I WANT TO THANK COUNCILMEMBER KESARWANI FOR ALL HER WORK ON THIS AS WELL AS COUNCILMEMBER TAPLIN, WHO I BELIEVE CO-SPONSORED THE ORIGINAL ITEM. AND OUR PLANNING DEPARTMENT AND O.E.D. STAFF FOR ALL THEIR HARD WORK ON THIS. AND I WANT TO JUST ASSOCIATE MYSELF WITH EVERYTHING COUNCILMEMBER KESARWANI AND TAPLIN JUST SAID. WE HAVE AN INCREDIBLE OPPORTUNITY TO NOT ONLY MAXIMIZE NEW JOBS AND INNOVATION ON THIS SITE BUT LEVERAGE THAT TO CLEAN UP THE CONTAMINATION. IT'S ALSO PAID TO PROVIDE SOME MEASURE OF RELIEF FOR THE PACIFIC STEEL WORKERS. I GUESS THEY HAVE BEEN MADE WHOLE IN TERMS OF THEIR PENSION BALANCES AND THAT'S WONDERFUL. IT'S TRULY A WIN/WIN OPPORTUNITY FOR THE CITY OF BERKELEY. AND I FEEL CONFIDENT THAT THE ANALYSIS PRESENTED IN THE DRAFT AND FINAL E.I.R. IS ADEQUATE AND I'M READY TO MOVE THIS FORWARD. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: VERY BRIEFLY. I WANT TO SAY I'M REALLY INTO ANY

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EFFORT THAT HELPS BRING BERKELEY MORE INTO THE 21ST CENTURY. THAT'S MY ENTIRE COMMENT. THANK YOU.

>> MAYOR ISHII: OKAY, THANK YOU VERY MUCH. THERE'S A MOTION ON THE FLOOR. SHALL WE PASS IT UNANIMOUSLY? ALL RIGHT. MOTION PASSES UNANIMOUSLY. THANK YOU ALL SO MUCH. AND THANK YOU FOR YOUR PRESENTATIONS. [APPLAUSE] BEFORE NEXT ITEM I WOULD LIKE TO TAKE A TEN-MINUTE BREAK PLEASE. THANK YOU. [RECORDING STOPPED] [BREAK] [CAPTIONER STANDING BY, READY TO GO]

>> CITY CLERK: OKAY, MAYOR, WE CAN START WHENEVER WE ARE READY.

>> MAYOR ISHII: ARE WE READY, FOLKS? YES, OKAY, THANK YOU. SOMEONE FROM THE CROWD SAID YES. SO I THINK IT'S TIME. ALL RIGHT. WE ARE GOING TO START, WE ARE GOING TO CALL BACK INTO SESSION AND WE ARE GOING TO COME BACK TO ITEM #9, THE ZAB APPEAL FOR 3000 SHATTUCK AVENUE. WE ARE GOING TO START HERE WITH A PRESENTATION. NO, WE ARE NOT. THAT'S RIGHT. THANK YOU. WE ARE NOT STARTING WITH A PRESENTATION BECAUSE WE HAVE PEOPLE WHO NEED TO RECUSE THEMSELVES. DO YOU WANT TO --

>> S. O'KEEFE: I DON'T HAVE IT READY YET.

>> I. TREGUB: OKAY.

>> MAYOR ISHII: SORRY, I WILL BLAME IT ON THE HEAT. I THINK IT'S BEEN LIKE A LONG, HOT DAY. GO AHEAD.

>> I. TREGUB: WHICH ONE OF US? OKAY. I WILL BE RECUSING MYSELF FROM THIS VOTE BECAUSE I PARTICIPATED AT A ZONING ADJUSTMENTS

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BOARD LEVEL HEARING ON THIS PROJECT.

>> MAYOR ISHII: THANK YOU.

>> C. LUNAPARRA: GIVEN I WAS ONE OF THE DECISION MAKERS ON THIS MATTER, THE ZONING ADJUSTMENTS BOARD I WOULD LIKE TO RECUSE MYSELF AS WELL FROM PARTICIPATING IN THIS.

>> S. O'KEEFE: I HAVE A SURPRISE FOR EVERYONE, GIVEN I WAS A DECISION MAKER AT THE ZONING ADJUSTMENTS BOARD I WOULD LIKE TO RECUSE MYSELF ON THIS MATTER AND I BEQUEATH THE SOUR PATCH KIDS TO COUNCILMEMBER KESARWANI. PLEASE SHARE THEM. SORRY, GUYS.

>> MAYOR ISHII: I WILL WAIT UNTIL THEY LEAVE AND I WILL ALLOW YOU TO DO THE PRESENTATION. THANK YOU FOR LEAVING US THE CANDY. OKAY, I THINK THEY ARE OFFICIALLY REMOVED FROM THE ROOM. GO AHEAD.

>> THANK YOU, AND GOOD EVENING AGAIN, MADAM MAYOR AND COUNCILMEMBERS. I'M JORDAN KLEIN, DIRECTOR OF PLANNING AND DEVELOPMENT. WITH ME IS ALLISON RIEMER, ASSOCIATE PLANNER, AND ANNE HERSCH LAND USE PLANNING MANAGER. PRESENTING FOR STAFF IS ALLISON, TAKE IT AWAY.

>> MY NAME IS ALLISON RIEMER AND I'M AN ASSOCIATE PLANNER, THIS IS AN APPEAL OF THE ZONING ADJUSTMENTS BOARD OF A USE PERMIT TO DEMOLISH A GAS STATION AND CONSTRUCT A 10-STORY MIXED USE BUILDING AT 3000 SHATTUCK AVENUE. INITIAL STUDY NEGATIVE DECLARATION WAS PREPARED FOR THAT PROJECT BUT THAT PROJECT

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WASN'T PURSUED. THE NEGATIVE DECLARATION WAS PREPARED FOR FIVE STORIES, 44 DWELLINGS AND 660 SQUARE FEET OF COMMERCIAL SPACE. APPEALS OF THE ZAB DECISION WERE RECEIVED FROM THE LAW FIRM OF LOZEAU DRURY, ON BEHALF OF LABORER'S INTERNATIONAL UNION OF NORTH AMERICA, LOCAL 304 AND PEOPLE WHO OWN OR LEASE PROPERTY WITHIN THE VICINITY AND LAW FIRM OF ADAMS BROADWELL, JOSEPH, AND CARDOZO. IT'S ON ASHBY AND SHATTUCK. SURROUNDING IS COMMERCIAL AND RESIDENTIAL, RANGING FROM 1-3 STORIES IN HEIGHT. ASHBY B.A.R.T. IS 0.3 MILES TO THE WEST. THE SITE CONSISTS OF TWO PARCELS AND DEVELOPED WITH A GAS STATION AND MINI MARKET. THE PROJECT WOULD ADD 166 STUDIO UNITS AND 1,000 SQUARE FEET OF COMMERCIAL SPACE IN A TEN-STORY BUILDING. THE PROJECT IS ELIGIBLE FOR A DENSITY BONUS BY PROVIDING 17 VERY LOW-INCOME UNITS. I WON'T GO OVER EVERY APPEAL POINT, THEY ARE DISCUSSED IN DETAIL IN THE COUNCIL REPORT. A LOT RELATES TO COMPLIANCE WITH CALIFORNIA ENVIRONMENTAL QUALITY ACT OR CEQA. IN COMPARISON TO THE ORIGINAL PROJECT AGAINST THE CEQA GUIDELINES AND FOUND POTENTIAL IMPACTS WITH THE MODIFIED TO BE CONSISTENT WITH THE POTENTIAL IMPACTS MITIGATED FOR IN THE INITIAL NEGATIVE DECLARATION. THE CITY'S CONSULTANT REVISED THE ADDENDUM. THE CONCLUSION IS THE SAME AS THE 2023 ADDENDUM. NO FURTHER EVALUATION OF ENVIRONMENTAL IMPACTS IS REQUIRED FOR THE MODIFIED PROJECT. NO SUBSEQUENT ENVIRONMENTAL IMPACT REPORT IS NECESSARY

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PURSUANT TO THE CEQA GUIDELINES AND THE ADDENDUM IS THE APPROPRIATE LEVEL OF ENVIRONMENTAL ANALYSIS, AND DOCUMENTATION FOR THE MODIFIED PROJECT PURSUANT TO THE CEQA GUIDELINES. INCREASING THE HEIGHT AND NUMBER OF UNITS DOES NOT CHANGE THE ENVIRONMENTAL IMPACTS OF THIS MIXED-USE RESIDENTIAL PROJECT. THE ISSUE OF AIR QUALITY IS STATED SEVERAL TIMES IN THE APPEALS, AS RELATED TO INDOOR AIR QUALITY, ORGANIC INDOOR GAS AND VEHICLE EMISSIONS. THE ADDENDUM HAS BEEN REVISED TO INCLUDE DISCUSSION OF FORMALDEHYDE AND MODIFIED PROJECT WOULD HAVE LESS THAN SIGNIFICANT IMPACTS ON FORMALDEHYDE. FOR THE ADDENDUM, THE PROJECT WOULD NOT EXCEED BAY AREA MANAGEMENT THRESHOLDS FOR ORGANIC EMISSIONS. AND BELOW THRESHOLDS. THE ADDENDUM HAS BEEN REVISED TO INCLUDE A DISCUSSION OF AIR QUALITY IMPACTS RESULTING FROM TRUCKING OF MODULAR UNITS TO THE PROJECT SITE. AND THE ANALYSIS CONCLUDES THAT SITE PREPARATION AND AIR QUALITY WOULD STILL BE SUBSTANTIALLY THE SAME AS TRADITIONAL CONSTRUCTION. THE PROJECT SITE IS IN THE STATE WATER RESOURCES CONTROL BOARD'S DATABASE AS A LEAKING UNDERGROUND STORAGE TANK CLEAN UP SITE AND MARKED AS CASE CLOSED IN 2013 AND 2014. PHASE ONE AND PHASE TWO ENVIRONMENTAL SITE ASSESSMENTS WERE CONDUCTED IN 2022. AND SOIL AND GROUND WATER CONDITIONS RELATED TO HAZARDOUS MATERIALS HAVE REMAINED UNCHANGED SINCE THE INITIAL STUDY NEGATIVE DECLARATION WAS PREPARED AND ADDENDUM DIDN'T IDENTIFY INCREASED OR

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SIGNIFICANT IMPACTS AS A RESULT. THE PROPOSED PROJECT IS REQUIRED TO COMPLY WITH STANDARD CONDITIONS OF APPROVAL FOR REMEDIATION OR REMOVAL OF TOXIC MATERIALS IN PREPARATION FOR RESIDENTIAL DEVELOPMENT. THE APPELLANTS STATE THE PROJECT MAY BE DETRIMENTAL DUE TO AIR QUALITY IMPACTS. DIESEL PARTICULATE MATTERS DURING CONSTRUCTION WOULD BE ENFORCED DURING CONSTRUCTION. NON-DETRIMENT FINDINGS ARE NOT OBJECTIVE STANDARDS AND CANNOT PROVIDE A BASIS FOR DENIAL OR REDUCTION IN UNITS DUE TO THE HOUSING ACCOUNTABILITY ACT. SEVERAL NEW BUILDINGS IN THE VICINITY OF THE PROJECT SITE HAVE EITHER BEEN CONSTRUCTED APPROVED OR PENDING APPROVAL AND THOSE CHANGES ARE EXPECTED IN AN URBAN AREA. A CUMULATIVE IMPACT SECTION HAS BEEN ADDED TO THE REVISED ADDENDUM. EIGHT CUMULATIVE PROJECTS WERE ANALYZED AND THE MODIFIED PROJECT WOULDN'T RESULT IN IMPACTS, IMPACTS WOULD BE LESS THAN SIGNIFICANT. AN INITIAL STUDY WAS PREPARED FOR THE INITIAL PROJECT IN 2017 AND AVAILABLE FOR PUBLIC REVIEW IN 2017 AND 2018 AND FOR THE MAY ZAB MEETING. PURSUANT TO CEQA GUIDELINES, SHALL PREPARE AN ADDENDUM IF SOME CHANGES OR ADDITIONS ARE NECESSARY. NONE OF THE CONDITIONS IN THE CEQA GUIDELINES THAT CALL FOR PREPARATION OF E.I.R. OR NEGATIVE DECLARATION HAVE OCCURRED. APPELLANTS ARE CONCERNED ABOUT TRAFFIC IMPACTS DUE TO THIS PROJECT AND OTHER PROJECTS IN THE AREA. TRANSPORTATION CONSTRUCTION PLAN IS A REQUIRED CONDITION

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OF APPROVAL. SINCE THIS SITE IS WITHIN A THIRD OF A MILE FROM THE ASHBY B.A.R.T. STATION, TRAFFIC IMPACT ANALYSIS IS NOT REQUIRED PER STATE LAW. OFF STREET PARKING IS NOT REQUIRED PER THE BERKELEY MUNICIPAL CODE AND ON-SITE LOADING SPACES ARE NOT REQUIRED BECAUSE THE COMMERCIAL USE IS LESS THAN 10,000 SQUARE FEET. LAND USE PLANNING DOESN'T REGULATE ON STREET LOADING SPACES. CALTRANS WOULD NOT SUPPORT A LOADING ZONE ALONG ASHBY PORTION OF THE PROJECT. A LOADING ZONE ON THE SHATTUCK SIDE WOULDN'T BE FEASIBLE BECAUSE A.C. TRANSIT PLANS TO MOVE THE BUS STOP AT NORTHWEST CORNER OF ASHBY AND SHATTUCK TO THE SOUTHWEST CORNER OF THE INTERSECTION ALONG THE PROJECT FRONTAGE. ANOTHER REQUIRED CONDITION OF APPROVAL IS TRANSPORTATION DEMAND MANAGEMENT. WHICH INCLUDES A TRANSIT BENEFIT CARD FOR BUILDING RESIDENTS. THE APPELLANTS STATE SINCE THE TWO PROJECTS ARE DIFFERENT AND THE PROPOSED CONSTRUCTION DURATION DESCRIBED IN THE ADDENDUM SHOULD BE DIFFERENT, INFORMATION ON THE CONSTRUCTION DURATION AND FOUNDATION WORK IS FROM THE APPLICANT AND THEY HAVE CONSULTED THEIR GENERAL CONTRACTOR. THE APPELLANTS REQUEST HARD HATS ORDINANCE. THE ORDINANCE BECAME EFFECTIVE JANUARY 1, 2024, AFTER THE VESTING DATE AND THE ZAB APPROVAL OF THE PROJECT. SINCE THE HARD HATS ORDINANCE DOES NOT APPLY, COMPLIANCE WITH PROVISIONS OF THAT ORDINANCE WOULD BE VOLUNTARY. APPELLANTS STATE THAT THE PROJECT IS INCONSISTENT WITH THE

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GENERAL PLAN ECONOMIC DEVELOPMENT AND EMPLOYMENT POLICIES BECAUSE THERE'S NO COMMITMENT TO PROVIDE CONSTRUCTION JOBS TO BERKELEY OR EAST BAY RESIDENTS AND NO COMMITMENT TO CONTRIBUTE TO AN APPRENTICESHIP OR CONSTRUCTION JOB TRAINING PROGRAM. ALSO STATE PROJECT IS INCONSISTENT WITH THE HOUSING ELEMENT BECAUSE LESS THAN 20% OF UNITS WILL BE AFFORDABLE. GENERAL PLAN GOALS AND POLICIES ARE NOT OBJECTIVE STANDARDS AND CANNOT PROVIDE A BASIS FOR DENIAL OR REDUCTION IN DENSITY FOR A HOUSING PROJECT DUE TO THE HOUSING ACCOUNTABILITY ACT. UNDER THE CITY'S INCLUSIONARY HOUSING ORDINANCE, THE APPLICANT MAY PAY A PARTIAL IN-LIEU FEE IF LESS THAN 20% OF UNITS WILL BE AFFORDABLE. IT WILL PROVIDE 17 UNITS ON SITE WHICH ARE AFFORDABLE TO VERY LOW-INCOME HOUSEHOLDS. STAFF RECOMMENDS COUNCIL CONDUCT A PUBLIC HEARING AND UPON CONCLUSION ADOPT A RESOLUTION AFFIRMING THE ZAB DECISION TO APPROVE USE PERMIT ZP 2022-0046 TO DEMOLISH A GAS STATION AND CONSTRUCT A 10 STORY MIXED USE RESIDENTIAL BUILDING AND DISMISS THE APPEALS.

>> MAYOR ISHII: I'M SORRY?

>> THIS CONCLUDES THE PRESENTATION.

>> MAYOR ISHII: OKAY, THANK YOU. SO I WILL OPEN THE PUBLIC HEARING AND ALSO ASK IF THERE ARE DISCLOSURES OF EX PARTE CONTACT. GO AHEAD, VICE MAYOR BARTLETT?

>> B. BARTLETT: I SPOKE TO BOTH THE APPLICANT AND THE

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RESPONDENT.

>> T. TAPLIN: THANK YOU, I SPOKE WITH THE APPELLANT.

>> MAYOR ISHII: OH, YES, OKAY. MY STAFF ALSO SPOKE WITH THE APPELLANT.

>> B. BLACKABY: MAYOR, I SPOKE WITH ONE OF THE APPELLANTS AS WELL.

>> MAYOR ISHII: THERE ARE DISCLOSURE FORMS. DO YOU HAVE ONE? OKAY. ALL RIGHT, THANK YOU VERY MUCH. SO MOVING ON. WE WILL TAKE COUNCIL QUESTIONS TO START.

>> CITY CLERK: WE GO TO THE APPELLANTS FIRST.

>> MAYOR ISHII: YES, THE APPELLANTS HAVE TIME FIRST.

>> CITY CLERK: TWO APPELLANT GROUPS, EACH OF THE APPELLANTS HAS FIVE MINUTES. YOU CAN SHARE THE FIVE MINUTES HOW YOU LIKE. ANYBODY WHO SPEAKS DURING THE FIVE MINUTES CANNOT THEN SPEAK AGAIN DURING THE REGULAR PUBLIC COMMENT PERIOD. AND PLEASE LET ME KNOW.

>> MAYOR ISHII: WAS THAT CLEAR TO FOLKS?

>> CITY CLERK: EACH APPELLANT HAS A FIVE-MINUTE PERIOD TO COMMENT ON THEIR APPEAL. ANYBODY WHO SPEAKS DURING THAT FIVE-MINUTE PERIOD, I WILL SAY THIS. AFTER THE FIVE-MINUTE COMMENT PERIODS BY THE APPELLANTS AND THE APPLICANT THEN WE DO REGULAR PUBLIC COMMENT PERIOD. IF YOU SPEAK DURING THE FIVE MINUTES YOU CANNOT ALSO THEN SPEAK DURING THE REGULAR PUBLIC COMMENT PERIOD.

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>> MAYOR ISHII: AND JUST TO CLARIFY. SO FOR THE APPELLANTS, IF THEY ARE WITHIN THE SAME PARTY, THEY ARE STILL, THEY HAVE TO BE WITHIN THAT FIVE MINUTES?

>> CITY CLERK: YES, THEY CAN DIVIDE THE FIVE MINUTES HOW THEY LIKE WITHIN THE DIFFERENT PARTIES TO THE SAME APPEAL. IT'S UP TO YOU.

>> MAYOR ISHII: THANK YOU. I APPRECIATE YOU CLARIFYING THAT.

>> GOOD EVENING, MY NAME IS LES SHIPKNOCK, 2071 EMERSON STREET. MY BACKYARD IS 15 FEET FROM THE PROJECT SITE. JUST ABOUT ME, I SHOULD SAY, I'M A 40-YEAR VETERAN OF ARCHITECTURAL PRACTICE AND CONSTRUCTION MANAGEMENT. I'M WELL FAMILIAR WITH THE KIND OF CONSTRUCTION THAT'S BEING PROPOSED HERE. WE HAVE HAD A WAVE OF APARTMENT BUILDINGS GOING UP IN BERKELEY. I'M NOT THRILLED WITH A LOT OF THEM. AND THEY ARE NOT NEARLY ENOUGH AFFORDABLE HOUSING BEING INCLUDED. AS I SEE IT, IT'S LARGELY MARKET-RATE. I WOULD LIKE TO SEE SOMETHING DONE ABOUT THAT. I WOULD LIKE TO SEE A CHANGE TO THE EXTENT THIS HOUSING BENEFITS THE WHOLE COMMUNITY. I THINK THE DIFFERENT NEIGHBORHOODS OF THIS TOWN SHOULD HOST IT. MOST OF THIS HOUSING, AS YOU PROBABLY KNOW, IS LOCATED IN SOUTH BERKELEY OR WEST BERKELEY. NOW, I HAVE A BLOCK I LIVE IN IS A CASE IN POINT. WE HAVE THREE PROPOSED DEVELOPMENTS ON OUR BLOCK. FLOCCO'S AT THE LOWER END, 7 STORIES. THE A.M.E. PROJECT IN THE MIDDLE OF THE BLOCK SCHEDULED FOR 6 STORIES AND OF COURSE THE

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10-STORY PROPOSAL FOR 3000 SHATTUCK. YOU KNOW, 10 STORIES DOWNTOWN, FINE. NO PROBLEM. BUT NOT OUT IN THE NEIGHBORHOODS. I THINK THE CITY IS MAKING A MISTAKE WITH THIS. I WANT TO TALK TO YOU A LITTLE ABOUT THE LOADING ZONE THAT'S BEEN REFERRED TO. THERE'S NO LOADING ZONE IN THE PLANS. I KNOW THE CITY WANTS TO PUT IT ON SHATTUCK. SHATTUCK TAPERS DOWN FROM TWO TO ONE LANE RIGHT THERE IN FRONT OF THE BUILDING. HISTORICALLY THERE'S BEEN A LOT OF ACCIDENTS AT THIS CORNER. AND A.C. TRANSIT WANTS TO PUT ITS BUS STOP IN FRONT OF THE BUILDING. WHAT THAT WILL LEAVE IS FOUR PARKING PLACES AT THE SOUTH END OF THE BLOCK, UP BY MY END WHICH IS EMERSON STREET. I THINK THE VENDORS AND SERVICES PEOPLE ARE GOING TO COME UP TO THE CORNER AND TAKE A RIGHT AND USE OUR STREET AS THE LOADING ZONE. I THINK THE CITY OUGHT TO LOOK AT ASHBY AVENUE WHICH IS GOING TO PICK UP ALL THE PARKING WHERE THE CURB CUTS FOR THE GAS STATION WILL BE AMENDED. I THINK THAT CAN BE ARRANGED. I'VE TALKED TO THEM ABOUT IT. AND I KNOW THAT IT'S POSSIBLE TO MAKE ALTERATIONS ON ASHBY AVENUE. SO IN CLOSING, I SAY, UPHOLD THE APPEAL AND MAKE THEM GET THIS RIGHT. THANK YOU. AND I CEDE MY TIME TO MY NEIGHBOR, PAUL DILLINGHAM.

>> CITY CLERK: ARE YOU PART OF THE SAME APPEAL?

>> [OFF MIC]

>> CITY CLERK: OKAY.

>> MAYOR ISHII: OKAY. SO, YOU'RE NOT GOING TO USE THAT 1:26?

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>> [OFF MIC]

>> MAYOR ISHII: THAT'S FINE. I'M JUST CONFIRMING. OKAY. OKAY, THANK YOU.

>> CITY CLERK: WE HAVE ANOTHER APPELLANT. ACTUALLY WE HAVE THREE APPELLANTS. OKAY.

>> GOOD EVENING, MAYOR, VICE MAYOR, HONORABLE COUNCILMEMBERS, MY NAME IS CALEIGH LA FEDERMAN ON BEHALF OF EAST BAY RESIDENTS FOR RESPONSIBLE DEVELOPMENT. LABOR COALITION INCLUDES U.A. PLUMBERS AND PIPE FITTERS, INTERNATIONAL BROTHERHOOD OF ELECTRICAL WORKERS, SHEET METAL, 104, SPRING FITTERS 103 AND FAMILY WHO LIVE AND WORK IN BERKELEY AND ALAMEDA COUNTY. WE ASK TO UPHOLD EAST BAY RESIDENTS APPEAL, REMAND THE PROJECT TO STAFF TO COMPLY WITH CEQA AND LOCAL LAND USE LAWS. EAST BAY FILED THIS APPEAL 2023 BECAUSE THE ZAB RELIED ON AN ADDENDUM THAT DIDN'T ADDRESS CHANGES IN THE PROJECT AND SURROUNDING COMMUNITY. SINCE APPROVED IN 2018. THE TEN STORY IS MORE THAN DOUBLE THE SIZE, SURROUNDED BY MAJOR NEW CONSTRUCTION THAT DIDN'T EXIST IN 2018 AND HAS MORE INTENSE ENVIRONMENTAL AND HEALTH IMPACT THAT'S REQUIRE MITIGATION. THESE ARE NOT JUST MINOR CHANGES, UNDER CEQA THESE REQUIRE A SUPPLEMENTAL E.I.R. THE CITY'S DECISION TO RELY ON AN ADDENDUM VIOLATED THE LAW AND DEPRIVED THE PUBLIC OF A MEANINGFUL ASSESSMENT OF THE PUBLIC'S IMPACTS. JUST A FEW DAYS AGO THE CITY RELEASED A REVISED ADDENDUM. WE REVIEWED WITH OUR

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EXPERTS AND INCLUDES UPDATED ANALYSIS OF ORGANIC GAS EMISSIONS BUT DOESN'T ADDRESS OTHER ISSUES. FIRST THE PROJECT SITE IS CONTAMINATED WITH BENZENE. THE REVISED ADDENDUM INCLUDES SOIL SAMPLES SHOWING OTHER CONTAMINANTS ARE BELOW THRESHOLDS BUT NOT BENZENE. THE ISSUES RAISED IN THE APPEAL ARE THE PROJECT SITE DOESN'T MEET RESIDENTIAL SCREENING LEVELS FOR BENZENE. THE STANDARD CONDITIONS OF APPROVAL DO NOT REQUIRE CLEAN UP TO OCCUR BEFORE CONSTRUCTION WORKERS ARE ON SITE. THESE ISSUES ARE NOT ADDRESSED IN THE ADDENDUM. DISTURBING CONTAMINATED SOIL AND BUILDING HOMES ABOVE CONTAMINATION THAT'S NOT BEEN CLEANED TO RESIDENTIAL STANDARDS MAY POSE SIGNIFICANT HEALTH RISKS TO CONSTRUCTION WORKERS AND FUTURE RESIDENTS OF THE PROJECT. SECOND, THE ADDENDUM DOESN'T ADDRESS HEALTH CUMULATIVE IMPACTS. AT LEAST FIVE MULTI-STORY PROJECTS WITHIN 1,000 FEET OF THE PROJECT SITE, THREE OF WHICH MAY ALSO REQUIRE CLEAN UP OF CONTAMINATED SOIL. THE REVISED ADDENDUM IDENTIFIES THESE PROJECTS BUT DOESN'T QUANTIFY THEIR IMPACTS INCLUDING CUMULATIVE AIR POLLUTION, GREENHOUSE GAS, NOISE AND VIBRATION IMPACTS WHICH MAY RESULT IN CONSTRUCTION IMPACTS. THE CITY'S APPROACH DOESN'T COMPLY WITH CEQA AND STAFF'S CONCLUSION THE CUMULATIVE IMPACTS ARE LESS THAN SIGNIFICANT IS NOT SUPPORTED BY EVIDENCE. FINALLY THE PROJECT'S INCREASED HEIGHT WILL RESULT IN MORE NOISE IMPACTS. REVISED ADDENDUM SAYS BECAUSE IT WILL BE TEN STORIES

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TALL IT WILL REDUCE NOISE IMPACTS TO NEARBY RESIDENTS BELOW SIGNIFICANCE, BUT THAT'S NOT SUPPORTED BY EVIDENCE IN THE RECORD. IT'S BEING BUILT NEXT TO OTHER SIGNIFICANT PROJECTS. OUR EXPERTS FOUND THE ROOFTOP EQUIPMENT ON THIS PROJECT WOULD NEGATIVELY IMPACT RECEPTORS. AND THE SURROUNDING COMMUNITY. THIS REMAINS UNRESOLVED. EAST BAY BELIEVES HOUSING PROJECTS MUST BE BUILT SAFELY AND IN COMPLIANCE WITH LAW. THIS DOESN'T COMPLY WITH CEQA AND DETRIMENTAL TO THE GENERAL WELFARE OF WORKERS AND CITY RESIDENTS. UPHOLD RESIDENTS APPEAL AND REMAND THE PROJECT TO STAFF TO PREPARE A REVISED ENVIRONMENTAL ANALYSIS THAT DISCLOSES THESE ISSUES AND MITIGATES THE PROJECT'S IMPACTS AS REQUIRED BY CEQA. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: MR. CITY CLERK, ARE THERE OTHER APPELLANTS?

>> CITY CLERK: WHO IS THE THIRD APPELLANT? PARDON?

>> [OFF MIC]

>> CITY CLERK: VICTORIA. SHE IS ON THE -- OKAY. SO WE WILL PROMOTE HER TO PANELIST. VICTORIA YUNDT? SHE IS ON THE ZOOM. AND VICTORIA SHOULD BE ABLE TO SPEAK.

>> GOOD EVENING, MY NAME IS VICTORIA YUNDT, ATTORNEY WITH LOZEAU DRURY, I'M HERE ON BEHALF OF THE LABORER’S INTERNATIONAL UNION OF NORTH AMERICA, LOCAL 304. LIUNA RESPECTFULLY REQUEST TO RETURN TO CITY STAFF FOR FURTHER CONSIDERATION OF ENVIRONMENTAL IMPACTS INCLUDING NECESSARY PREPARATION OF EITHER AN M.M.D. OR

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E.I.R. THE USE OF AN ADDENDUM TO APPROVE VIOLATES CEQA. A SIGNIFICANT ENVIRONMENTAL EFFECT HASN'T PREVIOUSLY BEEN STUDIED. IN SUPREME COURT RULING, IT'S IMPROPER IF THERE IS SUBSTANTIAL EVIDENCE OF A FAIR ARGUMENT THE PROJECT INTRODUCES NEW SIGNIFICANT ENVIRONMENTAL IMPACTS THAT HAVE NOT BEEN ADEQUATELY ADDRESSED OR MITIGATED. IN PROPOSING THE ADDENDUM, THE CITY SEEKS TO MAKE SUBSTANTIAL REVISIONS TO THE 2018 PROJECT WITHOUT PERFORMING A LEGALLY SUFFICIENT ENVIRONMENTAL REVIEW OR OFFERING APPROPRIATE MITIGATION FOR THE POTENTIALLY SIGNIFICANT ENVIRONMENTAL EFFECTS. FIRST LIUNA'S INDOOR EXPERT FOUND FORMALDEHYDE. WITHOUT MITIGATION, GAS FROM FORMALDEHYDE FROM THE PROJECT WILL RESULT IN EXCESS CANCER RISK. 12 TIMES GREATER THAN THE BAY AREA AIR QUALITY MANAGEMENT DISTRICT'S THRESHOLD OF SIGNIFICANCE OF TEN PER MILLION. THIS IS A SIGNIFICANT IMPACT NOT ADDRESSED BY THE 2018 NEGATIVE DECLARATION OR ADDENDUM WHICH MUST BE EVALUATED AND MITIGATED BY EITHER AN M.M.D. OR E.I.R. THE ADDENDUM FAILED TO PRESENT EVIDENCE SHOWING THE EXPANDED PROJECT WILL NOT HAVE NOISE AND AESTHETIC IMPACTS WHICH THE 2018 NEGATIVE DECLARATION DID NOT PROVIDE. THE ADDENDUM DIDN'T PROVIDE QUANTIFIED NOISE ANALYSIS DESPITE THE LARGER HEIGHT. SIMILARLY, THE ADDENDUM FAILS TO PROVIDE ANY SUBSTANTIVE ANALYSIS OF THE SIGNIFICANT AESTHETIC IMPACTS RESULTING FROM THE BUILDING'S INCREASED HEIGHT AND SHADOW EFFECTS. THERE'S EVIDENCE

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IT WILL HAVE HEALTH IMPACTS WHICH HAVE NOT BEEN PREVIOUSLY CONSIDERED AND MAY HAVE SIGNIFICANT NOISE AND AESTHETIC IMPACTS WHICH HAVE NOT BEEN ANALYZED EITHER. LIUNA RESPECTFULLY REQUESTS YOU GRANT THIS APPEAL AND RETURN IT FOR M.M.D. OR E.I.R. THANK YOU FOR YOUR CONSIDERATION THIS EVENING.

>> MAYOR ISHII: THANK YOU. NOW MOVING ONTO SEE IF THERE ARE ANY COUNCIL QUESTIONS.

>> CITY CLERK: WE HAVE THE APPLICANT.

>> MAYOR ISHII: RESPONSE, THANK YOU.

>> GOOD EVENING, COUNCILMEMBERS AND MAYOR, I'M EMILY WITH HOLLAND AND KNIGHT. THANK YOU FOR PREPARING THOROUGH RESPONSES TO THE CONCERNS RAISED BY THE VARIOUS APPELLANTS THIS EVENING. IN ADDITION TO THOSE RESPONSES, MY GOAL TONIGHT IS TO BE SURE THAT THE COUNCIL IS COGNIZANT OF THREE MAJOR ISSUES TO CONSIDER WHILE EVALUATING THE MERITS OF THESE APPEALS. THE FIRST IS AS STAFF CORRECTLY POINTED OUT THIS IS A RESIDENTIAL DEVELOPMENT SUBJECT TO THE HOUSING ACCOUNTABILITY ACT. THE HOUSING ACCOUNTABILITY ACT IS TO FACILITATE PRODUCTION OF HOUSING UNITS THROUGH THE STATE OF CALIFORNIA. IN PARTICULAR WHERE A PROJECT COMPLIES WITH OBJECTIVE STANDARDS IT STRICTLY LIMITS THE CONDITIONS UNDER WHICH A COUNCIL SUCH AS YOURSELVES COULD DENY OR CONDITION IMPERMISSIBLY -- THE PROJECT COMPLIES WITH ADJUSTED STANDARDS WHEN ADJUSTED FOR STATE DENSITY BONUS LAWS. AT THAT

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POINT THE GROUNDS IT COULD BE DENIED OR CONDITIONED IS WHERE THERE IS SIGNIFICANT ADVERSE SAFETY IMPACT. WE HEARD FROM APPELLANTS. IT'S IMPORTANT TO DISTINGUISH. THE H.A.A. DEFINE IT'S VERY PARTICULARLY. IT'S A SIGNIFICANT, QUANTIFIABLE, DIRECT AND UNAVOIDABLE IMPACT BASED ON OBJECTIVE, IDENTIFIED WRITTEN PUBLIC HEALTH OR SAFETY STANDARDS POLICIES OR CONDITIONS THAT WERE IN EXISTENCE AT THE TIME THE APPLICATION WAS DEEMED COMPLETE. NOTHING THAT'S BEEN IDENTIFIED TO DATE AMOUNTS TO THAT LEVEL OF A SPECIFIC ADVERSE PUBLIC HEALTH AND SAFETY IMPACT. WITHOUT THAT, THERE'S NO BASIS TO DENY OR IMPERMISSIBLY CONDITION THE PROJECT. DOING SO WOULD BE A VIOLATION OF STATE HOUSING LAW. BEYOND THAT, WE HAVE ALSO HEARD SOME STATEMENTS ABOUT HOUSING ELEMENT CONSISTENCY IN THE WRITTEN MATERIALS SUBMITTED ON BEHALF OF THE APPELLANTS. I WOULD NOTE FIRST THE HOUSING ELEMENT APPROVED BY THIS COUNCIL ANTICIPATED FOUR AFFORDABLE UNITS LOCATED ON THIS SITE. THE PROJECT IS PROVIDING 17. SO FORGIVE THE LAWYER MATH BUT FOUR TIMES THE AMOUNT ANTICIPATED AT THAT TIME. THE DISPUTE COMES FROM THE RELIANCE ON THE INCLUSIONARY HOUSING ORDINANCE'S IN-LIEU FEE FOR THE PORTION THAT WOULD BELOW INCOME HOUSING AS OPPOSED TO VERY LOW-INCOME HOUSING. IT PROPOSES 17 AT THE VERY LOW AND TAKES ADVANTAGE OF THE CURRENT IN-LIEU FEE TO ACCOUNT FOR THE TWO LOW INCOME UNITS THAT HAVE BEEN ANTICIPATED IN THE HOUSING ELEMENT. THE HOUSING

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ELEMENT EXPRESSLY ADDRESSES THE USE OF THIS IN-LIEU FEE REPEATEDLY THROUGH THE DOCUMENT. THERE'S NO INCONSISTENCY WITH THE HOUSING ELEMENT IN THIS CASE WHERE WE HAVE OBJECTIVE STANDARD COMPLIANCE AND NO SPECIFIC ADVERSE HEALTH AND SAFETY IMPACT WITHIN THE MEANING OF THE H.A.A. THIS COUNCIL'S DISCRETION IS HIGHLY CONSTRAINED. NOW I THINK IT'S ALSO IMPORTANT FOR THE COUNCIL TO FINALLY CONSIDER THE MOTIVATIONS UNDERLYING THE APPEALS YOU ARE HEARING TONIGHT. TWO ARE BEING BROUGHT BY LABOR ORGANIZATIONS. LABOR, OF COURSE, IS A VERY IMPORTANT STAKEHOLDER IN OUR COMMUNITY. I KNOW THAT MY CLIENT, THE APPLICANT HAS ENGAGED IN LONG AND THOUGHTFUL CONVERSATIONS OVER THE LAST TWO YEARS TRYING TO REACH RESOLUTION ON THESE ISSUES. THAT SAID, WHEN RESOLUTION IS NOT AVAILABLE, WE HAVE OFTEN SEEN UNIONS LEVERAGE THE ENVIRONMENTAL REVIEW PROCESS TO GAIN FAVORABLE NEGOTIATION POWER. THAT'S NOT AN ACCEPTABLE BASIS FOR DENYING OR CONDITIONING A HOUSING ACCOUNTABILITY ACT ELIGIBLE PROJECT. FINALLY, I WOULD ALSO NOTE THAT WE HAD RESIDENTS OPPOSE THIS PROJECT ON THE BASIS OF CONCERNS WITH THE CHANGING NATURE OF THEIR COMMUNITY. NOW I AM VERY SENSITIVE TO THOSE CONCERNS OF MEMBERS OF THE COMMUNITY. HOWEVER, THAT'S WHAT THE HOUSING ACCOUNTABILITY ACT IS DESIGNED TO ADDRESS AND CONSTRAIN. SPECIFICALLY, BEING NOT THRILLED WITH THE APARTMENT BUILDINGS GOING UP OR NOT OUT IN THE NEIGHBORHOODS IS THE

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SUBJECTIVE CONCERN THAT THE H.A.A. IS TRYING TO REDUCE IN ORDER TO PRODUCE THE HOUSING UNITS THAT WE SO DESPERATELY NEED. SO IN EVALUATING THE MERITS OF THESE APPEALS I URGE THE COUNCIL TO CONSIDER THE CONSTRAINTS OF STATE HOUSING LAW AND HOW THEY INTERACT WITH THE ABILITY TO UPHOLD THESE APPEALS. THE APPLICANT RESPECTFULLY REQUEST THE COUNCIL DENY THEM ON THAT BASIS. THANK YOU.

>> MAYOR ISHII: HEY, THERE WILL BE NO BOOING. OKAY. NOW WE ARE GOING TO MOVE ONTO COUNCIL QUESTIONS, ACTUALLY. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU. JUST FOR MY EDIFICATION, AND CLARITY, SB 33 ALLOWS UP TO FIVE MEETINGS, CORRECT?

>> 330.

>> T. TAPLIN: 330.

>> SB 330.

>> YES, FIVE MEETINGS. AND THIS IS ONLY THE THIRD? LET ME DOUBLE CHECK. IT WENT TO ZAB. IT WENT TO D.R.C. IT DIDN'T NEED TO GO TO LANDMARKS BECAUSE THE PREVIOUS PROJECT WENT TO LANDMARKS FOR THE DEMOLITION REFERRAL. THIS MEETING IS THE THIRD.

>> T. TAPLIN: THANK YOU VERY MUCH. AND FOR THE APPLICANT, I'M JUST CURIOUS WHAT ENGAGEMENT OR INTERACTION WITH THE NEIGHBORS OCCURRED TO MITIGATE SOME OF THEIR CONCERNS.

>> SORRY, I SHOULD NOT HAVE SAT DOWN. I ALSO ON THE LINE

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VIRTUALLY IS ONE OF THE DEVELOPER TEAM TO BE ABLE TO RESPOND TO THAT ISSUE. NATHAN, IF YOU ARE ON?

>> YES, I'M HERE. COUNCILMEMBER TAPLIN, COULD YOU PLEASE REPEAT THE QUESTION TO MAKE SURE THAT I CAN PROPERLY ADDRESS IT.

>> T. TAPLIN: YES, THANK YOU. I WAS JUST WONDERING IF YOUR TEAM COULD DESCRIBE WHAT ACTIONS OR ACTIVITIES YOU TOOK OR ENGAGED IN TO MITIGATE THE CONCERNS OF THE NEIGHBORS, OR ALLAY CONCERNS?

>> WITH THE NEIGHBORS, WE HAVE MET WITH THEM ON OTHER HEARINGS AND THROUGHOUT THIS ORIGINAL APPEAL. BUT MOST OF OUR ENGAGEMENT HAS BEEN WITH COUNCILMEMBERS AND THE UNION REPRESENTATIVES. REGARDING THE ENVIRONMENTAL CONCERNS.

>> T. TAPLIN: OKAY, THANK YOU.

>> I WOULD BE HAPPY TO DISCUSS ANY OF THOSE DISCUSSIONS. BUT THEY ARE NOT ENVIRONMENTAL RELATED, THEY WERE ALWAYS RELATED TO LABOR DISCUSSIONS.

>> T. TAPLIN: THAT WASN'T MY QUESTION, BUT I HAVE ASKED MY QUESTION, THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. VICE MAYOR BARTLETT?

>> B. BARTLETT: THANK YOU, MADAM MAYOR. THANK YOU ALL THE PARTICIPANTS HERE. THESE LITTLE TRIALS ARE ALWAYS INTERESTING. BUT THEY ARE USUALLY VERY ACADEMIC FOR ME. THIS TIME IT'S A BIT DIFFERENT BECAUSE THERE'S BENZENE IN THE GROUND THERE. THAT'S THE LINE OF QUESTIONING I WANT TO KIND OF EXPLORE WITH THE CITY

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TEAM HERE. SO WHAT WAS THE NATURE, LIKE WHAT WAS THE TEST DONE? AND WHAT YEAR WAS THAT IN? BECAUSE THE REPORT WAS A LITTLE CONFUSING. THERE WAS A LATER DATE THAT CONFIRMS SOMETHING IN THE PAST BUT DIDN'T SEEM LIKE AN ACTUAL EXAMINATION.

>> THE ENVIRONMENTAL SITE ASSESSMENTS PHASE 1 AND 2 WERE BOTH DONE IN 2022.

>> B. BARTLETT: OKAY, THE SOIL SAMPLES, ET CETERA?

>> THAT'S WHEN THE TESTING WAS DONE FOR PHASE TWO, DURING THE PHASE TWO, THAT'S WHEN TESTING OCCURS.

>> B. BARTLETT: OKAY. AND SO, THAT WAS THE SECOND ONE. THE FIRST ONE WAS 2017? 2015? RIGHT?

>> I'M NOT SURE. I THINK MAYBE YOU ARE REFERRING TO THE, LIKE THE FIRST CEQA DOCUMENT?

>> B. BARTLETT: YEAH, IT WASN'T CLEAR. THE SOIL ASSESSMENT THAT DETERMINED THE SAFETY AND THE LEAKAGE, POTENTIALLY OF THE GAS TANKS, ET CETERA. AND DETECTED THE BENZENE. WAS THAT 2022?

>> I THINK THAT WOULD HAVE TO BE 2022. BEFORE EITHER PROJECT THERE WAS WORK WITH THE STATE WATER RESOURCES CONTROL BOARD TO ADDRESS LEAKING UNDERGROUND STORAGE TANKS. AND THAT'S WHEN THEY MARKED IT AS CASE CLOSED IN 2013 AND 2014. AND THEN FOR THIS CURRENT PROJECT, THE ENVIRONMENTAL SITE ASSESSMENTS WERE DONE IN 2022.

>> B. BARTLETT: SO, CAN SOMEONE TELL ME. CAN ANYONE ELSE ANSWER

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THE QUESTION WHAT WAS DONE SPECIFICALLY IN 2014, 2013, VERSUS 2022, IN TERMS OF TESTING? EITHER THE APPLICANTS OR THE APPELLANT. I JUST WANT TO DRILL DOWN ON THIS ONE.

>> IF YOU COULD PROMOTE ABE LEIDER, BILL VOSTI AND KATIE GREEN.

>> YEAH, OUR CEQA CONSULTANTS FROM RAY TELECON CON SULT ANTS ARE ONLINE. I SEE KATIE UNMUTED.

>> HI, MADAM MAYOR AND CITY COUNCIL, I'M KATHERINE GREEN, I WORK WITH RINCON CONSULTANTS WHO ASSISTED THE CITY WITH CEQA. REGARDING THE BENZENE, THERE ARE TWO THINGS THAT HAPPENED. THERE WAS A 2010 CASE CLOSURE SUMMARY REPORT. AND THAT IS THE DOCUMENT THAT IDENTIFIED BENZENE AS THE ONLY CONSTITUENT THAT SLIGHTLY EXCEEDED ASL AT THAT TIME. THAT CASE CLOSURE SUMMARY REPORT INDICATED THERE WAS ONE GROUND WATER SAMPLE THAT WAS IN A GROUND WATER MONITORING WELL THAT WAS ACTUALLY OFF SITE, APPROXIMATELY 150 WEST OF THE PROJECT SITE. THE MOST RECENT GROUND WATER SAMPLES COLLECTED FROM ON SITE GROUND WATER WELLS DID NOT CONTAIN BENZENE AT CONCENTRATIONS ABOVE THE LABORATORY REPORTING LIMIT.

>> B. BARTLETT: WHAT YEAR WAS THAT? 2022, 2014?

>> I BELIEVE THAT WAS 2022, I CAN CHECK THAT YEAR.

>> B. BARTLETT: CAN YOU COME BACK TO ME WHEN YOU FIGURE THAT OUT?

>> YES.

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>> B. BARTLETT: AND THEN I'M CURIOUS, THE ACCEPTABLE LIMITS. I READ HERE THEY WERE FOR COMMERCIAL PROPERTIES?

>> ORIGINALLY, THE SITE IN 2010 WAS CLOSED TO THE CURRENT LAND USES, COMMERCIAL INDUSTRIAL SCREENING LEVEL. THE PHASE ONE AND PHASE TWO DOCUMENTS CONSIDERED THE USE OF THE PROPERTY FOR RESIDENTIAL.

>> B. BARTLETT: SO PHASE TWO, THE THRESHOLD WAS FOR RESIDENTIAL, RIGHT?

>> THE AMOUNT OF BENZENE SHOWN WASN'T ACTUALLY DETECTED IN LABORATORY LIMITS SO THAT'S BELOW THE RESIDENTIAL AS WELL. ADDITIONALLY, ALL CONCENTRATIONS OF DETECTED SOIL SAMPLES IN THAT MOST RECENT PHASE TWO, ENVIRONMENTAL SITE ASSESSMENT WERE BELOW RESPECTIVE SCREENING LEVELS, BOTH RESIDENTIAL AND COMMERCIAL/INDUSTRIAL, EXCEPT FOR ARSENIC. BUT THOSE ARE WITHIN REGIONAL BACKGROUND CONCENTRATIONS AND DETERMINED TO BE NATURALLY OCCURRING.

>> B. BARTLETT: THAT WAS TESTED ON SITE? THE SECOND WAS ON THE PREMISES. THE OTHER WAS 150 FEET?

>> YEAH. YES. THAT'S CORRECT. THE 150 FEET OFF SITE READING FROM 2010 WAS THE ONE WITH SOME ELEVATED BENZENE.

>> B. BARTLETT: OKAY, THANK YOU.

>> MAYOR ISHII: THANK YOU. THOSE WERE THE CLARIFYING QUESTIONS. QUESTIONS FROM COUNCILMEMBER HUMBERT?

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>> M. HUMBERT: YES, THANK YOU, MADAM MAYOR. JUST A FEW MORE QUESTIONS ABOUT SOIL CONTAMINATION. IT'S MY UNDERSTANDING, AND I THINK THIS IS PROBABLY DIRECTED TO PLANNING. LET ME ACTUALLY FORM IT AS A QUESTION. WHAT NEEDS TO BE DONE WITH RESPECT TO POTENTIAL SOIL CONTAMINANTS BEFORE A BUILDING PERMIT WOULD BE ISSUED ON THIS SITE?

>> WHEN THEY APPLY FOR A DEMOLITION PERMIT, THAT'S WHEN A HAZARDOUS MATERIALS BUILDING SURVEY IS REQUIRED. SO IT CHECKS ON THE EXISTING MATERIALS, LEAD PAINT, THINGS LIKE THAT. AND THEN WHEN THEY APPLY FOR A BUILDING PERMIT, A SOIL AND GROUND WATER MANAGEMENT PLAN IS REQUIRED. AND BECAUSE THIS IS A GAS STATION SITE, THE APPLICANT WILL NEED TO GET APPROVAL FROM THE REGIONAL WATER QUALITY CONTROL BOARD. SO THEY WILL HAVE TO DEVELOP A PLAN, WHICH WILL INVOLVE MORE TESTING. AND CHECKING ON ANY CONTAMINATION IN THE SOIL. AND WHERE IT CAN, WHAT NEEDS TO BE REMOVED AND WHERE IT CAN BE SAFELY BE DISPOSED OF.

>> M. HUMBERT: OKAY. THANKS. AND WHAT HAPPENS JUST KIND OF GENERALLY IF THERE ARE SOIL CONTAMINANTS DURING EXCAVATION, FOR EXAMPLE, AFTER THAT PHASE? SOIL CONTAMINANTS ARE ENCOUNTERED, WHAT HAPPENS IN THAT EVENT?

>> IN THE EVENT THAT THERE'S CONTAMINATION IN THE SOIL AFTER A BUILDING PERMIT HAS BEEN APPROVED?

>> M. HUMBERT: YEAH. IS THERE A REQUIREMENT TO CLEAN IT UP?

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>> THE CLEAN-UP IS REQUIRED BEFORE A BUILDING PERMIT CAN BE APPROVED. OVERSIGHT OF THE REGIONAL WATER QUALITY CONTROL BOARD.

>> M. HUMBERT: THANK YOU. THAT'S ALL I HAVE.

>> MAYOR ISHII: FOLLOW-UP. JUST TO CONFIRM, I WANT TO MAKE SURE I UNDERSTAND THIS, FROM YOUR QUESTION, COUNCILMEMBER HUMBERT. THAT WHAT WE ARE APPROVING TONIGHT IS NOT BUILDING WITHOUT NEEDING TO DO THIS TESTING. THAT TESTING WILL STILL NEED TO BE DONE AND ANY REMEDIATION WORK THAT IS NECESSARY, IS THAT CORRECT?

>> THAT'S CORRECT. THAT'S DETAILED IN CONDITION #26, ACTUALLY. THAT'S IN THE CONDITIONS OF APPROVAL TALKS ABOUT TOXICS, IT TALKS ABOUT THE KIND OF REMEDIATION AND OVERSIGHT THAT ALLISON DESCRIBED.

>> MAYOR ISHII: OF COURSE, BECAUSE PEOPLE WOULD BE CONCERNED ABOUT THAT, THANK YOU. ARE THERE OTHER QUESTIONS? DID YOU HAVE A QUESTION, VICE MAYOR? THAT WAS NOT ADDRESSED?

>> B. BARTLETT: YES.

>> THANK YOU. TO GO BACK TO CONDITION 26, AS MENTIONED BY STAFF, THE SOIL AND GROUND WATER MANAGEMENT PLAN ALLOWS NOTIFICATION OF HAZARDOUS MATERIALS FOUND ON SITE DURING DEVELOPMENT. SO THAT IS TOO LATE, THAT'S AFTER SHOVELS HAVE ALREADY GONE INTO THE GROUND THAT CONTAMINATION IS FOUND AND NOTIFIED AND CLEANED UP. AND SO OUR APPEAL PROVIDES THAT THE BENZENE LEVELS ARE TOO HIGH AND

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THAT NOTIFICATION AND CLEAN-UP IS TOO LATE UNDER THIS CONDITION. AND IT REQUIRES ADDITIONAL ANALYSIS AND ADDITIONAL CLEAN UP IN A REVISED ENVIRONMENTAL ANALYSIS.

>> MAYOR ISHII: CAN YOU CLARIFY WHAT YOU MEAN BY TOO LATE? I'M SORRY, I SEE COUNCILMEMBER BLACKABY ALSO HAS A HAND.

>> SURE, CONDITION #26 REQUIRES NOTIFICATION OF ANY HAZARDOUS MATERIALS FOUND IN SOILS AND GROUND WATER DURING DEVELOPMENT. AND SO THIS ALLOWS THE CLEAN UP AS IT IS TO STAND. AND EVEN THOUGH OUR APPEAL FOUND THAT THERE IS EXCEEDANCES OF BENZENE, THIS WOULD ALLOW THESE CONTAMINANTS TO MAINTAIN ON SITE UNTIL CONSTRUCTION AND THEN AT THAT TIME, ONCE THEY HAVE POTENTIAL TO ENDANGER PUBLIC SAFETY THEN THE NOTIFICATION AND CLEAN UP OCCURS AT THAT TIME AND THAT'S TOO LATE.

>> MAYOR ISHII: OKAY, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: I HEARD YOU MENTION SOMETHING. WHAT DO YOU MEAN BY BENZENE BEING TOO HIGH? IS THERE A DISPUTE ABOUT THE BENZENE CONCENTRATION?

>> THE INITIAL CLOSURE REPORT FOUND RESIDENTIAL BENZENE LEVELS -- BENZENE EXCEEDS RESIDENTIAL STANDARDS AND THE FOLLOW-UP REPORT ALSO FOUND EXCEEDANCES OF BENZENE THAT WOULD ENDANGER PUBLIC HEALTH AND SAFETY.

>> B. BLACKABY: THAT'S FROM THE REPORT YOU CONDUCTED?

>> NO THAT'S FROM THE 2022 REPORT, THE LEVELS ARE TOO HIGH.

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>> B. BLACKABY: I'M GOING BACK TO THE CEQA CONSULTANT, FROM VICE MAYOR BARTLETT'S QUESTIONS. I JUST REALLY WANT TO UNDERSTAND THE BENZENE PIECE OF THIS. IS IT TOO HIGH, NOT TOO HIGH? IS IT TOO HIGH FOR INDUSTRIAL BUT NOT RESIDENTIAL, WE WOULD LIKE SOME CLARITY, I THINK, ON THAT.

>> KATHERINE GREEN, PERHAPS? OR OTHER RINCON STAFF COULD MAYBE CLARIFY THAT.

>> ON PAGE 3 OF THE PHASE TWO FROM 2022, UNDER THE ANALYTICAL RESULTS HEADING, THE REPORT READS CONCENTRATIONS OF DETECTED COMPOUNDS IN SOIL SAMPLES WERE ALL BELOW SCREENING LEVELS EXCEPT ARSENIC. THERE'S NO MENTION HERE OF THE BENZENE EXCEEDANCE.

>> B. BLACKABY: OKAY. I WOULD JUST ASK IF THAT DATA EXISTS, THE APPELLANT, IF YOU CAN HELP ME FIND IT, POINT TO IT. IF THERE'S A DISPUTE I WOULD LOVE TO KNOW. OTHERWISE IT FEELS LIKE WE HAVE AN ANSWER. I WANT TO MAKE SURE WE AGREE ON THE ANSWER. WE AGREE ON THE FACTS.

>> MAYOR ISHII: I'M SORRY, BUT YOU CAN'T SPEAK DURING THIS TIME, PERSON IN THE AUDIENCE.

>> B. BLACKABY: IF THERE'S MORE CLARIFICATION ON THAT, I WOULD LOVE IT. ON THE CUMULATIVE IMPACTS, I'M CURIOUS ABOUT THE STANDARD. I KNOW IT'S OBJECTIVE, BUT ALSO THERE'S SOME INTERPRETATION ABOUT WHETHER OR NOT IT'S CUMULATIVELY CONSIDERABLE. HOW DO YOU DETERMINE THAT? WHAT IS THE STANDARD

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FOR THAT? HOW DO YOU MEASURE THAT? WHETHER IT'S CUMULATIVELY CONSIDERABLE OR NOT?

>> I THINK KATHERINE GREEN WOULD PROBABLY BE THE ONE.

>> B. BLACKABY: NO PROBLEM. THANK YOU.

>> HELLO, MY NAME IS ABE LEIDER, I WORK WITH KATIE. DOES THE PROJECT'S CONTRIBUTION TO THAT IMPACT, IS IT CUMULATIVELY CONSIDERABLE? WE LOOKED AT CUMULATIVE DEVELOPMENT SCENARIO, WHICH I THINK ALLISON MENTIONED, SEVERAL PROJECT THAT'S RISE TO THE SIZE THAT SHOULD BE CONSIDERED. AND WE DID NOT IDENTIFY A SIGNIFICANT IMPACT OCCURRING, TO WHICH THE PROJECT WOULD ADD ENOUGH TO BE A CUMULATIVELY CONSIDERABLE AMOUNT. I KNOW THAT'S A LOT OF SORTS OF JARGON, BUT THAT'S THE THOUGHT PROCESS WE WENT THROUGH. AS REGARDS TO NOISE, TRAFFIC OR AIR QUALITY, OR HAZARDS, CONTAMINATION, WE COULDN'T IDENTIFY SIGNIFICANT IMPACT TO WHICH THE PROJECT WOULD CONSIDERABLY CONTRIBUTE IF IT HAD IMPACTS. SO THAT WAS THE CONCLUSION, IT DID NOT CONTRIBUTE IN THAT WAY, RISE TO A SIGNIFICANT IMPACT.

>> B. BLACKABY: OKAY, THANK YOU. AND THEN THE LAST IS MORE OF A GLOBAL QUESTION. WE HAVE HEARD SOME CRITICISM THAT WE'RE NOT COMPLYING WITH CEQA IN THIS PROCESS. THAT IT'S A SUBSTANTIALLY DIFFERENT PROJECT IN THE CURRENT VERSION VERSUS THE PREVIOUS AND REQUIRES MORE THAN AN ADDENDUM. COULD STAFF JUST ADDRESS THAT CRITICISM? THAT WE'RE SATISFIED WITH THE ADDENDUM, IN

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COMPLIANCE, OR I DON'T KNOW, CITY ATTORNEY? ARE WE IN COMPLIANCE WITH CEQA, IS THIS A SUBSTANTIALLY SIMILAR ENOUGH PROJECT THAT DOESN'T REQUIRE A NEW CEQA ANALYSIS AND JUST THE ADDENDUM SUFFICES?

>> YEAH, SO, WHEN YOU ARE DOING A SITE ASSESSMENT, YOU ARE LOOKING AT WHAT'S THERE NOW? IT'S A GAS STATION. AND WE ARE GOING TO DEMOLISH IT. BUT ALSO WHAT'S PROPOSED? IT'S GOING TO BE MIXED USE, MOSTLY RESIDENTIAL. AND SO WE USE THE CEQA GUIDELINES, LIKE THERE'S THE DIFFERENT ISSUE AREAS. USING THE QUESTIONS ASKED IN THE GUIDELINES, WHAT WILL HAPPEN? HOW IS THIS DIFFERENT FROM WHAT WAS GOING TO HAPPEN BEFORE WHEN THERE WAS A SIMILAR TYPE OF PROJECT PROPOSED. AND IS THERE SOMETHING DIFFERENT THAT REQUIRES AN ENVIRONMENTAL IMPACT REPORT OR OTHER ADDITIONAL CHANGES. AND WHEN THIS ADDENDUM WAS DONE, WE ADDED MORE DATA THAT HELPED BRING UP THE STANDARDS TO WHAT'S THE CURRENT PRACTICE OF CEQA. AND WE ADDED SOME CEQA TOPIC AREAS BECAUSE WE WERE LOOKING AT A DOCUMENT THAT WAS A LITTLE BIT OUTDATED. BUT STILL, WE ARE DEALING WITH A MIXED-USE RESIDENTIAL PROJECT IN A DEVELOPED AREA, IN AN URBAN AREA. NOT LIKELY TO HAVE THE SAME TYPE OF IMPACTS THAT YOU MIGHT SEE, OR COMPLETELY DIFFERENT USE IN A DIFFERENT LOCATION.

>> B. BLACKABY: GOT IT. THANK YOU. THANK YOU FOR THE DETAILED ANSWERS TO SOME VERY DETAILED QUESTIONS IN THE VOLUMINOUS

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RECORD. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER HUMBERT, DID YOU HAVE ANOTHER QUESTION?

>> M. HUMBERT: I DO. I DO, I HAVE TWO MORE. THANK YOU, MADAM MAYOR. AT THE RISK OF BEATING A DEAD HORSE, IS IT CORRECT THAT ELEVATED BENZENE LEVEL WAS FOUND IN THE YEAR 2010 BUT 150 FEET AWAY FROM THE SITE? IS THAT CORRECT?

>> THAT'S WHAT I HEARD.

>> M. HUMBERT: OKAY. IS IT ALSO CORRECT THAT SUBSEQUENT ON-SITE STUDIES, I THINK FROM OCTOBER OF 2022 FOUND THAT ON SITE BENZENE WAS BELOW THE LEVEL THE LAB COULD EVEN REPORT, THAT IS TO SAY IT WAS SO SMALL IT WOULDN'T BE CONSIDERED SIGNIFICANT UNDER ANY LIMITS CURRENTLY IN QUESTION. IS THAT CORRECT?

>> YES.

>> M. HUMBERT: OKAY, THANK YOU.

>> MAYOR ISHII: THANK YOU EVERYONE FOR YOUR QUESTIONS AND RESPONSES. I WILL TAKE PUBLIC COMMENT. IF YOU HAVE A PUBLIC COMMENT, PLEASE COME UP. AND CAN WE CONFIRM THE TIME THAT EACH PERSON WILL HAVE TO SPEAK?

>> CITY CLERK: WELL, THE FIRST TEN SPEAKERS WILL HAVE TWO MINUTES AND AFTER THAT, IT WILL GO DOWN TO ONE MINUTE.

>> MAYOR ISHII: OKAY. GO AHEAD, COME UP WHENEVER YOU ARE READY. YOU WILL HAVE TWO MINUTES TO SPEAK. JUST BECAUSE WE HAVE SO MANY

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FOLKS, JUST KNOW I'M A STICKLER FOR TIMING.

>> I WANT TO CHALLENGE THE BENZENE FINDING. I HAVEN'T READ THE STUDY ITSELF BUT IF IT WAS FROM GROUND WATER, WHAT TIME OF YEAR WAS IT TAKING? WE HAD A RAINY YEAR IN 2022, IT COULD HAVE BEEN DILUTION. I THINK YOU ARE OPENING YOURSELF UP TO A LAWSUIT. THE CURRENT PROJECT IS TEN STORIES, 166 UNITS WITH 348 RESIDENTS, THAT'S A SIGNIFICANTLY DIFFERENT PROJECT. AND AN ADDENDUM IS NOT SUFFICIENT. I WALK, I LIVE FOUR BLOCKS FROM THIS PROJECT, MY OFFICE IS DOWN ON ADELINE, I WALK THE STREET ALMOST EVERY DAY TWICE A DAY. THE STREETS ARE VERY NARROW. IT'S SMALL SIDEWALKS. IF YOU PUT A BUS STOP THERE THERE'S GOING TO BE A BENCH, THERE'S GOING TO BE A GARBAGE CAN, IF 34 PEOPLE COME AND GO IN ONE FLEET, THERE'S NOT ENOUGH ROOM ON YOUR TINY LITTLE NARROW SIDEWALK TO ACCOMMODATE PEOPLE WALKING, BECAUSE YOU DON'T HAVE CAR PARKS. YOU ARE EXPECTING PEOPLE TO TAKE PUBLIC TRANSIT OR WALK. YOU WILL HAVE TO PROVIDE SPACE FOR PEOPLE TO DO THIS. YOU HAVE PEOPLE GOING TO BERKELEY BOWL, THEY HAVE THEIR WALKERS, THEIR SHOPPING CARTS, YOU HAVE PARENTS WITH STROLLERS, PEOPLE WITH THEIR DOGS. IT'S NOT ACCOMMODATING. IT'S A SIGNIFICANTLY DIFFERENT PROJECT. IF YOU ARE GOING TO PUT THAT MANY PEOPLE ON THE CORNER, YOU ARE GOING TO HAVE TO HAVE INFRASTRUCTURE. THERE'S NO SETBACKS ON THAT BUILDING. SO HOW ARE YOU GOING TO ACCOMMODATE THE INGRESS AND EGRESS OF THAT MANY PEOPLE ON THAT

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CORNER? I WANT TO REMIND YOU THAT WITH THE NUMBER OF PEOPLE WHO ARE DISABLED WHO LIVE IN MY COMMUNITY, I HAVE ONE ON MY STREET RIGHT NOW. A GOOD FRIEND OF MINE, FRED LUCKY WAS KILLED IN 2003 IN A WHEELCHAIR ON ASHBY AVENUE BECAUSE HE DIDN'T FIT ON THE SIDEWALK, IT WAS EASIER TO GO ON THE STREET, HE WAS HIT BY A CAR AND KILLED. THESE ARE SIGNIFICANT ISSUES.

>> MAYOR ISHII: I'M SORRY. THANK YOU. YOU CAN FINISH YOUR SENTENCE.

>> I THINK SOMEONE WILL CEDE THEIR TIME TO ME.

>> I CEDE MY MINUTES.

>> MAYOR ISHII: THANK YOU.

>> I SENT A LETTER TO MY COUNCILMEMBER, AND I WANT TO SAY THAT I HAVE LIVED IN SOUTH BERKELEY SINCE 1983. AND I'M A WALKER, I HAVE A DOG, I HAVE WALKED ALL OVER THAT NEIGHBORHOOD. ONE OF THE THINGS THAT IS OF GREAT CONCERN TO ME IS WE DON'T HAVE VERY MANY PARKS. WE HAVE THE LOWEST RATIO OF OPEN SPACE TO RESIDENTS. WE HAVE A HIGH DENSITY OF RESIDENTS. WE HAVE THE LOWEST TREE COVER. ALL YOU HAVE TO DO IS COMPARE ASHBY AVENUE TO MARIN AND TELL ME WHAT THE DIFFERENCE IS. OUR TREES ARE SPINDLY BECAUSE OUR SIDEWALKS ARE NARROW, THERE'S NO ROOM FOR THE TREES, THERE'S NO MAINTENANCE. WE HAVE THE HIGHEST RATE OF CHILDHOOD ASTHMA BECAUSE OF THE TRAFFIC IN OUR NEIGHBORHOODS. I HAVE ASKED POINT BLANK IF YOU PUT THESE BURDENS ON MY COMMUNITY BECAUSE HOUSING

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IS A NECESSITY AND I'M WILLING TO DO MY CIVIC DUTY, WHAT BENEFITS ARE WE GETTING? ARE WE GETTING MORE OPEN SPACE? KIDS GETTING TOT LOTS. MORE AIR FILTERS ON OUR STREETS WITH LESS AUTO EMISSIONS SO OUR KIDS DON'T HAVE ASTHMA? IF YOU ARE GOING TO PUT ALL THOSE PEOPLE ON THAT BLOCK, YOU NEED TO WIND THAT SIDEWALK. THE ONLY WAY TO WIDEN THE SIDEWALK YOU HAVE TO CLOSE THE LANE ON SHATTUCK AND CLOSE THE LANE ON ASHBY. THAT'S THE ONLY WAY YOU CAN HAVE ACCOMMODATIONS. YOU CANNOT EXPECT US TO TAKE THIS DENSITY WITHOUT MAKING CHANGES TO THE INFRASTRUCTURE. AND IT'S UNFAIR TO US THAT WE TAKE ALL THE BURDENS AND WE GET NO BENEFITS. SO YOU NEED TO FIGURE OUT HOW WE ARE GOING TO GET SOME MORE OPEN SPACE SO THOSE PEOPLE IN THAT BUILDING CAN HAVE SOME OPEN SPACE. IT'S A SIGNIFICANTLY DIFFERENT PROJECT. FIVE STORIES, 48 UNITS, TO TEN STORIES, 166 UNITS. AN ADDENDUM IS NOT SUFFICIENT. AND IT NEEDS TO BE RETHOUGHT, ESPECIALLY IN TERMS OF THE INFRASTRUCTURE OF THE SIDEWALK. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. NEXT SPEAKER?

>> MY NAME IS ROBERT SEARS, I LIVE DIRECTLY ACROSS FROM THE "LANDING ZONE" WE HAVE BEEN TALKING ABOUT. NEW FACES HERE FOR ME. MOSTLY, I THINK, EVERYBODY. WE HAVE BEEN TALKING ABOUT IT EVERY SINGLE PUBLIC MEETING. ALL THESE PEOPLE COMING INTO THIS PLACE. COME TO THE CORNER. COME TO SHATTUCK AND ASHBY ON A FRIDAY AFTERNOON AND YOU FIND ONE, ONE TRAFFIC SAFETY ENGINEER.

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IF WE WERE A STRUCTURAL ENGINEER, WE WOULD WANT TO SEE A STAMP. HAVE THE APPLICANTS, ONE PERSON SAY IT'S SAFE. YOU CAN'T OPEN A PASSENGER DOOR. SAFELY. EXCUSE ME, A DRIVERS DOOR, EXCUSE ME. BUT THE POINT IS IT'S A BUSY CORNER. THERE'S A LOT OF ACCIDENTS. I'VE BEEN THERE A LONG TIME, A LONG TIME. A LONG TIME. IT'S NOISY. PEOPLE ARE NERVOUS. OKAY. WHY DOESN'T THE APPLICANT TAKE SOME CONCERN FOR THESE PEOPLE WHO ARE GOING TO LIVE THERE? I ASK THAT QUESTION. I THINK IT'S JUST MONEY, BUT THAT'S JUST ME. I'M A UNION CARPENTER. I SEE MY UNION BROTHERS ARE HERE. I'M SAD THAT SO MUCH WORK HAS GONE ON THAT'S BEEN NON-UNION. I WORKED IN PUBLIC SAFETY, RETIRED AS A FOREMAN, ONE OF MY RESPONSIBILITIES WAS PEDESTRIAN SAFETY. WHERE IS THE CRANE GOING TO BE? WHO ARE THEY GOING TO LIFT? WHERE IS THE CONTRACTOR? WE HAD GREAT UNION COMPANY DID A FANTASTIC JOB, A NONPROFIT. WHERE WAS THEIR CRANE? ASK WHERE THE CRANE IS GOING TO BE. WHERE THE TRUCK IS GOING TO BE. FOR PUBLIC SAFETY. DRIVE DOWN ASHBY TO SAN PABLO, THE BUILDING ON THE CORNER, THERE WERE CONES IN THE MIDDLE OF THE STREET. THEY ARE NOT THERE NOW. THOSE CONES ARE NOT THERE NOW. YOU ARE RESPONSIBLE --

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> YOU ARE RESPONSIBLE.

>> GOOD EVENING, MAYOR ISHII, COUNCILMEMBERS, MY NAME IS DAVE AUERBACH, NEIGHBOR OF 3000 SHATTUCK, I LIVE ABOUT A BLOCK AWAY.

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SB 330, THE HOUSING ACCOUNTABILITY ACT, THE LAW THAT ENABLES 3000 SHATTUCK TO BE SO TALL AND SO DENSE AND ENABLES THIS APPLICANT AND THEIR OPINION TO DEMAND WE STAND DOWN FROM SAFETY CONCERNS. SB 330 WAS PASSED IN 2019 AND TOOK EFFECT JANUARY 1, 2020. THAT WAS OVER FOUR YEARS AGO. MY UNDERSTANDING IS THAT IN THOSE FOUR YEARS THERE HAVE BEEN NO UPDATES TO PROVIDE ADDITIONAL OBJECTIVE DESIGN STANDARDS IN THE ZONING CODE. THAT'S APPLICABLE TO THIS NEIGHBORHOOD AND TO THIS PROJECT. IT IS THIS COUNCIL'S FAILURE TO ACT, IN FOUR LONG YEARS, ON OBJECTIVE STANDARDS THAT ENABLES THIS DEVELOPER IN THEIR OPINION TO BULLDOZE OVER THIS NEIGHBORHOOD'S SAFETY AND ENVIRONMENTAL CONCERNS. CEQA IS THE LAST STAND OF PROTECTING OUR SAFETY AND OUR ENVIRONMENT. THE CITY COUNCIL WOULD DO WELL TO CONSIDER THE STRONG AND WELL-REASONED ARGUMENTS, EXCUSE ME. THE STRONG AND WELL-REASONED OBJECTIONS OF THIS BUILDING'S NEIGHBORS AND LAWYERS OF SEVERAL INTERESTED PARTIES. THE COUNCIL FAILED TO PROVIDE ANY OTHER MEANS OF ENSURING THE SAFETY AND THE SAFE ENVIRONMENT OF OUR NEIGHBORHOOD. I ASK THIS COUNCIL TO STOP HIDING BEHIND SB 330. YOU CAN'T STOP 3000 SHATTUCK WITH ZONING UPDATES. THAT'S AGAINST SB 330. YOU CAN STOP THE NEXT ONE. PLEASE, FIND THE POLITICAL COURAGE TO FIND THE MIDDLE GROUND AND ENABLES THE CREATION OF NEEDED HOUSING, WHILE PREVENTING DEVELOPERS FROM PAVING THIS ENTIRE NEIGHBORHOOD WITH TEN STORY

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BUILDINGS THAT RISK THE SAFETY AND HEALTH OF THIS NEIGHBORHOOD'S CURRENT AND FUTURE RESIDENTS. PLEASE UPHOLD THIS APPEAL AND ADDRESS OBJECTIVE STANDARDS FOR THE FUTURE.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> GOOD EVENING, MAYOR, AND COUNCIL. MY NAME IS PAUL DILLINGHAM. MY PARENTS OPENED UP AN ARCHITECTURE PRACTICE ON NEWBURY STREET IN 1986. I NOW RUN THAT PRACTICE AND MY FATHER LIVES ON NEWBURY STREET.

>> MAYOR ISHII: YOU CAN PULL IT UP.

>> THANK YOU. WE HAVE HAD THE GREAT FORTUNE TO WORK WITH THE SCHOOL DISTRICT AND CITY ON MANY PROJECTS INCLUDING THE TOM BATES SPORTS CENTER, MY FATHER'S PROJECT, ALSO GROVE PARK IN OUR NEIGHBORHOOD. 3000 SHATTUCK HAS STRUCK A NERVE IN THE NEIGHBORHOOD OTHER PROJECTS HAVE NOT, AND I WANT TO ASK WHY. AND WHY YOU THINK OF IT OFFERING BONUS POINTS TO ANYONE WHO CAN NAME THE NEAREST TOWER TO THIS PROJECT SITE THAT IS 114 FEET HIGH. SO WE HAVE COME TONIGHT TO ASK COUNCIL, AND ITS PLANNING DEPARTMENT TO PROVIDE US THE TOOLS TO MAKE THE NEXT PROJECT BETTER. WE ARE OVERWHELMINGLY SUPPORTIVE OF HOUSING PROJECTS SUCH AS THE MODEL SHAREK. GOOD PROJECTS GENERALLY DON'T NEED TO COME BEFORE COUNCIL. AS A CITY WE FAILED TO MAKE A GOOD PROJECT, MUCH LESS A GREAT PROJECT. IF WE ARE GOING TO BUILD A 114 FOOT TOWER, ONES WE SHOULD BE PROUD OF AND PEOPLE SHOULD BE CELEBRATING. I

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BROUGHT A STUDY HERE. AND I HAVE SMALL COPIES THAT STAFF OR COUNCIL CAN VIEW. SHOWING OUR NEIGHBORHOOD AND SHOWS THE SCALE OF WHAT IS BEING PROPOSED IN OUR NEIGHBORHOOD. AS YOU CAN SEE, WE CAN BUILD PROJECT THAT'S ARE LESS THAN 10 STORIES, OR LESS THAN 8 STORIES. THEY ARE GOING UP RIGHT NOW.

>> MAYOR ISHII: THANK YOU -- YOU ARE GIVING HIM YOUR TWO MINUTES?

>> THE CURRENT SYSTEM GUARANTIES ANOTHER UNDER COOKED PROJECT WILL COME BEFORE COUNCIL SOON. THE NEIGHBORS HAVE THE LOCAL KNOWLEDGE AND THE INVESTMENT TO MAKE FOR GOOD PROJECTS. SO I'M ASKING WHAT IS THE BEST WAY TO USE THOSE ENERGIES AND TIME WE ARE PUTTING INTO THIS TO MAKE GOOD PROJECTS? I'M PUTTING THAT QUESTION ONTO YOU. WE TRIED TO USE THE TOOLS WE HAVE. SO IF THERE'S A BETTER FORUM, OR A BETTER TOOL, PLEASE ADVOCATE FOR IT. IF THERE IS NO BETTER FORUM THAN TONIGHT, THEN PLEASE HEAR OUR -- GIVE CONSIDERATION TO THE POOR OUTCOMES OF THIS PROJECT, OF THIS PLANNING PROCESS. FOR THIS PROJECT AND FOR THE NEXT PROJECT. AND STEPPING BACK FROM THIS SITE, THE NEIGHBORS ARE ALSO ASKING COUNCIL TO ACKNOWLEDGE OUR CONCERNS AND STATE A POSITION THAT THIS PROJECT SHOULDN'T SET A PRECEDENT OF SETTING A LOW BAR FOR UP-AND-COMING PROJECTS. LET'S SET A HIGH BAR. AND LASTLY, CURRENT DEVELOPMENT IS CONCENTRATED IN SOME NEIGHBORHOODS, THE IMPACTS ARE CONCENTRATED IN SOME

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NEIGHBORHOODS. IF COUNCIL APPROVES THIS PROJECT OR THE NEXT PROJECT, PLEASE PROVIDE MORE RESOURCES TO OUR NEIGHBORHOOD FOR TRAFFIC IMPROVEMENTS, CRIME, SAFETY, NOISE AND OPEN SPACE, AS MY COLLEAGUE MENTIONED. AND PLANNING RESOURCES, SUCH AS PUBLIC MEETINGS TO ADDRESS OUR CONCERNS. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> THANK YOU. TODD DARLING IS ONLINE AND CEDED ME HIS MINUTES, IF I NEED IT.

>> MAYOR ISHII: GO AHEAD.

>> OKAY, THE STAFF REPORT STATES THAT THIS PROJECT IS GOING TO HOUSE OVER 300 RESIDENTS IN 166 UNITS, I THINK IT WAS. THE ORIGINAL PROJECT WAS 48 UNITS, WHICH WAS FAR LESS THAN 300 RESIDENTS. THAT IS ALREADY REASON TO REALLY QUESTION WHETHER THE IMPACTS ARE GOING TO BE MUCH LARGER AND WHETHER IT NEEDS TO BE LOOKED AT SOME MORE. I WANT TO TALK ABOUT THE TRAFFIC PROBLEMS ON SHATTUCK. 300 PEOPLE WILL CREATE TRASH, AND THE TRASH ROOM EMPTIES, THE DESIGN OF THIS PROJECT HAS A TRASH ROOM CLOSEST TO THE SOUTH SIDE OF THE BUILDING. WHICH MEANS THAT THE TRASH DUMPSTERS ARE GOING TO COME OUT ONTO SHATTUCK AND THERE IS NO LOADING ZONE. SHATTUCK IS ONE LANE, THERE'S A BUS STOP THAT'S GOING TO BE THERE. WHERE IS THE TRASH GOING TO GET PICKED UP FOR 300 RESIDENTS EVERY WEEK? AND HOW IS THAT NOT GOING TO BACK UP TRAFFIC ON SHATTUCK? WHEN YOU HAVE OTHER BUILDINGS THAT ARE

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BEING PROPOSED VERY CLOSE BY, THE CUMULATIVE IMPACT OF ALL OF THOSE PEOPLE AND ALL OF THEIR TRASH IS GOING TO HAVE AN EFFECT ON THE TRAFFIC. THE OTHER THING IS WITH NO DRIVEWAY OR PULL-OUT, WHERE ARE THESE PEOPLE GOING TO GET THEIR DELIVERIES? THERE'S NO PARKING. AND THE E.I.R. FALSELY ASSUMES THAT WITH NO PARKING IN THE BUILDING, IT MEANS NO CARS WILL BE USED. BUT EVERYONE KNOWS THAT THESE PEOPLE WILL GET DELIVERY BECAUSE THEY HAVE NO CAR TO GO PICK UP SUPPLIES. SO THEY WILL BE USING RIDE SHARE, THEY WILL BE USING UBER EATS, THEY WILL BE USING RIDE SHARES TO GET TO WHERE THEY ARE GOING. WHERE IS THE PICKUP? THERE IS NO LOADING ZONE ON ASHBY, IT'S ALREADY BEEN SAID BY STAFF, THERE'S NO LOADING ZONE ON SHATTUCK.

>> MAYOR ISHII: DOES THE PERSON ONLINE GIVE HER --

>> [OFF MIC]

>> ONE MORE MINUTE AT LEAST.

>> MAYOR ISHII: TODD DARLING IS --

>> [OFF MIC]

>> GIVE ME TODD'S. THANK YOU. SO HAVING THE E.I.R. SAY THERE IS NO IMPACT FROM AUTOMOBILES DOESN'T TAKE THE CURRENT REALITY IN MIND. THE SECOND THING IS THE BIKE ROOM, IT EMPTIES NEXT TO THE FRONT LOBBY, THERE ARE 62 BIKE PARKING SPACES IN THE BUILDING, EVERY DAY 62 BIKES WILL COME OUT FROM THE FRONT DOOR OF THIS BUILDING ONTO SHATTUCK AVENUE ON THAT NARROW SIDEWALK WE HAVE

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BEEN TALKING ABOUT. THERE IS NO BIKE LANE ON SHATTUCK. THERE IS NO BIKE LANE ON ASHBY. ASHBY IS STATE ROUTE 13. YOU WILL HAVE 62 BIKES COMING OUT ON STATE ROUTE 13 AND YOU DON'T THINK THAT IS A SAFETY HAZARD WAITING TO HAPPEN. THE NEAREST BIKE LANE IS ON RUSSELL AND ON MILVIA. TO GET THERE YOU HAVE TO CROSS THIS INTERSECTION TO GET TO WHERE YOU ARE GOING. THAT IS A SAFETY HAZARD WAITING TO HAPPEN AND THE CITY WILL HAVE TO BE FACING THAT SORT OF ISSUE. MY FINAL POINT, I HAVE TO BRING UP THE AFFORDABILITY AGAIN. WE TALK ABOUT THIS EVERY BUILDING THAT COMES UP IN SOUTH BERKELEY. EVEN IF YOU COUNT IT AS TWO UNITS THAT ARE NOT BEING BUILT IN THIS BUILDING, THE FEE THAT THEY ARE GOING TO BE PAYING IS GOING TO BE FAR LESS THAN WHAT CAN BUILD EVEN HALF A UNIT SOMEWHERE ELSE. WE HAVE ASHBY B.A.R.T. COMING UP. WE NEED ALL THE MONEY WE CAN GET. YOU REALLY NEED TO INCREASE THE AFFORDABLE HOUSING MITIGATION FEE. THAT'S ALL, THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS. NEXT SPEAKER? AND YOU STILL HAVE YOUR FULL TWO MINUTES SINCE SHE TOOK IT FROM THE PERSON ONLINE.

>> YES, THANK YOU. I'M TONY DRUMMOND, I AM A SCIENTIST BY TRAINING. AND I ACTUALLY, PART OF MY (?) IS NEXT TO THIS PROPOSED PROJECT. ONE OF THE THINGS MY NEIGHBORS HAVE BEEN ADDRESSING ARE SAFETY AND ENVIRONMENTAL CONCERNS. OBVIOUSLY,

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THAT'S ONE OF THE MAIN ISSUES FOR ME. ON THE ISSUE OF SAFETY, YOU KNOW, THE TRAFFIC JUST IN THAT AREA HAS INCREASED. AND I DO WALK AS ONE OF THE NEIGHBORS MENTIONED EARLIER. AND I WAS THE VICTIM ALSO OF A HIT AND RUN. THAT THE BERKELEY POLICE HAS NOT BEEN ABLE TO SOLVE DESPITE THERE WERE CAMERAS INVOLVED IN THIS ACCIDENT. SO IT'S NOT JUST NARRATIVE, THIS IS SUBSTANTIAL. THIS IS RESULT OF WHAT HAS HAPPENED IN JUST THE LAST THREE YEARS IN OUR AREA. THAT STRIP OF SHATTUCK COMING IN AND OUT OF ASHBY, YOU KNOW, ALL THE WAY TOWARDS ALCATRAZ, THE TRAFFIC IS BACKED UP. I HEARD VERY NICE IDEAS. WE ALL WANT TO MOVE TO THE 21ST CENTURY WITH POLICIES. BUT ABOUT INCREASING HOUSING, IT'S ALSO ABOUT THE SAFETY OF THE PEOPLE THAT LIVE THERE. AND WE LIVE THERE. AND WE HAVE ALL BEEN IN DANGER. IT'S NOT PEOPLE WALKING OR TAKING B.A.R.T. YOU AREN'T PUTTING PARKING BUT PEOPLE ARE TAKING UBER, SO THE NUMBER OF LYFT AND UBERS IN THE AREA HAS INCREASED TOO. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENTS. NEXT SPEAKER. MARK, SORRY? MR. CITY CLERK, HOW MANY PEOPLE HAVE WE HAD SO FAR?

>> CITY CLERK: TEN.

>> MAYOR ISHII: JUST SO YOU KNOW. THAT MEANS THE NEXT COUPLE PEOPLE ONLY HAVE ONE MINUTE, IS THAT CORRECT?

>> CITY CLERK: YES. [OFF MIC]

>> MAYOR ISHII: RIGHT. OF COURSE, THEY CAN HAVE TIME YIELDED.

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BUT I WANT TO MAKE SURE FOLKS KNOW. GO AHEAD.

>> MY NAME IS JOSH REYES, BERKELEY NATIVE, BORN AND RAISED IN THE CITY, APPRENTICE ELECTRICIAN FOR THE IBEW, LOCAL 595. I JOINED THE UNION BECAUSE OF THE BENEFITS AND THE PAY, YOU KNOW. BUT BEING MORE INVOLVED IN IT NOW, I REALIZE IT'S MORE THAN JUST THAT. IT'S MAKING SURE THERE'S FAIR WAGES IN THE CONSTRUCTION WORKFORCE BECAUSE A LOT OF PEOPLE DON'T RESPECT THAT. SO KNOWING THAT THIS DEVELOPER IS COMING INTO TOWN AND GOING TO HIRE OUT-OF-STATE CONTRACTORS IS PRETTY BAD NOT JUST FOR CONSTRUCTION WORKERS IN GENERAL BUT FOR ME TRYING TO LEARN A SKILL AND EVENTUALLY BECOME AN ELECTRICIAN, START A BUSINESS, START A FAMILY. SO WHEN WE HAVE THE CONTRACTORS COMING IN, BRINGING DOWN THE WAGES IT WILL MAKE IT HARDER FOR US TO CONTINUE IN THIS AND FIND DIFFERENT MEANS OF INCOME. THAT'S PRETTY MUCH ALL I HAVE TO SAY ABOUT THE TOPIC. I WILL YIELD MY TIME TO E.J.

>> MAYOR ISHII: THANK YOU. E.J., YOU WILL HAVE THREE MINUTES THEN. THE REMAINDER -- TWO, SORRY, YOU ARE THE 11TH.

>> I WILL TAKE THREE IF YOU GIVE ME THREE.

>> MAYOR ISHII: MAYBE SOMEBODY ELSE WILL GIVE YOU A MINUTE.

>> I'M HERE ON BEHALF OF EAST BAY RESIDENTS FOR RESPONSE NL DEVELOPMENT. I SPEAK AS AN ADVOCATE FOR WORKFORCE PAID LIVING WAGE AND BENEFITS FOR YOUTH AND AT-RISK WORKERS. I'VE BEEN ENTRUSTED BY YOUR RESIDENTS AND MY MEMBERS TO ENCOURAGE POLICIES

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AND PRACTICE THAT'S RESULT IN A HIGHER QUALITY OF LIFE IN COMMUNITIES OUR MEMBERS LIVE IN. OUR GROUP FILED A CEQA APPEAL AT 3000 SHATTUCK AND WE ARE URGING THE CITY TO PREPARE A FULL E.I.R. SINCE THIS PROJECT'S LACK OF APPROPRIATE MITIGATION ENDANGERS OUR MEMBERS, YOUR RESIDENTS AS BEING PART OF THE CONSTRUCTION WORKFORCE AND MEMBERS OF YOUR COMMUNITY. ALREADY DUE TO OUR COMMENTS THE CITY HAS RESOLVED AN AIR QUALITY CONCERN BY CORRECTING ERRORS. I WANT TO REFERENCE THE 2022 REPORT, ON PAGE 64 OF ADDENDUM B IT STATES IT REMAINS CONTAMINATED. BENZENE LEVELS ARE STILL MORE THAN 12 TIMES THE SAFE LIMIT FOR RESIDENTIAL USE. I'M CONFUSED ABOUT THE FACT WHEN PAGE 64 OF ADDENDUM B LITERALLY SHOWS IT'S NOT SAFE FOR MY WORKERS TO PUT SHOVELS IN THE GROUND. WORKING ON SITES NOT FULLY REMEDIATED IS A PRINCIPAL REASON CONSTRUCTION WORKERS HAVE HIGHER RATE OF CANCER THAN ANY OTHER PROFESSION. THE IMPACTS FROM THESE OTHER PROJECTS WEREN'T ANALYZED IN THE ORIGINAL OR REVISED DOCUMENT AND TOGETHER THEY WILL CREATE SERIOUS CUMULATIVE PROJECTS. ON TOP OF THAT THE PROJECT FALLS SHORT OF 20%. PAYING AN IN-LIEU FEE ISN'T ENOUGH WHEN WE ARE FACING A HOUSING CRISIS IN THE BAY AREA. WE HAVE BEEN ONE OF THE CITY'S BIGGEST ADVOCATES FOR AFFORDABLE HOUSING BUT IT HAS TO BE SAFE, RESPONSIBLE AND ALIGN WITH THE CITY'S LONG-TERM PLAN GOALS. UPHOLD THE APPEAL AND REQUIRE A FULL E.I.R. FOR THIS PROJECT. THANK YOU.

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>> MAYOR ISHII: THANK YOU.

>> I YIELD MY TIME.

>> SOPHIA?

>> MAYOR ISHII: OKAY, SO THREE MINUTES.

>> MY NAME IS JOHN DALRYMPLE. I THINK I HAVE LIVED IN THE 30 YEARS I'VE LIVED IN BERKELEY IN FOUR DISTRICTS. IT WAS MENTIONED ABOUT EAST BAY RESIDENTS FOR RESPONSIBLE DEVELOPMENT. WHAT WASN'T SAID PROBABLY ONE OF THE PREMIERE PRO-HOUSING. WE HAD A FEW DOZEN OF THE MEMBERS OF THE REPRESENTATIVE UNIONS OUT WALKING IN SUPPORT OF IT. THEY VOTED, VARIOUS UNIONS TO DONATE $25,000 TO DEFEND THE DOWNTOWN. THIS WAS 15 YEARS AGO. WE HAVE BEEN ACTIVE IN ALMOST EVERY COMMUNITY, PROBABLY ABOUT 25 DIFFERENT CITIES SUPPORTING SPECIFIC PLANS THAT ENCOURAGE SUSTAINABILITY AND EQUITABLE OUTCOMES. PART OF THAT SUSTAINABILITY IS WHY WE CONNECTED TO FILE THESE COMMENTS. IT IS TRUE, CONSTRUCTION WORKERS GET CANCER MORE THAN OTHERS. WE WOULD NOT BACK DOWN FROM LEGITIMATE -- I WANT TO READ YOU SOMETHING. THIS WAS SENT TO US BY THE DEVELOPER TODAY. IF YOU OR ANY APPLICANT -- APPELLANT CONTINUE TO ACTIVELY OPPOSE THE PROJECT PARTICULARLY THROUGH CEQA PROJECT WE WILL BE FORCED TO IMMEDIATELY TERMINATE ALL ENGAGEMENT WITH UNION SUBCONTRACTORS INVOLVED IN THE PRE-CONSTRUCTION PROCESS. WE WERE THREATENED TODAY. IF WE CAME AND STOOD BY OUR PRINCIPLES AND DEFENDED THE

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RIGHT OF A CONSTRUCTION WORKER TO WORK IN AN ENVIRONMENT THAT WILL NOT CAUSE THEM CANCER, HE WAS GOING TO DISENGAGE WITH ANYBODY, ALL UNION SUBCONTRACTORS. I WILL HAVE ATTORNEYS LOOK AT THIS TO SEE IF IT'S A THREAT OF A LEGAL THRESHOLD. REST ASSURED BY VOTING TO SUPPORT US, ALL THAT DOES IS FOR SEVERAL MONTHS, WITHIN SIX MONTHS TYPICALLY, THIS WILL BE BACK TO YOU. FOR APPROVAL. WE AREN'T GOING TO APPEAL IT. BECAUSE THERE'S BEEN THE REVIEW THAT'S BEEN DONE THAT'S NECESSARY. ALL THIS IS DOING IS ENSURING THAT WHAT THE LAW IS CORRECTLY APPLIED. THAT'S ALL WE ARE ASKING. IT'S NOT A VOTE AGAINST HOUSING. RIGHT. IT'S A VOTE FOR DOING IT RIGHT. WE MADE A DECISION TO COME TONIGHT KNOWING THAT SOME WORKERS WERE GOING TO LOSE THEIR JOBS ON THIS PROJECT. BECAUSE HE TOLD US EXPLICITLY IN WRITING. IT'S DESPICABLE THEY EXPECT US TO BACK DOWN UNDER THREATS OF TAKING WORK AWAY FROM PEOPLE WHO REALLY NEED IT. BUT WE WANT TO STAND BY OUR PRINCIPLES, WE ASK YOU TO STAND WITH US. THANK YOU.

>> MAYOR ISHII: THANK YOU. ARE THERE OTHER COMMENTS? ONLINE?

>> CITY CLERK: YES, THERE'S TWO HANDS RAISED. FIRST IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> I KNOW IT PAINS YOU TO SAY THAT. YES, CHERYL DAVILA, ACTUALLY FORMER COUNCILMEMBER CHERYL DAVILA. IT'S INTERESTING HOW THIS IS PLAYING OUT. BUT I THINK YOU NEED TO LISTEN TO THE PEOPLE THAT ARE LOOKING OUT FOR THE SAFETY AND WELL-BEING OF BERKELEYANS AND

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THE COMMUNITY AT LARGE. AND IT'S INTERESTING BECAUSE WHEN I WAS LISTENING TO THE PRESENTATION, YOU ALL DIDN'T REALLY SOUND ALL THAT CONVINCING. SOUNDING MORE SCARED THAN ANYTHING TO, YOU DIDN'T SOUND LIKE YOU WERE TELLING THE TRUTH, WHICH IS INTERESTING. AND THAT'S JUST MY OPINION. BUT IT DIDN'T SOUND LIKE YOU MEANT WHAT YOU WERE SAYING. OR YOU BELIEVED IT, ACTUALLY. BUT, YOU KNOW, IT'S A GAS STATION, COME ON. A BUILDING THAT IS 66 UNITS --

>> MAYOR ISHII: THANKS FOR YOUR COMMENTS. YOUR TIME IS UP. IS THERE ANOTHER COMMENT?

>> CITY CLERK: YES, THE NEXT COMMENTER IS TONI.

>> GOOD EVENING, COUNCILMEMBERS STAFF AND FRIENDS AND NEIGHBORS. I URGE YOU TO DENY, DELAY OR WHATEVER YOU CAN DO TO ENSURE THAT THE SAFETY OF BERKELEY RESIDENTS AND VISITORS WILL NOT BE SACRIFICED BY A BUILDING THAT IS FAR TOO BIG FOR THAT INTERSECTION. AND I WOULD LIKE TO -- I THINK JANICE CHING'S COMMENTS WERE VERY, VERY GOOD. I WOULD LIKE TO TALK JUST A LITTLE BIT IN THE LITTLE TIME I HAVE ABOUT THE HISTORY OF ASHBY AVENUE. ASHBY AVENUE WAS ONCE A STREET, ESSENTIAL STREET IN THE ORIGINAL BLACK COMMUNITY SETTLEMENT IN THE AREA OF KING AND ASHBY. AND THEN IN 1935, IT WAS MADE INTO A STATE ROUTE AND THEN LATER A HIGHWAY. AND IT BIFURCATED THE ORIGINAL BLACK COMMUNITY IN BERKELEY. IT'S A VERY DANGEROUS STREET BECAUSE IT BECOMES

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CONSTRICTED AND WIDENED.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT, TONI. YOUR TIME IS UP.

>> GOT IT. BYE.

>> MAYOR ISHII: CAROL IS GIVING YOU A MINUTE, ARE YOU STILL THERE?

>> I CERTAINLY AM.

>> MAYOR ISHII: GO AHEAD AND FINISH YOUR THOUGHT.

>> I DIDN'T MAKE A LIST OF THE VARIOUS DIFFERENT DEATHS BY AUTO ACCIDENTS THAT HAPPENED ALONG ASHBY AVENUE. BUT I REMEMBER QUITE A FEW OF THEM. THE REASON ASHBY AVENUE IS SO DANGEROUS, IT'S NOT UNIFORMLY THE SAME WIDTH. AND IN FACT, IF YOU GO ALL THE WAY DOWN TO THE FREEWAY, THAT UNDERPASS UNDER THE RAILROAD TRACK IS ANOTHER CONSTRICTION. CALTRANS WANTS TO PUT IN A ROUNDABOUT. BUT THEY CAN'T DO ANYTHING ABOUT THE RAILROAD TRACKS. SO ASHBY AVENUE FROM THE BEGINNING TO THE END IS A REAL PROBLEM FOR BERKELEY. AND YOU ARE GOING TO MAKE THIS INTERSECTION VERY DANGEROUS FOR EVERYBODY. I TREMBLE WHEN I THINK OF A TEN STORY BUILDING WITH THAT MANY PEOPLE, IT'S THE MOST CONSTRICTED INTERSECTION ALONG ASHBY AVENUE. PLEASE CONSIDER.

>> MAYOR ISHII: THANK YOU. THANKS, TONI. THANKS FOR YOUR COMMENT. ARE THERE ANY OTHER PUBLIC COMMENTS?

>> CITY CLERK: WE HAVE ONE MORE COMMENTER, KELLY HAMMARGREN.

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>> IT SEEMS LIKE SUCH A SURPRISE THAT WE HAVEN'T SOLVED THE PROBLEMS WITH THIS PROJECT FROM WHEN IT FIRST APPEARED. AND ONE OF THOSE PROBLEMS WAS THE LOADING ZONE. AND JUST IN THAT INTERSECTION, COMING UP ASHBY AND TURNING RIGHT, I THINK EVERYONE HERE KNOWS WHAT IT'S LIKE TO HAVE THE AMAZON PRIME AND THE UPS TRUCKS EVERYWHERE STOPPING TO LOAD AND UNLOAD GOODS. AND THIS IS A PROBLEM THAT IS FREQUENTLY DISCUSSED AT THE DESIGN REVIEW COMMITTEE IS HAVING ADEQUATE LOADING AND UNLOADING ZONES AND WE SEEM TO KEEP MAKING THE SAME PROBLEMS OVER AND OVER AGAIN WITH THESE LARGE PROJECTS. SO I WOULD SUGGEST THAT WE, AT THE VERY LEAST, SOLVE THAT PROBLEM.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT, KELLY. I'M SORRY, YOUR TIME IS UP.

>> THANK YOU.

>> MAYOR ISHII: THANK YOU. ANY OTHER PUBLIC COMMENTS?

>> CITY CLERK: THAT'S ALL.

>> MAYOR ISHII: OKAY, IS THERE A MOTION TO CLOSE THE PUBLIC HEARING?

>> SO MOVED.

>> SECOND.

>> MAYOR ISHII: OKAY. SHALL WE DO THAT UNANIMOUSLY? WE ARE CLOSING THE PUBLIC HEARING UNANIMOUSLY THEN. THANK YOU. MOVING ONTO COUNCIL DELIBERATIONS WITH COUNCILMEMBER TAPLIN.

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>> T. TAPLIN: THANK YOU, MADAM MAYOR AND EVERYONE WHO SPOKE AND STAFF. I WILL PREFACE BY SAYING COUNCIL IS UNITED IN OUR COMMITMENT TO ROAD SAFETY ACROSS THE CITY, INCLUDING SOUTH BERKELEY. THIS IS A PRO-HOUSING COUNCIL. IF I MAY SAY SO, THE MAYOR, VICE MAYOR AND MYSELF ARE COMMITTED TO DEEPENING HOUSING INCLUDING GREEN SPACE. I DO SUPPORT DESIGN STANDARDS AND WOULD SUPPORT COUNCIL AND STAFF MOVING FORWARD WITH THAT AS A PROJECT. THAT'S NOT ON THE AGENDA TONIGHT. I DON'T SUPPORT THAT BECAUSE I THINK IT WOULD BLOCK MULTI-FAMILY CONSTRUCTION, I SUPPORT IT BECAUSE I THINK IT WOULD ALLOW THE COMMUNITY AND NEIGHBORS TO DECIDE HOW THEY WANT THEIR NEIGHBORHOODS FO LOOK. I'VE SEEN THAT TAKE PLACE IN MY DISTRICT AND OTHER DISTRICTS. I'VE SEEN DEVELOPERS WORK WITH NEIGHBORS, WITH LABOR STAKEHOLDERS TO REALLY CREATE BEAUTIFUL, SATISFYING PROJECTS THAT ARE RESPONSIVE AND SENSITIVE WITHOUT THREATS, WITHOUT STRONG ARMING AND WITHOUT DISHONESTY. AND I'M A LITTLE SURPRISED THAT THE FIVE MEETINGS WOULDN'T HAVE BEEN EXHAUSTED TO MITIGATE OR RESOLVE SOME OF THESE OUTSTANDING DISAGREEMENTS BETWEEN THE PARTIES HERE. AND I DON'T THINK STATE LAW, I DON'T THINK THE INTENT OF STATE LAW IS TO ALLOW CITIES TO RUN ROUGHSHOD OVER ENVIRONMENTAL CONCERNS OF COMMUNITIES OR VERY LEGITIMATE WORK SITE SAFETY CONCERNS OF CONSTRUCTION WORKERS OR OTHER WORKERS. THANK YOU.

>> MAYOR ISHII: THANK YOU. OTHER COUNCILMEMBERS OR VICE MAYOR?

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>> B. BARTLETT: THANK YOU. AND THANK YOU FOR ALL THE COMMENTS. I JUST WANT TO BACK UP AND I WILL SUPPORT AND JOIN MYSELF TO THE COMMENTS OF MY COLLEAGUE, COUNCILMEMBER TAPLIN. YES, OF COURSE, WE HAVE TAKEN UNPRECEDENTED ACTIONS ON STREET SAFETY. AND THERE ARE MORE COMING. AND WE ARE PRO-HOUSING. WE SHIFTED THE CITY INTO PRODUCING HOUSING AND AS A RESULT DISPLACEMENT IS DOWN, RENTS ARE DOWN AT LEAST 25%. AND SO, WE ARE DOING OUR DUTY HERE. BUT I WANT TO REMIND ALL OF US HERE WE HAVE A HIGHER DUTY TO MAINTAIN THE SAFETY OF PEOPLE. AND HERE I'M LOOKING AT THE DOCUMENTS, PAGE 64 OF 72, THE BENZENE LEVELS. I WISH I COULD SHOW MY SCREEN HERE, BUT. YOU KNOW, THIS REPORT SAYS, THERE'S A NUMBER HERE. IF THERE IS ANY INDICATION OF BENZENE IN THE SOIL THERE AND ADJACENT TO IT, I MEAN THE GAS STATION IS OLD. IT'S AN INDEPENDENT GAS STATION. SO IT'S NOT LIKE YOUR SHELL STRUCTURE, IT'S A MOM-AND-POP GAS STATION, NO OFFENSE IF YOU ARE LISTENING, I LOVE YOU, BUT LET'S BE HONEST HERE, IT'S DEFINITELY NOT GRADE A AND HAS NEVER BEEN. AND YOU KNOW, THE TANKS ARE MASSIVE. AND THE GRADING, I'M SURE, I'VE BEEN INVOLVED IN CIRCLA CASES BEFORE, SUPER FUND LAW, USUALLY AROUND DRY-CLEANERS, ALSO VERY DANGEROUS TOXIC PLACES. SO THIS GAS STATION IS ACROSS THE STREET FROM A FAMILY WHO LIVES THERE WITH CHILDREN. I JUST DON'T SEE IT WITHIN ME TO RISK THEIR LIVES ON SOME DISPUTED DATA. WE COULD POSSIBLY GET THAT REMEDIATED AND HAVE IT MADE SURE TO BE MADE

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SAFE. AGAIN, WHILE I APPRECIATE THE APPLICANT AND THEIR EFFORTS TO BRING HOUSING TO SOUTH BERKELEY AND WHILE I WON'T ENJOIN THEIR COMMUNITY OUTREACH EFFORTS, I WILL HOWEVER, STATE THAT WITHOUT EQUIVOCATION THAT THE RISK TO CHILDREN LIVING THERE IN THE NEW BUILDING, TO WORKERS DIGGING IT. TO NEIGHBORS, IS MORE RISK THAT I DON'T WANT TO TAKE. THAT'S MY THOUGHTS RIGHT NOW.

>> MAYOR ISHII: THANK YOU, VICE MAYOR. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: YES, THANK YOU, MADAM MAYOR. LET ME GET MY MIC CLOSER TO ME. I WANT TO THANK STAFF FOR THEIR WORK ON THIS LONG-RUNNING AND COMPLICATED PROJECT. AND ESPECIALLY THANK DIRECTOR KLEIN AS WELL AS ALLISON RIEMER AND ANNE HERSCH. I BELIEVE THAT LYON NAFAL AND SHANNON ALLEN WERE ON THIS BUT NO LONGER WITH THE CITY AND THIS HAS BEEN A LONG TIME IN THE PROCESS, SO I THANK THEM AS WELL. I WANT TO THANK THE APPLICANT AND THE APPELLANTS FOR THE TIME AND EFFORT THEY PUT INTO PLANNING AND ANALYZING THIS PROJECT. ACCOUNTABILITY IS IMPORTANT IN GENERAL AND ON SITES WITH A HISTORY INCLUDING PETRA CHEMICALS IT'S NECESSARY TO ENSURE APPROPRIATE STEPS ARE TAKEN TO MAKE SURE THE SITE IS APPROPRIATELY PREPARED FOR NEW DEVELOPMENT. HAVING REVIEWED THE APPEAL POINTS, STAFF'S RESPONSES, THE INCLUDED DOCUMENTATION AND HAVING LISTENED TO THE PRESENTATIONS AND TESTIMONY THIS EVENING, WHICH IT IS VERY CLEAR TO ME THERE ARE NOT SIGNIFICANT LEVELS OF BENZENE ON THIS PROPERTY. I'M GOING TO SUPPORT THE STAFF'S

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RECOMMENDATION. BUT I HAVE A FEW MORE COMMENTS I WOULD LIKE TO MAKE. I'VE CUT DOWN MY COMMENTS PRETTY SIGNIFICANTLY. MY UNDERSTANDING IS THAT GIVEN THE DEVELOPMENT IN SURROUNDING AREA SINCE THE PROJECT WAS FIRST PROPOSED THE CITY ADDED A NEW SECTION TO THE ADDENDUM THAT ANALYZES CUMULATIVE IMPACTS OF EIGHT NEARBY DEVELOPMENT PROJECTS. THEIR ANALYSIS CONCLUDES CUMULATIVE IMPACTS WOULD REMAIN LESS THAN SIGNIFICANT AND I SEE NO CLEAR EVIDENCE OF ANYTHING TO THE CONTRARY. AND I THINK THIS IS IMPORTANT. ADDING HOUSING NEAR OUR BUS LINES, AT LEAST THREE AND PERHAPS FOUR BUS LINES THAT ARE VERY CLOSE TO THIS PROJECT. AND B.A.R.T. STOPS. B.A.R.T. IS A LONG BLOCK AWAY, ASHBY B.A.R.T., MAYBE A LONG BLOCK AND A HALF. THAT'S PRECISELY WHAT OUR VARIOUS PLANNING AND HOUSING DOCUMENTS, ALLOWING PEOPLE TO LIVE CLOSE TO TRANSPORTATION, SHOPS. REDUCING AIR POLLUTION, VEHICLE NOISE. MORE IN-FILL DEVELOPMENT, THIS IS A POINT WE NEED TO BE COGNIZANT OF. DECREASES ENVIRONMENTAL IMPACTS IN FARM AND WILDLANDS AT THE URBAN PERIPHERY. THE U.N. BODY A COUPLE YEARS AGO RESPONSIBLE FOR ANALYZING ENVIRONMENTAL ISSUES SAID, CONCLUDED THAT THE BEST THING THAT CITIES CAN DO IS DENSE IN-FILL HOUSING BECAUSE THAT LIMITS COMMUTES AND HENCE PUMPING CARBON INTO THE ENVIRONMENT. MY OVERALL ASSESSMENT IS THAT THE CITY APPEARS TO HAVE FOLLOWED PROPER PROCEDURES AND ADDRESS THE SUBSTANTIVE CONCERNS RAISED IN THE APPEAL, THE THREE APPEALS

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THROUGH THE ORIGINAL ENVIRONMENTAL STUDIES, ADDITIONAL ANALYSIS AND STANDARD CONDITIONS OF APPROVAL. WHILE THE APPEALS RAISE UNDERSTANDABLE CONCERNS ABOUT THE PROJECT SIZE AND POTENTIAL IMPACTS THEY DON'T APPEAR TO SHOW EVIDENCE OF SIGNIFICANT ENVIRONMENTAL IMPACTS THAT WOULD LEGALLY REQUIRE THE CITY TO OVERTURN ZAB'S APPEAL. THEREFORE I WILL VOTE TO REJECT THE APPEAL AND AFFIRM THE DECISION OF THE ZONING ADJUSTMENTS BOARD. THANK YOU.

>> [OFF MIC]

>> MAYOR ISHII: EXCUSE ME. THANK YOU, COUNCILMEMBER HUMBERT.

>> M. HUMBERT: YOU'RE WELCOME.

>> MAYOR ISHII: OKAY, SO FIRST I ALSO WANT TO SAY THANK YOU TO STAFF. THANK YOU FOR BEING HERE SO LATE. THANK YOU FOR ALL YOUR WORK. I KNOW A LOT GOES INTO THE REPORTS AND PRESENTATIONS AND IT COULD BE COMPLICATED TO ANSWER SOME QUESTIONS ON THE FLY. I WANT TO START BY SAYING THANK YOU TO ALL OF YOU. AND ALSO, YOU KNOW, FOR ME THERE WERE TWO CONCERNS I HAD, ESPECIALLY AROUND THE ENVIRONMENTAL ISSUES AND ALSO AROUND LABOR. BUT I THINK IT SOUNDS LIKE THE PROJECT WAS ANALYZED FOR THE RESIDENTIAL USES IN 2022. AND THERE ARE STILL OPPORTUNITIES, THIS IS THE MAIN THING FOR ME, EXCUSE ME, THERE ARE STILL OPPORTUNITIES FOR MITIGATION ISSUES TO A BE ADDRESSED DURING THE PERMITTING PROCESS. AND THE DOOR ISN'T CLOSED TO ADDRESS THE ENVIRONMENTAL ISSUES. THAT'S

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NOT WHAT WE ARE TALKING ABOUT TODAY. I WANT TO MAKE SURE I HIGHLIGHT THAT. I WANT TO ENCOURAGE THIS PROJECT TO STILL USE LOCAL UNION LABOR AND STRONGLY CONDEMN THE STATEMENT FROM THE APPLICANT IF THAT WAS ACCURATE ABOUT THREATS TO NOT USE UNION LABOR. HOUSING IS ONE OF MY TOP PRIORITIES AND IT IS FOR SO MANY PEOPLE IN OUR CITY. IT'S REALLY IMPERATIVE WE TAKE ADVANTAGE OF THESE DENSITY BONUSES. I WANT TO SAY I'M VERY SURPRISED TO HEAR ONE OF OUR SPEAKERS SPEAK IN SUPPORT OF THE APPELLANTS GIVEN HOW I KNOW SHE TOLD ME SHE WAS REALLY CONCERNED ABOUT HER SON WHO WASN'T ABLE TO AFFORD TO LIVE IN BERKELEY. AND THIS IS A PROJECT THAT PROVIDES 17 VERY LOW-INCOME UNITS. I MYSELF LIVE IN SOUTH BERKELEY, I'M VERY SUPPORTIVE OF US BUILDING MORE HOUSING, ESPECIALLY SO CLOSE TO B.A.R.T. AND DIFFERENT BUS STATIONS. I HEAR THE CONCERNS AROUND STREET SAFETY. THAT'S ONE OF MY CONCERNS. JUST KNOW BECAUSE THIS PROJECT IS HERE DOESN'T MEAN WE ARE GOING TO IGNORE THE WORK THAT NEEDS TO BE DONE TO MAKE OUR STREETS SAFER.

>> [OFF MIC]

>> MAYOR ISHII: I'M SORRY, YOU CANNOT SPEAK DURING THIS TIME. IF YOU WANT TO SPEAK AFTERWARDS I'M HAPPY TO TALK TO YOU, BUT IT'S NOT APPROPRIATE TO SPEAK OUT. ADDITIONALLY OUR ZAB APPROVED THIS WITH AN 8-0 VOTE WITH ONE ABSENCE AND I SUPPORT THE DECISIONS OF OUR ZAB COMMISSIONERS. I THINK THAT'S ALSO ESSENTIAL. I WOULD

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ALSO RATHER HAVE AN APARTMENT BUILDING WITH NEIGHBORS THAN A GAS STATION. IF WE ARE CONCERNED ABOUT ENVIRONMENTAL HARM, THIS WAS A GAS STATION AND CONTINUES TO BE A GAS STATION AND THAT HAS ITS OWN ENVIRONMENTAL HARMS TO OUR NEIGHBORS. IS THERE A MOTION?

>> R. KESARWANI: YEAH, I WILL MAKE A MOTION TO ADOPT A RESOLUTION AFFIRMING THE ZONING ADJUSTMENT BOARD DECISION TO APPROVE A USE PERMIT TO DEMOLISH A GAS STATION AND CONSTRUCT A TEN STORY MIXED USE BUILDING UTILIZING A STATE DENSITY BONUS REQUEST WITH 166 DWELLINGS INCLUDING 17 VERY LOW INCOME UNITS AND 1,000 SQUARE FEET OF COMMERCIAL SPACE AND DISMISS THE APPEALS.

>> MAYOR ISHII: SECOND.

>> MAYOR ISHII: ANY OTHER COMMENTS? I'M GOING TO ASK THAT OUR CITY CLERK CALL THE ROLL, PLEASE.

>> CITY CLERK: OKAY. COUNCILMEMBER KESARWANI?

>> YES.

>> CITY CLERK: COUNCILMEMBER TAPLIN?

>> T. TAPLIN: NO.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: NO.

>> CITY CLERK: TREGUB IS RECUSED. O'KEEFE IS RECUSED. BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA IS RECUSED. HUMBERT?

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>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION FAILS.

>> [OFF MIC]

>> MAYOR ISHII: SO, EXCUSE ME. AS I MENTIONED, I'M HAPPY TO SPEAK WITH YOU AFTERWARDS. THERE ARE NO MORE ITEMS LEFT ON OUR ACTION CALENDAR. SORRY, DO YOU HAVE A QUESTION, COUNCILMEMBER?

>> M. HUMBERT: YEAH, I HAD A QUESTION OF THE CITY CLERK.

>> MAYOR ISHII: PLEASE, GO AHEAD.

>> CITY CLERK: AND MR. CLERK, COULD YOU TELL ME WHAT THE FAILED MOTION, WHAT EFFECT IT HAS ON THE ZAB DETERMINATION?

>> CITY CLERK: I THINK THE CITY ATTORNEY.

>> I CAN RESPOND. THE ZAB DECISION STANDS UNLESS THEY TAKE IT UP UNDER 23.140.140 SECTION I.

>> MAYOR ISHII: THANK YOU. OKAY, SO NOW THAT WE HAVE COMPLETED EVERYTHING ON OUR ACTION CALENDAR IS THERE PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA? TWO AHEAD.

>> I WOULD LIKE TO KNOW WHAT YOU GUYS ARE GOING TO DO ABOUT SAFETY ON THE SIDEWALKS AND THE FACT THAT'S DANGEROUS. I WILL MAKE A THREAT AND I WILL MAKE A PROMISE. I'M A TORT ATTORNEY. IF ANYONE GETS HURT ON THAT SIDEWALK BECAUSE YOU DIDN'T MITIGATE AND PROVIDE ADEQUATE SAFETY SIDEWALKS I WILL CONTACT THAT VICTIM

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AND ENCOURAGE THEM TO SUE THE CITY OF BERKELEY FOR EVERY CENT YOU HAVE BECAUSE IT'S NOT RIGHT FOR YOU TO ENDANGER PEDESTRIANS AND THAT'S EXACTLY WHAT'S GOING TO HAPPEN. I REMEMBER MY FRIEND FRED LUCKY'S DEATH AND THERE HAVE BEEN OTHER PEOPLE HIT, SO WHAT ARE YOU GOING TO DO CONCRETELY TO MAKE THE SIDEWALKS SAFE FOR PEDESTRIANS AND HANDICAP PEOPLE WHO NEED TO WALK.

>> MAYOR ISHII: A QUESTION OR?

>> NO, A COMMENT. CAN I SUGGEST, SINCERELY, VERY SINCERELY, THAT YOU FIND THE FUNDS TO PUT YOURSELF ON A TRANSPORTATION HUB? THE BUSES HERE EVERY 20 MINUTES. AND I KNOW YOU GUYS NEVER STAY UNTIL 11:30 OR SO, DO YOU? YOU NEVER STAY LATE TO WHERE THE BUSES STOP RUNNING. WHY DON'T YOU FIND A MILLION OR TWO DOLLARS AND FIND SOMEPLACE UP BY MILVIA OR SOMEPLACE WHERE PEOPLE WHO DON'T DRIVE, SOMEPLACE WHERE PEOPLE WHO DON'T NEED TO WORRY ABOUT PARKING CAN COME. I KNOW THERE'S A LOT OF PARKING HERE, IT'S WONDERFUL, ISN'T IT? 1,000 UNITS IN SOUTH BERKELEY, WE MIGHT NOT HAVE ANY PARKING IN 5-6 YEARS. I'M SORRY. YOU GUYS DO GREAT WORK.

>> MAYOR ISHII: THANKS. ANY OTHER PUBLIC COMMENTS? ONLINE?

>> CITY CLERK: YES, ONE ONLINE.

>> MAYOR ISHII: OKAY, GO AHEAD.

>> CITY CLERK: BLAIR BEEKMAN.

>> HI, BLAIR BEEKMAN, THANKS FOR THE MEETING TONIGHT. IT LOOKS

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LIKE YOU WORKED OUT BEST PRACTICES. THANK YOU. GOOD LUCK IN UPCOMING FUTURE MEETINGS AND CONTINUING THE CONCEPT OF WORKING ON PROJECTS ON GOOD TERMS. THANKS A LOT.

>> MAYOR ISHII: THANK YOU. OTHER PUBLIC COMMENTS ONLINE?

>> CITY CLERK: NONE.

>> MAYOR ISHII: OKAY. I'M GOING TO ASK FOR A MOTION TO ADJOURN. AND ALSO JUST A REMINDER THAT WE ARE ADJOURNING IN MEMORY OF MARTY SCHIFFENBAUER. I KEEP FOR GETTING TO SAY THAT AT THE END OF THE MEETING. IS THERE A MOTION?

>> SO MOVED.

>> SECOND.

>> MAYOR ISHII: CAN WE ADJOURN UNANIMOUSLY? THANK YOU. THANKS, EVERYBODY. 9:57. [ADJOURNED]

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